

HOW NOT TO GET AWAY WITH MURDER

**True stories of the evidence that caught them, anchored to the
court decisions that prove it**

Frank Alfano

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This is a work of nonfiction. Every case in this book is real. Each chapter is built on a published appellate court decision, and the facts are drawn from those decisions and, where noted, from the surrounding public record. The narrative reconstruction, the pacing, and the commentary are the author's; the underlying facts belong to the courts. Where a chapter draws on material outside the anchoring decision, that is flagged in the text. Where a court ordered that a victim's or witness's identity be protected, this book keeps that person to initials.

Nothing in this book is legal advice, and nothing in it should be read as a statement about the guilt or innocence of any living person beyond what the cited courts themselves concluded. Several of these cases were later reopened, reversed, or retried; the book says so, in plain terms, wherever it happened.

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Dedication

For Silas, my grandson, whom I was lucky enough to be there for when he was born.

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Introduction - The Smoking Gun Is Rarely a Gun

Almost no one is caught the way the movies promise. There is seldom a witness who points across the courtroom, seldom a confession that comes apart in a single brilliant question. What catches a killer, almost every time, is smaller and quieter than that: the one thing he forgot he left behind.

We imagine murder as a locked-room puzzle solved by a genius in the final act. The truth is closer to accounting. A person who takes a life has to move through the world before and after doing it, and the world keeps records. It always has. A century ago those records were a muddy footprint, a torn button, a hair caught on a nail. What has changed, and what this book is really about, is that the records have multiplied beyond anything a killer can keep track of. We now carry devices that log where we stood and when. We strap machines to our wrists that count our steps and our heartbeats. Our cars remember our speed and our route. Our phones photograph the inside of our own pockets. And we type our worst questions into a search bar that never forgets we asked.

The smoking gun, in other words, is rarely a gun. It is a cell tower that puts a phone on a lonely road at the wrong hour. It is a fitness tracker that keeps counting steps for a woman her husband has already reported dead. It is a bullet that clears the man everyone saw firing and points, silently, at the shooter no one was watching. It is a search for “what happens when you die,” typed minutes after a murder by someone checking his work. This book is a collection of those quiet, decisive things, and of the people undone by them.

Every case here is real, and you can check us

That is the promise this book makes and keeps on every page. Each chapter is built on an actual court decision, from the Supreme Court of Canada, the provincial Courts of Appeal, the Supreme Court of the United States, and the American state high courts. These are not composites, and they are not “inspired by true events.” They are true events, tried in real courtrooms, reviewed by real appellate judges, and written down in opinions anyone can read.

The storytelling is ours. The facts are the courts’. At the end of every chapter you will find a box headed “Read the case yourself,” and in it the case name, the citation, and a free link. A citation looks forbidding until you learn to read it, and it takes about ten seconds to learn. Something like *R. v. Arp*, 1998 CanLII 769 (SCC) simply means: the case of the Crown against a man named Arp, decided in 1998 by the Supreme Court of Canada, and free to read on a website called CanLII. The American ones work the same way, through free sites like Justia and CourtListener. We tell you the case every single time for one reason: so that you never have to take our word for any of it. Go look. That is the point.

Two small conventions follow from telling the truth. First, when a court ordered that a victim or a witness be shielded, this book keeps that person to initials, exactly as the decision does. Second, when a fact comes from the news rather than from the decision itself, we say so, because the difference matters.

The book is honest about the cases that did not end cleanly

If this were only a parade of clever captures, it would be a lie by omission. Real forensic evidence is powerful, and real forensic evidence is sometimes wrong, or overstated, or gathered in a way the law will not allow. So some of these chapters do not end with the cell door clanging shut.

You will read about a man whose blood-spatter conviction was later undone when the analyst who read the spatter was discredited. You will read about a confession the police worked years to obtain, thrown out because they went too far to get it. You will read about a black box in a car that recorded the whole truth of a fatal crash and was silenced anyway, because the police skipped the warrant. And near the end you will meet the innocent: men sent toward death row by bite-mark “science” that turned out to be no science at all, and a fourteen-year-old boy convicted on a pathologist’s guess about the contents of a dead girl’s stomach, a guess it took forty-eight years and a study of blow flies to overturn. Those chapters are here on purpose. A book about how evidence catches the guilty owes you the cases where it caught the wrong person instead, and where a later, better science set them free.

Where a case was reopened, reversed, or retried, you will find it labeled plainly, in the chapter and in the citation box. Nothing is smoothed over to make a neater story.

How to read this book

Think of it as a set of shelves rather than a staircase. The chapters are grouped by the kind of evidence that did the catching: what the body kept, in DNA and trace and poison; the phone in your pocket, and everything it logs; what you typed and what you saved; the devices you strap on and invite inside; the gun and the residue it leaves; the staged scene and the physics that exposes it; the confession, the sting, the wiretap, and the informant; and, last, the times the science lied, and the times it set an innocent person free.

But nothing here depends on anything before it. Every chapter is a self-contained short story, and you can read them in any order you like: front to back, or by whichever kind of evidence interests you most, or simply by opening to a title that catches your eye. If one chapter sends you toward another, it is an invitation, never homework.

A word on tone, since these are grave matters. There is, now and then, a dark comedy in how these people got caught, in the sheer

avoidable stupidity of calling an ex-girlfriend on a murdered couple's phone, or of asking a police officer how long gunshot residue lasts on the hands. Where that comedy is honest, this book lets itself smile at it. But the smile is only ever aimed at the killer's blunder, never at the person who died. The dead in these pages were real people, and they are treated that way.

They were also, most of them, killed by someone who was sure he had thought of everything. He had not. He never does. Turn the page, and meet the first man who handed the police the very evidence that hanged him, because they asked him nicely, and he could not think of a reason to say no.

Chapter 1 - The Man Who Handed Police the Hair That Hanged Him

When the police asked Brian Arp for a few hairs to rule him out, he handed them over. They were the very hairs that would tie him to a murder, and a rule he thought was clearing him was quietly building his conviction.

There is a particular kind of confidence that undoes people, the belief that cooperation looks like innocence. Brian Arp had it, and this book opens with him because his case is the purest illustration of a truth every chapter after it will repeat in a different key: your own body keeps the receipts.

It begins in Prince George, British Columbia, a northern city with long winters and long, dark drives out of town. At about 2:00 a.m. on November 22, 1989, Marnie Blanchard was last seen standing alone outside a bar. A taxi driver watched a small grey pickup, a Toyota or a Nissan, pull up beside her, its lone driver a man with black, shoulder-length hair and some growth on the sides of his face. Blanchard hesitated. Then she climbed in, and the truck drove off into the dark.

Almost three weeks later, a cross-country skier came across a human jawbone in a clearing some ten kilometres from downtown. Police found a skull and scattered bones nearby; animals had been at the remains, and no cause of death could ever be fixed. Her clothing lay in the clearing, some of it cut with a sharp blade, and dental records gave the bones a name: Marnie Blanchard. The forensic pathologist was blunt about what the scene meant. The cut clothing, the remote dumping ground, the way the body had been left, none of it was consistent with a woman who had simply died. This was homicide, dressed up as a disappearance.

The hairs he gave away

The police had a witness's description and not much else, so they cast a wide net, and somewhere in that net was a man named Brian Arp. When they asked whether he'd be willing to help, he obliged, the way an innocent man might. He gave them scalp and pubic hair samples so they could check whether any of his hair had turned up where it shouldn't. This was 1990. DNA analysis of the samples was not even on the table yet, and no one told Arp that the hairs he was handing over might one day be read like a barcode and shown to a jury.

That is the quiet hinge of the whole case. Arp thought he was submitting to a formality that would clear him. What he was actually doing was depositing his own genetic signature into a police evidence locker, where it would wait, patient as a seed, for the science to catch up.

The science took a few years, and it took a second body to bring it to bloom.

On February 13, 1993, Theresa Umphrey came to Prince George and spent the evening drinking with friends. In the early hours of the 14th she was seen near a convenience store, badly intoxicated, asking strangers for a ride home and unable to tell them where home was. That afternoon her nude, partially frozen body was found on a snowbank roughly fifty kilometres southwest of the city. Two women, each last seen alone and vulnerable in the small hours of a Prince George night, each driven out of town and left in the cold. The pattern was its own kind of evidence, and the law has a name for it: similar-fact evidence, the principle that two crimes bearing the same unusual signature are unlikely to be the work of two different men.

But the pattern only names a type of killer. What named *this* one was the semen recovered from Theresa Umphrey's body and her sweater. By now Arp had wised up, at least a little; when police came asking for samples to test his DNA, he refused. It no longer mattered. They still had the hairs he'd volunteered in 1990. And when he sat for an interview and was allowed to smoke his own cigarettes, an officer came back afterward

and quietly bagged the butts he left behind, another little deposit of himself, made without a thought.

One in thirty-one billion

At the RCMP forensic laboratory, biologist Barbara Fraser laid Arp's contributions side by side with the killer's: the pubic hairs he had handed over, the DNA off his cigarette butts, and the semen from Theresa Umphrey. She found what the scientists call a five-probe match, five separate regions of the DNA aligning across all of it, an event so vanishingly rare between unrelated strangers that she put the odds of it occurring by chance in the Canadian population at less than one in thirty-one billion.

Thirty-one billion is a number with no real human meaning, which is precisely the danger of it, and the reason Arp's case became a landmark. Because there is a seductive trap buried in a statistic like that, one lawyers call the prosecutor's fallacy: the temptation to hear "one in thirty-one billion chance of a random match" and translate it, wrongly, into "one in thirty-one billion chance he's innocent." The two are not the same sentence, and the Supreme Court of Canada used Arp's appeal to explain, carefully, how a jury may and may not reason from a DNA match and from similar-fact evidence, how much weight the numbers can bear before they tip over into something misleading.

Arp was convicted of the first-degree murder of Theresa Umphrey, then re-arrested and convicted of the first-degree murder of Marnie Blanchard, the woman whose case had first prompted him to be so helpful. In 1998 the Supreme Court dismissed his appeal, and in doing so gave the country its foundational rules for how DNA odds are handled in a courtroom.

How'd he get caught?

He caught himself, and he did it while trying to look innocent. Everything the police needed, Brian Arp put into their hands personally: the hair he volunteered to prove he had nothing to hide, and the cigarette

butts he left smoldering in an interview-room ashtray. By the time he grew cautious and started refusing DNA tests, the caution was theater; his DNA was already on the shelf, waiting for a second murder and a five-probe match to give it meaning. Two women were driven out of Prince George into the dark on the assumption that the dark keeps secrets. It does not, or at least not from the parts of ourselves we shed without noticing. A man can refuse to give a sample. He cannot, it turns out, stop being made of evidence.

Read the case yourself: *R. v. Arp*, 1998 CanLII 769 (SCC), [1998] 3 S.C.R. 339, Supreme Court of Canada, decided 1998 (Cory J.). Free online: CanLII. The facts of both murders are set out in the opinion; the court's guidance on similar-fact evidence and on presenting DNA match probabilities to a jury (and avoiding the "prosecutor's fallacy") is the reason the case is a landmark.

Chapter 2 - First Blood

An escaped killer terrorized a New Brunswick river valley for seven months, leaving four bodies and almost no witnesses. He was convicted on a technology so new that no Canadian jury had ever hanged a murder on it before. His blood was the first.

Every forensic tool in this book was, at some point, brand new, unproven, and frightening to the courts asked to trust it. This chapter is about the moment DNA crossed that threshold in Canada, and it is fitting, and chilling, that the man who forced the question was one of the most dangerous the country has produced.

Allan Joseph Legere was already a convicted murderer. He was serving time for the 1986 killing of a shopkeeper named John Glendenning in the Miramichi region of New Brunswick when, in May 1989, he was taken to a Moncton hospital for treatment. There he slipped his guards and vanished into the New Brunswick spring. For the next seven months, the communities strung along the Miramichi River lived under a terror that has few parallels in Canadian history, locking doors they had never locked, because somewhere out there a killer was moving among them and the police could not catch him.

He did not waste the time he had stolen.

Seven months

The bodies came over that terrible stretch of 1989. Annie Flam, who ran a grocery in Chatham, was killed and her apartment set on fire, the flames meant to erase whatever the killer had left behind. Two sisters, Linda and Donna Daughney, who lived together, were murdered in their home, the scene suggesting the killer had taken his time. And Father James Smith, a Roman Catholic priest, was beaten to death in his own

rectory. Four victims, across months, in a region small enough that everyone knew someone touched by the horror.

What Legere did not leave, for the most part, was the ordinary evidence that convicts a killer. No reliable eyewitnesses to the murders themselves. No confession. He was a careful, brutal man who understood, in the folk way that criminals do, how not to be seen. In an earlier era, the era of nearly every murder that came before his, that carefulness might have been enough.

But Legere left something behind that he did not know how to hide, because in 1989 almost no one yet understood it could be seen at all. At the scenes, in the biological traces of the attacks, in semen and blood, he left his DNA.

The science on trial

When Legere was finally recaptured in November 1989 and brought to trial, the Crown's case rested on a technology that had never before grounded a murder conviction in Canada. DNA typing was, in 1991, genuinely novel. It asked a jury to convict a man of capital crimes on the say-so of scientists reading patterns in biological material, patterns invisible to the eye, explained in the unfamiliar vocabulary of molecular biology and probability. Courts are, rightly, cautious about new science, and much of Legere's trial and appeal was a contest over whether this new thing was reliable enough to help send a man to prison for the rest of his life.

The forensic evidence tied the biological traces from the murder scenes to Allan Legere, and a jury convicted him in 1991 on four counts of first-degree murder. It was, by common reckoning, the first murder conviction in Canada built on DNA evidence. When the case reached the New Brunswick Court of Appeal in 1994, the court examined the admissibility and the reliability of that evidence, the foundational question of whether this molecular fingerprinting was sound enough to be trusted by the justice system, and it upheld the convictions. The

appeal was dismissed. DNA had arrived, and it had arrived by convicting a serial murderer no older method had managed to touch.

Everything in this book that depends on genetic evidence, the touch DNA under a victim's fingernails, the cold-case hit decades later, the exoneration that finally freed innocent men, stands on the door that cases like this one pushed open. The science had to prove itself somewhere, on someone, first. In Canada, it proved itself on Allan Legere.

How'd he get caught?

He was caught by the one part of himself he could not think to burn. Legere was cunning enough to leave no witnesses, disciplined enough to set fire to a scene to destroy what he'd left, careful enough to evade a massive manhunt for seven months. Against the forensic tools of the whole history of murder before him, he might have stayed a phantom. But he committed his crimes at the exact hinge of history when a new science was learning to read the body's smallest leavings, and he had no idea that the blood and fluid he left behind spelled out his name in a language he could not see and could not wash away. He beat the old ways of getting caught. He had the terrible misfortune to be among the first men in the country undone by the new one.

Read the case yourself: *R. v. Legere*, 1994 CanLII 3851 (NB CA), New Brunswick Court of Appeal, 1994. Free online: CanLII. The four murders are summarized early in the judgment; the extended analysis of the admissibility and reliability of the then-novel DNA evidence is the heart of the decision and the reason it is a landmark in Canadian forensic law.

Chapter 3 - Under Her Fingernails

An intruder climbed the stairs to their apartment in the dark. He killed Michaël Cadieux with fourteen stab wounds. He did not count on the woman beside him fighting back, grabbing him by the throat, and taking a piece of him under her nails.

Most of the victims in this book could not testify to how they died. The woman at the center of this chapter could, because she lived, and because in the seconds she had, she did something that turned her own hand into the evidence that named her attacker.

It happened in Quebec City, in the small hours of June 12, 2011. Michaël Cadieux and his partner, a young woman the court records call B.F.S. to protect her, had showered and gone to bed. At 4:12 in the morning they woke to the sense of someone in the apartment, a figure standing at the top of the staircase that led up to their home from the rear of the building. Cadieux switched on a bedside lamp and asked the intruder to say who he was. The figure said nothing. It simply stood there in the half-light, a silence more frightening than any threat.

Then Cadieux and B.F.S. did the brave, human thing. They rushed him.

The seconds that mattered

The intruder was armed, and Cadieux was overwhelmed fast. He was struck fourteen times with a sharp, pointed weapon, wounds that would kill him. But B.F.S. did not stop. She threw herself at the attacker, got both hands around his neck, and tried to strangle him. She hauled him toward her until his head was down at the level of her hips, and then she shoved him with everything she had against the wall.

She could not save Michaël Cadieux, and she could not save herself from grave injury. What she could do, in that furious, terrified grappling, was hold on. And when you seize a man by the throat and fight him at close quarters, you come away with more than bruises. You come away with him, microscopic scrapings of him, lodged beneath your fingernails.

That same day, as B.F.S. was treated, forensic technicians took samples from her body, and among them they scraped under the nails of her hands. What they found under the nails of her right hand was extraordinary. There were two complete genetic profiles present, hers and one other, and that second full profile belonged to a man named Pierre-Olivier Laliberté. Two *complete* profiles in a single fingernail sample is, the forensic biologist Jean Bergeron testified, an extremely rare thing; it does not happen often. There was as much of Laliberté's DNA under her right-hand nails as there was of her own. The chance that the profiles belonged to anyone other than B.F.S. and Laliberté was one in several hundred billion. And the sample was so rich, so red, that the expert concluded what was packed under her nails was not some stray trace but blood, or bleeding flesh, torn from her attacker in the struggle.

The dishwasher's hands

The defense understood exactly how damning that was, and it reached for the one argument that might explain the DNA away: innocent transfer. Might Laliberté's DNA have found its way under her nails some other, harmless way?

The evidence closed that door, and it closed it with a beautifully ordinary detail. B.F.S. worked as a dishwasher at a restaurant, thirty-five hours a week, her bare hands in hot water and cleaning chemicals, scrubbing dishes without gloves. She had worked a full shift the very day before the attack, from morning into the afternoon. And DNA, the expert explained, does not survive that. Humidity is what destroys it; a dishwasher's hands, plunged in soapy water hour after hour, are about as hostile an environment for lingering genetic material as you could

design. Whatever had been under her nails from ordinary life would have been scrubbed away by the end of her shift.

So the rich, bloody deposit of Pierre-Olivier Laliberté's DNA under her right-hand fingernails could not be some old, innocent trace. It had to be fresh. It had to have gotten there after her last shift ended, in the only event that fit: the early-morning fight for her life, when she grabbed her attacker by the throat and would not let go. There had been no contact between them in the days before. The DNA had one possible origin, and it was the struggle.

The Court of Appeal called the DNA identification evidence overwhelming, and it was right to. Laliberté was convicted of the first-degree murder of Michaël Cadieux and the attempted murder of B.F.S., and in 2015 the Quebec Court of Appeal dismissed his appeal.

How'd he get caught?

He was caught because the woman he left for dead fought back with her hands. An intruder who kills in the dark counts on darkness, on the dead not talking and the scene not remembering. Laliberté nearly got both. But B.F.S. did the one thing he could not have planned for: in the middle of the worst moment of her life, she got hold of him, strangled and shoved and clawed, and in doing so she reached past his silence and took a piece of him for the police to find. Her fingernails testified when she might not have survived to. He walked up those stairs believing he was the only one who would leave that apartment knowing what happened. He was wrong, because he did not leave all of himself with him. Some of him went under her nails, and it gave his name.

Read the case yourself: *Laliberté c. R.*, 2015 QCCA 1633, Court of Appeal of Quebec, 2015 (in French; leave to appeal to the Supreme Court of Canada refused). Free online: CanLII. The attack, the fingernail-DNA analysis, and the defense's transfer argument (answered by the victim's work as a dishwasher) are set out in the court's reasons. The surviving victim is identified only by initials to protect her.

Chapter 4 - The Calling Card

A six-year-old girl vanished from outside her apartment building. Her body was hidden in a boiler room so obscure the police never found it, on a floor they didn't know existed. But the man who put her there left four different kinds of himself on her body.

Some killers are undone by a single, dramatic clue. This chapter is about the opposite, and the more common, truth of forensic science: that a killer leaves not one trace but many, and that the case against him is built the way a mosaic is, from fragments that mean little alone and everything together. It is also, and there is no gentle way to write this, about the murder of a child, so the humor that runs through much of this book has no place here. Only the evidence does.

On the morning of October 14, 1990, six-year-old Andrea Atkinson said goodbye to her mother and went outside to play at their Toronto apartment building. She was last seen around 9:30 a.m. By 11:00 her mother was searching, checking with neighbors and friends and combing the building, and finding nothing. Sometime after 1:30 she called 911. Andrea had simply, impossibly, disappeared.

She had not gone far. Nine days later, on October 23, a janitor and a maintenance supervisor discovered her body by accident, in the boiler room on the sixth floor of the very building she lived in. She had been sexually assaulted and asphyxiated, and her body hidden behind a hot water tank.

The room almost no one knew

The location was, in its way, the first piece of evidence, because the sixth-floor boiler room was a place almost no one knew existed. The residents didn't know about it. Astonishingly, the police didn't either;

despite a massive nine-day search of the building, they never discovered there was a sixth floor with such a room on it. Whoever hid Andrea Atkinson there was not a stranger who had wandered in. It was someone who knew the building's hidden anatomy intimately.

John Terceira knew it. He worked as a janitor in the building, he had keys to the boiler room, and he admitted he went there sometimes to smoke drugs. Other janitors had keys too, but Terceira was the only one scheduled to work the day Andrea disappeared, and two residents saw him in the building after she was last seen alive. He had known the little girl, had ruffled her hair, had once chased off some older boys who were bothering her and her friends. To Andrea, her mother said, he had been a kind of hero. She looked up to him. It made him exactly the sort of familiar face a trusting six-year-old would follow.

Knowledge and opportunity make a suspect. What made Terceira a convicted murderer was what he left on the body, and it came in four forms.

Four kinds of himself

The forensic evidence against John Terceira was not one finding but a convergence, and the appellate courts would later treat it as a case study in how such evidence is properly weighed.

At the attack site and on Andrea's clothing, investigators recovered **hair** that matched Terceira. They found **blood**. On the concrete floor just outside the boiler room, at the base of the stairs, was a mixed stain of blood and **semen**, the semen present in enough quantity to be analyzed. And that analysis produced the fourth thread, **DNA** that matched the appellant, the molecular confirmation binding the other traces to one man.

Then there were the fibres. Numerous blue fibres, consistent with the blue outer material of the sweatpants Terceira wore to work on October 14, were found on Andrea's clothing and on the floor outside the boiler room. His clothes had, in effect, shed onto the scene and onto the child, a silent record of contact.

Hair. Fibre. Blood and semen. DNA. Any one of them a thread a defense might try to fray. Woven together, on the body of a child in a room only he really knew how to find, they formed something no innocent explanation could survive. The DNA match came wrapped in the same statistical questions that run through this part of the book, and the courts wrestled with how those probabilities should be presented to a jury. But the strength of the case never rested on a single number. It rested on the sheer, compounding improbability of one man's hair and fibres and blood and semen and DNA all arriving, together, on a murdered six-year-old.

Terceira compounded it himself. After Andrea disappeared, he lied to police about how many times he had been in and around the boiler room, the kind of small, unnecessary lie that betrays a consciousness of guilt. He was convicted of first- degree murder. The Court of Appeal for Ontario upheld the conviction in 1998, and the Supreme Court of Canada dismissed his further appeal in 1999, in a decision that helped settle how DNA statistics are handled in Canadian courtrooms.

How'd he get caught?

He was caught by everything at once. John Terceira chose a hiding place so secret it defeated the police for nine days, gambling that a room no one knew about would keep its secret. But a body is not a locked room, and a killer does not leave a scene the way he entered it. He left his hair on her clothes and his fibres from his own work pants scattered across the floor and the child, his blood and his semen on the concrete, his DNA threaded through all of it. He knew the building's hidden corners better than anyone. What he did not understand is that there is no hidden corner inside forensic science, no boiler room where hair and fibre and blood and DNA do not follow you. He left a calling card in four different hands, and every one of them was signed.

Read the case yourself: *R. v. Terceira*, 1998 CanLII 2174 (ON CA), 38 O.R. (3d) 175, Court of Appeal for Ontario, 1998; affirmed 1999 CanLII 645 (SCC), [1999] 3 S.C.R. 866. Free online: CanLII (ON CA) · CanLII (SCC). The facts, the convergence of hair, fibre, blood, semen, and DNA evidence, and the treatment of DNA probability statistics are set out in the reasons.

Chapter 5 - A Coffee Cup and a Stranger's Family Tree

A young couple was murdered on a road trip in 1987, and the case went cold for thirty years. The killer was found not through his own DNA, but through the DNA of cousins he had never met, and confirmed by a cup he threw away.

The previous four chapters were about killers undone by their own bodies, the hair, the fluid, the fibres they left at the scene. This chapter is about something newer and stranger, a technique that can catch a killer who left his DNA everywhere and still stayed invisible for decades, because there was no name to match it to. It works by finding him through his family, and it announced itself to the world in the case of William Earl Talbott II.

On November 18, 1987, Tanya Van Cuylenborg and Jay Cook, a young couple from Victoria, British Columbia, set out on an overnight errand to the Seattle area to pick up parts for Cook's father's business. They took the ferry across to Port Angeles, Washington, and drove south in their van. Unfamiliar with the area, they got lost trying to reach the Bremerton ferry, and a store clerk in Hoodspoint pointed them the right way. They were an ordinary couple on an ordinary drive, and they were never seen alive again by anyone who wished them well.

Their bodies were found days later, in two different rural counties, each in a remote place; their van abandoned in a third. Tanya Van Cuylenborg had been shot and left partly nude. Jay Cook had been beaten and killed. It was the kind of double murder that horrifies a region and then, slowly, defeats it. There was biological evidence, semen on Van Cuylenborg's clothing and body, and a palm print on the van's rear

window. But in 1987 those things could only convict a suspect, and there was no suspect. The DNA belonged to a ghost.

Thirty years, and then a family tree

For nearly three decades the case sat, the DNA profile complete and useless, a key with no lock. The killer had left his genetic signature all over the crime, and it did not matter, because a DNA profile only names a person if that person's profile is already sitting in a database somewhere to match against. Talbott's never was.

What changed was not the killer's DNA. It was everyone else's.

By 2018, millions of ordinary people had spat into tubes and mailed their DNA to consumer genealogy companies to find long-lost relatives and fill in family trees, and many had uploaded the results to open databases like GEDmatch. Investigators realized that a crime-scene DNA profile could be run against those public databases, not to find the killer himself, but to find his *relatives*, the cousins and second cousins who shared enough DNA to show a family connection. Working with the DNA technology firm Parabon and a genetic genealogist, that is exactly what happened here. The killer's profile, uploaded to GEDmatch, lit up matches to people who shared his ancestry. From those matches, a genealogist built family trees backward and forward, narrowing a sprawling web of relations down, branch by branch, to a single name: William Earl Talbott II, a man who had never been a suspect, whose DNA was in no criminal database, and who had lived quietly for thirty years believing the couple in the van were his secret to keep.

The family tree pointed at him. But a pointing finger is not proof, and police still needed his actual DNA to compare against the killer's. They did not need a warrant to get it, because Talbott, like all of us, was constantly discarding himself in public. Investigators followed him and collected an item he threw away, a discarded cup bearing his DNA. It matched the DNA from the 1987 murders. Thirty years of anonymity ended with a piece of trash.

Talbott went to trial and was convicted of both murders, the first person in the United States convicted at trial on the strength of investigative genetic genealogy. *(The GEDmatch identification and the discarded-cup collection are drawn from the investigative record and reporting; the appellate decision anchors the murders, the DNA and palm-print evidence, and the convictions.)*

The appeal, and what stuck

Talbott's case took a detour through the appellate courts, but not over the genealogy. The Washington Court of Appeals initially reversed his convictions over a question about a biased juror. The Washington Supreme Court reversed that decision and reinstated the convictions, holding that Talbott had not properly preserved the juror issue because he had accepted the jury without using an available challenge to remove the juror in question. On the case's return to the Court of Appeals, that court struck a firearm sentencing enhancement but otherwise affirmed. The murder convictions stand.

Tellingly, Talbott's defense at trial did not really contest that his DNA was there. He conceded he'd had sexual contact with Van Cuylenborg and physical contact with the van, which his DNA and palm print proved beyond argument. Thirty years earlier that concession would have been impossible to force, because no one could have put his name to the evidence. The genealogy did what a generation of investigators could not: it turned an anonymous profile into a man with an address.

How'd he get caught?

He was caught by his relatives, most of whom he had probably never met, and none of whom did anything but explore their own heritage. William Talbott left his DNA on his victims in 1987 and then did the one thing that should have kept him safe forever: he committed his crime before there was any way to connect that DNA to his name. He waited out the science of his own era and won. What he could not wait out was a future in which his cousins, of their own free will, would hand their

DNA to companies that would place it in databases a detective could search. He did not put himself in the system. His family did it for him, without ever intending to, and a discarded cup did the rest. You can decline to give the police your DNA. You cannot stop the people who share it from giving theirs.

Read the case yourself: *State v. Talbott*, No. 80334-4-I (Wash. Ct. App.) (on remand); the convictions were reinstated by the Washington Supreme Court in *State v. Talbott*, 200 Wn.2d 731, 521 P.3d 948 (2022). Free online: Google Scholar (search the citation; also on courts.wa.gov / Justia). The murders, the DNA and palm-print evidence, and the procedural history are set out in the opinions; the GEDmatch/genetic-genealogy identification and the discarded-cup collection come from the investigative record and contemporaneous reporting. **Companion chapter:** the constitutionality of the genealogy technique is taken up directly in *State v. Hartman* (Chapter 6).

Chapter 6 - No Privacy in the DNA Your Cousins Share

A man tried to throw out the evidence that convicted him of a child's murder by arguing the police had violated his privacy. The court's answer draws the line that makes genetic genealogy possible: the DNA you share with your relatives is not yours alone to hide.

The last chapter showed genetic genealogy catching a killer. This one shows the courts deciding whether it is allowed to, because a technique that finds you through your relatives' DNA raises a question the law had never quite faced: whose privacy is it, anyway? The answer, worked out in the case of a Tacoma murder, is the legal foundation the whole method rests on.

In 1986, a twelve-year-old girl the court identifies only as MW was raped and murdered in a Tacoma, Washington park. Her killer left semen on her body. As with so many of these cases, the biological evidence was complete and the killer was nobody, an unmatched profile that sat untouched while the girl's family grew old without an answer.

Then, in 2018, came the same quiet revolution that undid the killer in the last chapter. Police enlisted the DNA technology company Parabon Nanolabs to take the killer's genetic profile and upload it to GEDmatch, the consumer database, in search of partial matches to his relatives. They did not get a warrant to do it. Parabon found that several of the killer's cousins had DNA in the database, built the family trees, and narrowed the search to a man named Hartman. Investigators then collected a napkin bearing his discarded DNA, and it matched the semen left on MW's body more than three decades earlier.

The line the court drew

Hartman fought back with the tool the Constitution gives every defendant: a motion to suppress. If the police had violated his rights in finding him, the DNA match, and everything that flowed from it, could be thrown out as fruit of the poisonous tree. His argument went to the heart of genetic genealogy. Comparing the crime-scene DNA against the GEDmatch database, he said, had rummaged through his private affairs without a warrant, in violation of the Washington Constitution's robust privacy protections. He claimed a privacy interest in the DNA his relatives had uploaded, and, eventually, in the very semen the killer had left at the scene.

The Court of Appeals affirmed his conviction, and in doing so it laid down the principle that lets investigators do what they did to catch him. There is, the court held, no privacy interest in the DNA a *relative* voluntarily uploads to a public database. When your cousin spits in a tube and posts the results to find long-lost family, the genetic information you happen to share with that cousin is theirs to disclose, not yours to suppress. You have no standing to object to a search of a database you never contributed to, conducted on data someone else freely gave. And as for the DNA the killer left on his victim, that had been abandoned at the scene, discarded in the act of the crime, and a person retains no privacy interest in what he leaves behind on a murdered child.

Strip the legal language away and the ruling says something simple and, for killers, terrifying. The genetic trail that leads to you does not run only through your own choices. It runs through your entire extended family, every one of whom has the right to explore their heritage, and none of whom needs your permission to do it. Your DNA is not a private diary you can lock. It is a shared inheritance, copies of it scattered across cousins you have never met, and any one of them can, without knowing it, leave the door open.

And it holds up

If Hartman set the constitutional floor, cases like it have shown the technique is no fluke of one jurisdiction. In California, a former Marine named Horace Van Vaultz Jr. was linked by the same method to two cold-case killings, the 1981 strangulation of Selena Keough and the murder of Mary Duggan. Sperm recovered from Keough's body in the 1981 investigation, analyzed decades later, matched DNA found on a gag in Duggan's mouth, tying the two crimes to one man, and investigative genetic genealogy gave that man a name. It was Los Angeles County's first prosecution built on the technique. A jury convicted Van Vaultz, and in 2024 the California Court of Appeal affirmed, describing the DNA evidence as overwhelming.

Two states, the same story: a killer who evaded the science of his own era, found decades later through the DNA of his relatives, and convicted, with the courts signing off on the method that caught him. The cold cases that used to defeat police, the ones with perfect DNA and no name to attach it to, are cold no longer. The database caught up.

How'd he get caught?

Hartman was caught by the same thing Talbott was, his family's DNA, and then he was kept caught by a court that told him he had no right to hide behind it. This is the chapter where the law blesses the technique, and the blessing rests on a truth most people have never stopped to consider: you do not own your DNA in the way you own your secrets, because you did not get it alone. Half of it came from each parent, quarters from grandparents, fractions scattered outward to cousins in an ever-widening circle, and every one of those people can place their share in a database where a detective can find the family resemblance and follow it home to you. The killers in these cases all made the same bet, that the decades had buried them. What they never counted on was that the people who share their blood would one day, cheerfully and voluntarily, dig them back up.

Read the case yourself: *State v. Hartman*, 29 Wn. App. 2d 384, 534 P.3d 423 (Wash. Ct. App. 2023). Free online: Google Scholar (also FindLaw / courts.wa.gov; search “State v. Hartman 2023”). The murder, the Parabon/GEDmatch identification, the napkin collection, and the privacy ruling are set out in the opinion. **Companion cases:** *State v. Talbott* (Chapter 5) and *People v. Van Vaultz*, No. B323590 (Cal. Ct. App. 2024), affirming a California genetic-genealogy conviction.

Chapter 7 - The Carpet in His Bedroom

For two years a city buried its children and could not name the killer. In the end he was undone not by a witness or a weapon, but by the carpet fibres he carried out of his own bedroom and left on the bodies.

Between 1979 and 1981, Atlanta lived through one of the most terrifying stretches in any American city's history, a run of murders whose victims were, again and again, young and Black, and whose killer left a metropolis afraid to let its children out of sight. The case that finally ended it did not turn on an eyewitness who saw a face or a gun that could be traced. It turned on something almost invisible, the tiny textile fibres that human beings shed and carry everywhere they go, and it became the landmark American case on convicting a killer by the threads he leaves behind.

Wayne Bertram Williams was charged with the murders of two young men, Jimmy Ray Payne and Nathaniel Cater. But the case against him was built on a pattern far larger than two deaths, and the pattern was written in fibre.

What the threads remembered

Every environment sheds itself. A home, a car, a pet, each is a source of characteristic fibres, from carpets and clothing and upholstery and animal hair, and when a person moves through the world he carries a signature of those fibres with him and deposits them on whatever, and whoever, he touches. The state's forensic experts had recovered fibres from the bodies of the victims, and they set out to answer a single question: where did those fibres come from?

The answer kept leading back to Wayne Williams. Fibres associated with the victims matched fibres recovered from Williams's home, from the cars he had used, and even from his German Shepherd dog. The experts testified that these matches supported an inference that Williams had been in contact with the victims before they died, and the prosecution built from that the further inference that he was the man who had killed them.

The centrepiece was a green fibre. One had been recovered from the hair of Nathaniel Cater. It matched, in its dyes and colours, a green fibre from a carpet in Williams's own bedroom. And here the forensic work reached a level of care worth pausing on, because it shows how seriously the analysts took the challenge. The bodies in this case had been disposed of in the Chattahoochee River, and a defence might argue that water would alter a fibre's colour and defeat any comparison. So the examiners took a fibre from Williams's bedroom carpet and immersed it in Chattahoochee River water for three days, testing how the river itself would change it, and compared that to what was found on the victim. The carpet in his bedroom was being cross-examined as thoroughly as any witness.

A pattern too specific to be chance

A single fibre match can be a coincidence. What made the evidence overwhelming was its repetition. Williams was tried for two murders, but the state introduced evidence of ten other killings as well, not to punish him for them directly, but to establish his identity as the killer through the recurring fibre signature that tied his environment to body after body, twelve in all. The same threads from the same home, the same cars, the same dog, kept appearing on victim after victim.

The power of that kind of evidence lies in improbability. It is unremarkable for one green household fibre to turn up somewhere. It is something else entirely for the fibres of one man's bedroom carpet, his vehicles, and his dog to appear, together and repeatedly, on a series of murdered young people across a city. The prosecution's case was that no

innocent explanation could account for that convergence, occurring again and again, around a single man. Williams challenged the science, arguing the fibre methodology had not been shown reliable enough to go to a jury, but the Georgia courts held the evidence properly admitted.

On February 27, 1982, Wayne Williams was convicted of both murders and sentenced to two consecutive life terms. In 1983 the Supreme Court of Georgia affirmed, cementing fibre-comparison evidence, and the probabilistic reasoning behind it, as a legitimate foundation for a murder conviction. It remains the landmark American decision on trace-fibre evidence in a homicide.

How'd he get caught?

He was caught by the parts of his own home that he could not help carrying with him. Wayne Williams left no confession and, for a long time, no witness the police could use. But he could not move through his house, his cars, and his life without gathering their fibres onto his clothing, and he could not touch his victims without leaving those fibres behind. A green thread from his bedroom carpet in a dead boy's hair; the same signature of home and car and dog appearing on body after body, a dozen times over. He thought, perhaps, that a fibre was too small to matter, that no one could build a case out of something you cannot feel on your own sleeve. The city of Atlanta learned otherwise. The smallest things we carry are still ours, and they go where we go, and they stay where we have been.

Read the case yourself: *Williams v. State*, 251 Ga. 749, 312 S.E.2d 40 (Ga. 1983), Supreme Court of Georgia, 1983. Free online: Justia. The fibre-comparison evidence, the green bedroom-carpet fibre and the river-water fading test, and the use of the additional killings to prove identity are set out in the opinion. (The often-cited carpet manufacturer and the “1 in 7,792” probability figure come from the trial record and reporting, not from this decision; the chapter follows the opinion's own account.)

Chapter 8 - The Sweet Taste of Antifreeze

Her husband died of a sudden illness in 1995, and the doctors called it his heart. Six years later her boyfriend died of the exact same sudden illness. It was only the second death that made anyone test the first.

Ethylene glycol, the toxic heart of ordinary automobile antifreeze, has one property that makes it a poisoner's temptation: it tastes sweet. Sweet enough to lace a food and go unnoticed, sweet enough that pets and children sometimes drink it by accident and die. It attacks the body quietly, producing symptoms a harried emergency room can easily mistake for a bad flu, and then it kills. Julia Lynn Turner appears to have understood all of this, and she is in this chapter because she made one mistake that a clever poisoner is uniquely prone to: she found a method that worked, and she could not resist using it twice.

The first to die was her husband, Glenn Turner, a Cobb County, Georgia police officer. In early 1995 the marriage was failing; Glenn had decided to move out, and had set the weekend of March 3 to go. He never made it. A few days before his planned departure he fell suddenly, violently ill, nauseated and flu-like, and went to a hospital. The staff gave him fluids for dehydration and something for the nausea and sent him home. The next morning, Julia served him green Jell-O, a dish whose color and sweetness would hide the taste and appearance of anything mixed into it. She fed him, left him alone in the house, and within a few hours Glenn Turner was dead.

His death was attributed to natural causes, something heart-related, the kind of sudden cardiac event that occasionally takes a man in his prime and surprises everyone. Julia collected from his estate and, as the

primary beneficiary of his insurance policies, from his death benefits. Four days after the funeral, she moved in with a man named Randy Thompson, with whom she had been having an affair while Glenn was still alive.

The case, at that point, was closed. There was no case. A grieving widow, a tragic heart attack, a fresh start. If Julia Lynn Turner had stopped there, she would very likely have gotten away with murder.

The same script, six years later

She did not stop there. Six years later, the debts had piled up again, and Randy Thompson had become, like Glenn before him, more useful dead than alive.

What happened to Thompson is uncanny in its sameness, and the sameness is the whole story. Three days before he died, he spent the evening with Julia. He fell suddenly, violently ill, flu-like, and went to the emergency room, where he was treated and discharged, just as Glenn had been. Julia fed him Jell-O. He was found dead the next morning. And Julia Turner, carrying substantial debt, collected over thirty thousand dollars as the beneficiary of Randy Thompson's life insurance.

A widow whose husband dies of a sudden mystery illness is a tragedy. A woman whose husband *and* whose next partner both die of the identical sudden mystery illness, both after a night with her, both after a bowl of Jell-O, both leaving her an insurance check, is not a tragedy. She is a pattern. And a pattern is precisely what forensic science is built to see.

The poison that pointed backward

This time, someone tested. Samples taken from Randy Thompson's body were analyzed, and they contained ethylene glycol. A Georgia Bureau of Investigation medical examiner identified the cause of death as ethylene glycol toxicity, a rare form of poisoning, the unmistakable signature of antifreeze in a human body.

And here is where the second murder reached back and exposed the first. A rare poison in Randy Thompson was a scream loud enough to make investigators turn and look again at the man who had died the same way six years earlier. Biological samples had been preserved from Glenn Turner's original 1995 autopsy. They were retested. Then Cobb County authorities exhumed Glenn's body, and additional tests were performed, and they confirmed it: ethylene glycol. The sudden heart attack that had closed the book on Glenn Turner in 1995 had never been a heart attack at all. It had been antifreeze, served sweet, and it had gone undetected for six years because no one had any reason to test a grieving widow's dead husband for automotive coolant.

At trial for Glenn's murder, the prosecution was allowed to put Randy Thompson's death before the jury as a similar transaction, evidence not that she should be punished for Thompson directly, but that the near-perfect duplication of method, symptoms, food, and financial motive made the poisoning of Glenn no accident and no coincidence. Julia Lynn Turner was convicted of the malice murder of her husband, and in 2007 the Supreme Court of Georgia affirmed. *(She would die in prison in 2010, a detail from the case's later history rather than this opinion.)*

How'd she get caught?

She was caught by her own encore. Julia Turner had, in Glenn's death, executed something close to a perfect murder: a sweet, hard-to-detect poison that mimicked natural illness, administered in a food built to hide it, resulting in a death no one thought to question and an insurance payout no one begrudged a widow. The poison did its job and then vanished from the story, because forensic toxicology only finds what it is told to look for, and no one told it to look. Had she retired on that success, the green Jell-O would have kept its secret. But a killer who has found a method that works comes to trust it, and Julia ran the identical play on Randy Thompson six years later, right down to the emergency room and the dessert. The second antifreeze death was the one nobody could wave off as coincidence, and the instant a lab named the poison in

Thompson, it named the poison in Glenn. She was not undone by a single fatal error. She was undone by doing the same thing twice, and trusting that lightning would be mistaken for nature a second time.

Read the case yourself: *Turner v. State*, 281 Ga. 647, 641 S.E.2d 527 (Ga. 2007), Supreme Court of Georgia, 2007. Free online: Justia. The poisoning of Glenn Turner, the strikingly identical death of Randy Thompson, the ethylene-glycol toxicology, the exhumation, and the admission of Thompson's death as a similar transaction are all set out in the opinion.

Interlude: The Rules of the Road

A short framing note for Part II. Not a murder case, but the law that governs every one of them.

Before the chapters that follow, in which cell towers and GPS units and geotagged photos deliver killers to the police, it is worth pausing on a question those cases quietly assume has an answer: when *can* the police use these tools against you? A phone that logs your every location is a prosecutor's dream, but it is also, in the wrong hands, a government's dream, and the same technology that catches a murderer can track an innocent citizen. Two decisions of the United States Supreme Court drew the constitutional lines that the American location cases in this book operate within, and they are worth knowing before we watch the machines testify.

The first is *United States v. Jones* (2012). Antoine Jones was a Washington, D.C. nightclub owner suspected of dealing cocaine. Investigators obtained a warrant to attach a GPS tracker to a Jeep registered to his wife, but the warrant let them install it in the District within ten days, and they installed it on the eleventh day, in Maryland. In other words, they did it without a valid warrant. Then they tracked the vehicle's every movement for twenty-eight days and used the data to tie Jones to a stash house.

The Supreme Court held that this was a "search" under the Fourth Amendment. The government's act of physically attaching a device to Jones's vehicle, an "effect" in the language of the Amendment, in order to gather information, was exactly the sort of trespass the Constitution was written to check. The police cannot simply bolt a tracker to your car and follow you for a month; doing so triggers the Fourth Amendment's

protections. It is the reason the GPS evidence in the murder cases that follow had to be obtained properly, and the reason a defendant like Raja Dosanjh (Chapter 11) would try, however unsuccessfully, to have his car's tracklog thrown out.

Its companion is *Carpenter v. United States* (2018), which extended the same caution from a device the police attach to one they merely ask a company to hand over. Timothy Carpenter was tied to a string of armed robberies at RadioShack and T-Mobile stores around Detroit after an accomplice named him. To build the case, the government obtained, without a warrant, months of Carpenter's historical cell-site location information, the log of which cell towers his phone had connected to, roughly 127 days of it, placing his phone near robbery after robbery. The government's theory was that this was fair game because the records belonged to the phone company, not to Carpenter, under the old rule that you surrender your privacy in information you hand to a third party.

The Court refused to go there. Acquiring that kind of pervasive, long-term record of a person's movements, it held, is a Fourth Amendment search that requires a warrant, even though a phone company holds the data, because a comprehensive log of everywhere you have been is exactly the sort of intimate portrait the Amendment protects. Modern life forces us to leave a locational trail with our carriers simply by owning a phone; that necessity, the Court reasoned, cannot mean we surrender the right to keep the government from freely reading it. *Carpenter* is the essential backdrop to every chapter in this book where historical cell-tower records place a killer, from the two phones on the same towers in the Millard cases to the timeline that helped convict Jennifer Pan.

Together, *Jones* and *Carpenter* are the rules of the road for everything in this part of the book. They do not stop the police from using cell towers and GPS to catch killers; the chapters that follow are proof that they use them to devastating effect. What the two decisions insist on is that the power be used under a warrant, with a judge in the loop, because a tool precise enough to convict the guilty is precise enough to surveil the innocent, and the line between the two is drawn not

by the technology but by the law that governs it. Keep these rules in mind as the machines begin to talk.

Read the cases yourself: *United States v. Jones*, 565 U.S. 400 (2012); *Carpenter v. United States*, 585 U.S. 296, 138 S. Ct. 2206 (2018), Supreme Court of the United States. Free online: Jones (Justia) · Carpenter: supremecourt.gov (slip opinion 16-402).

Chapter 9 - The Test Drive

They wanted a truck and didn't much care who came attached to it. Tim Bosma was chosen by his own online for-sale ad.

Some victims are hunted. Tim Bosma was, in the most ordinary and heartbreaking way imaginable, simply *shopped for*.

In April 2013 he did the thing thousands of people do every week: he posted his truck for sale online. He was thirty-two, living just outside Ancaster, Ontario, with his wife and small daughter, and the family had decided to part with his Dodge 3500 diesel pickup. A buyer messaged, and a viewing was arranged for the evening of May 6.

Two men turned up. The three went for a test drive, Dellen Millard at the wheel, Tim in the passenger seat, Mark Smich in the back. It is the most unremarkable scene in the world, a man showing strangers his truck, and it was the last thing Tim Bosma ever did. He never came home.

What his family could not have known, and what a jury would later assemble from the killers' own text messages, is that the test drive was not the beginning of anything. It was the last step of a plan that had been running for months, a plan that required a truck and was supremely indifferent to who owned it. Tim Bosma did not stumble into a robbery. He answered a classified ad that a pair of killers had, in effect, been waiting for someone to answer.

The mission

The Court of Appeal set out the Crown's case in a single paragraph so damning it is worth reading slowly, the way you'd read a shopping list found at a crime scene, because that is more or less what it is.

For months before Tim Bosma died, Millard and Smich had been texting each other about a “mission” to steal a truck. In the same messages they discussed acquiring and preparing something considerably more sinister than a crowbar: a ten-foot-tall animal incinerator. Millard, the aviation heir, kept it in the woods behind the barn on his farm, and it came with the sort of brand name a Hollywood screenwriter would reject as too on-the-nose. It was called **The Eliminator**. Other texts showed Millard buying a .380-calibre handgun the year before, and a photograph showed Smich cheerfully posing with it.

Line those facts up and the sequence turns your stomach. The gun, the incinerator, and the “mission” all existed before Tim Bosma entered the story. He was not the motive. He was the last item acquired, the truck’s unlucky current owner, selected the way you’d pick a listing off a screen, because he had the vehicle they wanted and because he would, quite reasonably, come outside and climb in to show it off.

The night of May 6 was reconstructed from surveillance cameras that caught the truck moving through the dark in pieces, like a flip-book with pages missing. The footage placed both men inside the Millard Air hangar at 1:33 a.m. Eleven minutes later, at 1:44, it captured a large flame blooming out of that same hangar. You do not need the rest of the evidence to know what that fire was. But the rest of the evidence came anyway, in piles.

What was left

When police found Tim Bosma’s truck, it was sitting at the home of Millard’s mother, which is not where careful men park the evidence. Tim’s blood was sprayed through the cab. The passenger window, his window, was shattered. Millard’s fingerprints were on the rear-view mirror and the driver’s door. Inside the truck were gunshot residue and a .380-calibre shell casing, the spent twin of the round that started this.

Behind the barn on Millard’s farm sat The Eliminator. Inside it were male human bones. On its hatch was Tim Bosma’s blood. The incinerator

had done what it was purchased to do, but a fire that erases a body does not erase the machine that held it, and Millard had kept the machine.

The aftermath kept manufacturing evidence like a factory nobody could shut off. After his arrest, Smich had friends fetch the murder weapon from a toolbox, then buried the gun and refused to say where, a plan that works right up until a friend decides to testify. From jail, Millard wrote letters to his girlfriend instructing her on how to obstruct the investigation and pin the whole thing on Smich, correspondence that did not stay private and became its own small disaster at trial.

Each pointing at the other

The trial ran six months, and its signature feature was the sight of two friends turning on each other with the enthusiasm of men who had just realized only one lifeboat remained. The lawyers call these “cut-throat defences,” and the name has never been more literal.

Smich took the stand and testified that Millard had brought the gun and shot Bosma, and that he, Smich, had only helped destroy the evidence afterward because he was “utterly shocked at everything,” a shock that apparently did not prevent him from being extremely helpful with the cleanup. Millard declined to testify at all, but his lawyer’s closing pointed the finger squarely back at Smich as the triggerman. The jury was invited, in effect, to believe both men’s accounts of the other, which together added up to a complete confession with the names left as an exercise for the reader.

In June 2016 the jury convicted both of first-degree murder. The appeals that followed were fought almost entirely over the procedural chaos of that two-headed defence, the character attacks, the rap lyrics admitted as evidence, the inflammatory closings, rather than over whether they’d done it. In June 2023 the Court of Appeal for Ontario worked through every ground, found most so weak it didn’t need to hear from the Crown, and dismissed both appeals. The evidence, the Crown had said, was overwhelming. The court gave no sign of disagreeing.

How'd they get caught?

They wrote it all down. That is the short answer and very nearly the whole one. The motive, the “mission,” the gun, the mail-order crematorium with the villain’s name on the side, all of it lived in text messages and photographs and a farm calendar, a premeditated murder helpfully preserved in writing months before its victim was even chosen. Then the physical world stepped forward to confirm what the phones had already confessed: cameras caught the truck and the 1:44 flame; the truck itself gave up Tim’s blood, Millard’s prints, and the shell casing; and The Eliminator surrendered the bones and blood the fire couldn’t reach. Two men had planned this crime down to the machine that would dispose of the body, and it never once occurred to either of them that a truck, a hangar, and a pair of cellphones are all just witnesses that don’t blink. Tim Bosma’s family learned what happened to him for one reason. His killers couldn’t stop taking notes.

Read the case yourself: *R. v. Millard*, 2023 ONCA 418, Court of Appeal for Ontario, decided June 14, 2023 (Gillese J.A.; heard with Smich’s appeal). Free online: CanLII. The overview and the Crown’s evidence summary open the judgment; the bad-character and jury-instruction grounds follow. **Companion chapters:** the same killers were separately convicted of murdering Laura Babcock (*R. v. Millard*, 2023 ONCA 426, Chapter 10).

Chapter 10 - If You Go Swimming

They burned the body, sank the phone, and left no crime scene. Then one of them wrote a rap song about exactly where to find the phone, and performed it on video.

The law does not require a body to prove a murder. It requires proof. Dellen Millard and Mark Smich seem to have understood the first half of that sentence and given no thought whatsoever to the second, because they went to enormous trouble to erase Laura Babcock from the physical world and then documented her killing so thoroughly, so chattily, so proudly, that a jury could reconstruct it almost entirely from their own phones.

Laura Babcock was twenty-three, a Toronto woman who had briefly dated Millard. Millard was the son of a wealthy aviation entrepreneur, and at nearly thirty he was still enjoying the family's toys: a house in Etobicoke, an airport hangar near Waterloo, a farm. His close friend Smich came from the wrong side of every track there is, a drug dealer whom Millard kept flush with cash, food, and somewhere to sleep. The two of them liked to run what they called "missions," petty crimes committed for sport.

The trouble started in February 2012, when Laura told Millard's girlfriend, Christina Noudga, that she had recently slept with Millard. Noudga was not pleased. And in April, in text messages a jury would one day read back to him line by line, Millard made his girlfriend a promise. He was going to "remove [Laura] from [their] lives." He would first "hurt her," then "make her leave." Noudga replied that this made her feel "really loved and all warm on the inside," which tells you most of what you need to know about the emotional weather of this relationship.

The shopping list

What lifts this from an ugly threat to premeditated, first-degree murder is what Millard did next, and he did all of it with the discretion of a man live-tweeting his own crime.

By May 4 he was asking a friend to keep him posted “on where [Laura] goes out to.” Over the next two months, with Smich’s help, he set about acquiring an incinerator large enough to cremate a human being. His cover story, offered to a mechanic at his hangar, was that he planned to go into the animal-cremation business with his uncle, a veterinarian. The uncle later testified he had never heard of any such plan and pronounced the idea “absurd,” with a particular contempt reserved for the notion of a *mobile* animal-incineration service, which Millard had also floated. When the homemade unit failed, Millard simply ordered a commercial one. It arrived at the hangar on July 5, with a brand name stamped proudly down the side: **The Eliminator**. You cannot make this up, and more to the point, neither could the defence.

In the same stretch, between June 30 and July 3, Millard bought a .32-calibre handgun from a friend of Smich’s sister and arranged for ammunition. A year later, police would turn up a matching .32 Smith and Wesson revolver at Millard’s house, wearing his DNA on the handle.

A gun. A crematorium. A request to track the victim’s movements. All of it in place before anything happened to Laura Babcock.

July 3, in fifteen-minute intervals

On the evening of July 3, 2012, the phone records take over the storytelling, and they narrate an abduction in increments a bus schedule would envy.

Between 5:40 and 7:03 p.m., Laura’s cellphone travels from Kipling subway station to the area of Millard’s Etobicoke house. A phone used by Millard moves through the identical locations at the identical times, the two of them plainly travelling together. At 6:51 p.m., Millard texts Smich: “I’ll be back in 15 mins, don’t be out front.” At 7:33 p.m. he texts

again, saying he's on a "mission" and back in an hour, while both phones, his and Laura's, drift north on Highway 427 and then return. At 10:20 p.m., Noudga texts him: "I'll see you Friday, have fun doing big things."

Laura Babcock's phone made its last outgoing contact at 7:03 that evening. She was never heard from again. Not by her family, not by the friends she spoke to constantly. Her bank account and credit card went silent. She left behind an envelope with \$1,000 in cash and the dog she adored. Her phone finally died the next morning, July 4, around 11:00 a.m., and in its last minutes it can be tracked moving along Lakeshore Boulevard, beside Lake Ontario, with a phone used by Millard travelling the very same route at the very same time. The Crown's theory was that he was throwing hers into the lake. Remember the lake.

"It's ready for meat"

If the planning was reckless, the disposal was practically a group project with a comment thread.

At 10:00 a.m. on July 4, Millard texted Smich, "I rolled my first spliff." At 2:40 p.m., his phone photographed something rolled in a tarp, the size and shape of a body, its metal grommets visible in the shot, part of his father's vehicle with its handy elevating gate parked in the background. At 3:21, Smich texted back, "How's the spliff." When police later found The Eliminator, five grommets matching the tarp in that photo were sitting in the ash inside it. Millard's calendar, meanwhile, carried a July 7 entry that read, with breezy horror, "barn smell check."

Over the following weeks the two men got the incinerator running and built a trailer so the massive thing could travel. On July 21, Millard texted that he'd "picked up the BBQ" and asked Smich to come over without his girlfriend. Smich's reply: "She can wait in the front while we [are] out back talkin to that girl ... if [you] know what I mean." And on July 23, at around 3:00 p.m., Millard sent the line that will outlive them both: **"BBQ has run its warm up, it's ready for meat."**

That night, Smich's girlfriend was driven to the farm and told to sit in the car with her headphones on, which is a difficult instruction to make innocent. The two men spent half an hour in the barn, then towed the incinerator to the hangar, where she saw smoke rising from it. At 10:38 p.m., Millard's phone ran a search that no one has ever run for a wholesome reason: "what temperature is cremation done at?" Just after 11:14, his phone photographed Smich standing before the running Eliminator, smiling, holding an ash rake like a proud host at a cookout. Four minutes later it photographed the inside of the machine, in operation, bone fragments visible in the frame.

The song

And then, because apparently nothing about this crime could be kept off the record, they set it to music.

At 12:40 a.m. on July 24, within two hours of the cremation, a file was created on an iPad. Not just any iPad. Laura's iPad, which had been plugged into Millard's computer the morning after she vanished and helpfully renamed "Mark's iPad." The file contained lyrics Smich was composing:

The bitch started off all skin and bone, now the bitch lay on some ashy stone, last time I saw her was outside the home, and if u go swimming u can find her phone.

He performed it, too. In a garage that August, Smich rapped it for two high-school kids he sold drugs to and then explained that "they" had torched a woman's body and thrown a phone in the lake. In September he performed it again in Millard's basement, and Millard, ever the archivist, recorded the whole thing on his iPhone, where police eventually found it. Smich was later caught holding Laura's iPad and her red suitcase, the last souvenirs of a woman he'd helped burn.

A jury convicted both men of first-degree murder in December 2017. In June 2023 the Court of Appeal for Ontario dismissed every ground of

appeal. The only relief either received was a technicality about how their parole-ineligibility periods stack, a footnote generated by a different Supreme Court case, and cold comfort for men already serving life for the murder of Tim Bosma (Chapter 9).

How'd they get caught?

They could not stop performing. Every single stage of this murder, the motive, the planning, the abduction, the cremation, the disposal, was committed to a device, a text, a photograph, a calendar entry, a Google search, and finally a song they wrote, rapped, and filmed. Laura Babcock's body was burned to fragments and her phone was thrown, per the lyrics, exactly where you'd go swimming to find it. It didn't save them. Two men had spent a year assembling the Crown's exhibit list on her behalf, and one of them had even set it to a beat. The rap ended with a taunt about a phone at the bottom of a lake. It should have ended with a warning about the one in his own pocket.

Read the case yourself: *R. v. Millard*, 2023 ONCA 426, Court of Appeal for Ontario, decided June 15, 2023 (Paciocco J.A.). Free online: CanLII. The material facts, including the texts, cell-tower traces, photographs, and the “ashy stone” lyrics, are set out at paras. 5-26.

Companion chapter: the same killers murdered Tim Bosma ten months later (*R. v. Millard*, 2023 ONCA 418, Chapter 9).

Chapter 11 - Never Rent a Getaway Car

He rented the getaway car under a fake name to keep it far from him. The fake name is the exact reason the car's testimony could never be thrown out.

There is a certain kind of criminal who plans everything, and Raja Dosanjh was that kind of criminal, right up until the part where the planning turned around and bit him.

At 4:38 on the afternoon of March 1, 2016, Aly Sunderani stepped out of his Range Rover under the carport of the Comfort Inn in Guelph, Ontario. He managed the place. It was his workplace, an ordinary Tuesday, the sun still up. A man walked up to him and opened fire with a submachine gun, hit him thirty-one times, three of the rounds finding his heart, dropped the weapon beside the body, slid into a waiting black Infiniti QX60, and was gone before the echo faded.

No masked prowler in the dark. No body spirited away to a shallow grave. A killing committed in broad daylight, in front of a hotel lobby, on camera. And yet the case that followed was built entirely on circumstance, because the one thing all those cameras never quite caught was the gunman's face.

What the Crown had instead, when Dosanjh finally stood trial three years later, were four pillars, and the fourth is the one that makes this a chapter and not just a tragedy. The first three were solid enough: his DNA on the grip of the gun left at the scene, a mix some 3.7 million times likelier to include him than not. The getaway Infiniti, rented from a Mississauga agency a few hours before the shooting by a man calling himself "Jaspinder Nagra," who was, nobody disputed, Dosanjh. And the rental agency's cameras, which had a good long look at that man's pants,

shirt, and shoes, the very outfit worn by the gunman on the hotel's video, filmed from the chest down.

The fourth pillar was the car itself. Because the Infiniti, it turned out, had been keeping a diary.

The car that kept a diary

The QX60 came with an infotainment system, the glossy touchscreen that runs the maps and the music and, like nearly every car built this decade, quietly logs everywhere it goes without being asked and without ever forgetting. When Ontario Provincial Police pulled the tracklog, they didn't get a vague sense of the vehicle's day. They got an itinerary a travel agent would be proud of:

1:16 p.m. Rolls out of the rental lot in Mississauga. **1:28 p.m.** Arrives at the home of the parents of Dalvir Passi, Dosanjh's brother-in-law. Sits eleven minutes. **3:52 p.m.** Pulls into the Comfort Inn lot in Guelph and parks around back, where it waits the better part of an hour, patient as a cat. **4:38 p.m.** At the exact minute Aly Sunderani is shot, rolls to the front of the hotel, then bolts.

From there the diary keeps writing: back to the Passi parents' place, then on to the home of Dosanjh's sister and brother-in-law. And the hotel's own surveillance video confirmed the car's account frame for frame, two witnesses telling the identical story, one of them a Nissan product.

Dosanjh seems to have sensed, on some level, that the car knew too much. The next evening he returned it to the agency and asked his brother-in-law to pick him up, but not at the agency itself. He wanted to be collected from a gas station across a busy street, a careful little moat of distance between himself and the vehicle, as if the Infiniti were a witness he didn't want to be seen leaving the courthouse with. The instinct was correct. The execution was three years too late.

Two bald men and a video game defence

The defence's answer to all this arrived by way of the brother-in-law, and it was ambitious. Passi testified that after the rental, two tall, white, balding strangers he had never seen before turned up at his parents' house, borrowed the QX60 from Dosanjh to run a drug deal, and returned it later that day. And what, you may ask, were Dosanjh and Passi doing while the Infiniti was allegedly off committing a submachine-gun murder in another city? They were, Passi said, playing video games.

The story had exactly one thing going for it, and to be fair it was a real thing. The Comfort Inn's front-desk manager had watched the shooting through the lobby window and described the gunman as fair, white-complexioned, "less hairs on his head." Dosanjh's own lawyer described his client, accurately, as a tall, brown-skinned young man with a full head of dark hair. It is not nothing to have an eyewitness put a bald white man where your client's head of hair should be.

But two other eyewitnesses pointed the other way, and juries are asked to weigh whole cases, not single threads. On one side of the scale: two mysterious bald men, a borrowed car, and an afternoon of video games no one else witnessed. On the other: Dosanjh's DNA on the murder weapon, his outfit on two separate videos, and a car that had personally driven the jury to the crime scene and parked there at the killing minute. On August 1, 2019, the jury returned a verdict of first-degree murder, unmoved by the bald men.

The trap inside the fake name

On appeal, Dosanjh's lawyers went after the diary, and their argument was a good one. The police, they said, had searched the infotainment system without a warrant, digging through GPS records that laid bare their client's movements, a "biographical core" of personal information that section 8 of the Charter is supposed to protect. If that search was unconstitutional, the tracklog could be thrown out, and the fourth pillar would come down.

The Court of Appeal for Ontario's answer, handed down by Associate Chief Justice Fairburn in October 2022, is the dark joke this whole chapter has been walking toward. Charter privacy claims belong to people who have a genuine connection to the thing being searched, through ownership, or control, or a right to be where they were. And what was Dosanjh's connection to the Infiniti? A rental contract signed by Jaspinder Nagra, a man who does not exist. The GPS data, the court noted almost drily, came from a vehicle Dosanjh had "no right to be driving." The synced contact list wasn't even from his own phone. Tracking data, the court added, sits pretty far down the privacy ladder to begin with, since it shows where a car went, not the secrets of a soul.

So Dosanjh had no reasonable expectation of privacy, no standing to complain, and, the court said for good measure, even if the search had crossed a line, the evidence was reliable and would have come in regardless.

Sit with the shape of that for a second. The fake name was supposed to make the car impossible to trace back to him. What it actually did was make the car's memory impossible for him to touch. He had disowned the Infiniti so completely, so successfully, that when the machine climbed into the witness box and recited his entire afternoon, he had no legal standing to so much as object. He had won the argument that it wasn't his car, and the prize was a conviction.

The appeal was dismissed.

How'd he get caught?

He was caught by the passenger seat, the one part of the plan he never thought about. The false identity, the two-bald-men story, the gas station across the street, the whole architecture was engineered to keep Raja Dosanjh's name off that getaway car. And it worked. The name never stuck. But the car had never needed his name. It logged the rental lot, the family driveway, the hotel, and the murder minute all on its own, his DNA rode the gun, and the same cameras that never saw his face remembered his wardrobe cold. The modern getaway car is the worst

accomplice a killer can choose. It follows you everywhere, remembers everything, keeps its receipts, and owes you absolutely nothing, least of all when you've spent three years insisting you were never really its driver.

Read the case yourself: *R. v. Dosanjh*, 2022 ONCA 689, Court of Appeal for Ontario, decided October 7, 2022. Free online: CanLII. The factual matrix is set out in the Overview and Factual Context; the infotainment/GPS privacy analysis begins at the section on the search of the getaway vehicle.

Chapter 12 - The Home Invasion That Wasn't

She called 911 to report a home invasion, and police found her tied to the banister. But the intruders had shot both her parents and left her without a scratch, and in a house they had supposedly come to rob, her mother's car keys sat untouched.

A staged crime scene is a story told in objects, and like any liar, it can be caught in a contradiction. The scene Jennifer Pan presented to the police on the night of November 8, 2010, told one story out loud and another under its breath, and the gap between them, widened by a mountain of digital evidence, is what unravelled a daughter's plot to have her own parents murdered.

That night, in a subdivision in Markham, Ontario, three men entered the home Pan shared with her mother and father, Bich-Ha Pan and Hann Pan. The men took control of the family, marched the parents down to the basement, and shot them. Then they left, and, tellingly, they left Jennifer Pan behind, unharmed. A neighbour's surveillance camera caught the choreography with quiet precision: three people entering at 10:14 p.m., one leaving at 10:30, two more by 10:32.

Pan called 911 to report a home invasion and a shooting. When officers arrived, they found her tied to a banister. Her father, gravely wounded, had managed to drag himself to a neighbour's house. Her mother died that evening. Her father, against the odds, survived, and survival made him a witness.

The story the objects wouldn't tell

On its face, it was a home invasion gone horribly wrong, a robbery turned double shooting. But the scene, examined closely, kept refusing to cooperate with that story.

Start with Jennifer Pan herself. Three armed men had taken control of a household, executed both parents in the basement, and then, rather than eliminate the one adult witness who could describe them, gently left her alive and tied to a banister. Killers who have just shot two people do not usually leave the third carefully unharmed. Then consider what the “robbers” took, which was next to nothing. They had demanded money, and the master bedroom looked ransacked, but the valuables that a real thief grabs on the way out were left sitting in place. Most tellingly of all, the keys to Pan’s mother’s car, parked right there in the driveway, an easy prize for anyone fleeing a crime, were never touched.

The forensic scene added only silence where a robbery-murder should have left noise. Neither Pan nor her father could positively identify the men. There were no relevant fingerprints. No usable DNA. None of the bullets could be matched to a gun. Standing alone, that absence proved nothing. But a home invasion that leaves a witness alive, ignores the car keys, and takes nothing worth taking is not a robbery. It is a performance, and performances have scripts, and in 2010 the script was written on a phone.

Game time

The prosecution’s case was carried by a vast body of cellphone evidence and text messages, and it read, in the end, like the log of a project plan.

The theory the evidence supported was that Jennifer Pan had arranged for her own parents to be killed, a murder-for-hire she routed through her former boyfriend, Daniel Wong, and his friend Lenford Crawford, with the shooting itself carried out by hired men including David Mylvaganam. Her motive, the Crown argued, was a life her strict parents would not allow her to have: to escape a suffocating home, to be

with Wong, and to inherit her share of her parents' estate and life insurance. The price was \$10,000 for the killing, plus \$2,000 the night of.

The digital trail tracked the conspiracy like a heartbeat monitor. This was not even Pan's first attempt; earlier in 2010 she had tried to arrange the murder through another man who simply never followed through. When that failed, she turned to Wong, who connected her to Crawford, and from August 2010 she was texting Crawford from her iPhone using a SIM card Wong had supplied. Through late October the plan firmed up, the contract price settled by an exchange of calls and texts among the conspirators. And on the morning of November 8, Crawford sent Pan a text that a screenwriter would blush to invent. After work, he wrote, it would be "game time."

Game time came. Cellphone records showed the gunmen driving from Rexdale to the Pan neighbourhood in Markham that evening. Shortly before the shootings, one of their phones called Pan twice. After the shootings, cell-tower records tracked that phone retreating back to Rexdale, while a chain of intermediaries relayed word up the line that everything was okay. And a friend of Pan's, Andrew Montemayor, testified that just before the "home invasion," Pan had told him her plan: to stage exactly such an invasion, that night, in which her parents would be shot.

The scene said robbery. The phones said contract. The phones were telling the truth.

An unfinished ending

Jennifer Pan and her three co-accused were convicted of the first-degree murder of her mother and the attempted murder of her father. But this is one of those cases, and the book is honest about them, where the appellate courts were not finished.

The Court of Appeal for Ontario, in 2023, set aside the first-degree murder convictions and ordered a new trial on that count, not because it doubted the evidence of the plot, but because of an error in how the jury

had been instructed about the lesser offences it could consider. It upheld the attempted-murder convictions. The Crown appealed to the Supreme Court of Canada, seeking to restore the murder convictions outright; the accused cross-appealed, seeking new trials on everything. In April 2025, the Supreme Court largely held the line the Court of Appeal had drawn: a new trial is required for all the accused on the first-degree murder count, while the attempted-murder convictions stand. As of this writing, then, the murder case built on that staged scene and those damning phones is headed back to a courtroom to be proven again.

How'd she get caught?

She was caught by the difference between the story she staged and the story her own life had recorded. Jennifer Pan built a home invasion for the police to find, and she got the broad strokes right, the terror, the ransacked room, the daughter bound and weeping. What she could not control were the details that a real robbery would have left differently: the witness inexplicably spared, the car keys no thief would ignore, the valuables no thief would leave. And what she could not erase at all was the plan itself, which she had not kept in her head but had typed, sent, and received, over months, across a web of phones that remembered every call and every “game time” text long after her mother was dead. A staged scene can fool the eye for a night. It cannot outlast the paper trail of the people who agreed, in writing, to build it.

Read the case yourself: *R. v. Pan*, 2023 ONCA 362 (Court of Appeal for Ontario); *R. v. Pan*, 2025 SCC 12 (Supreme Court of Canada, decided April 10, 2025). Free online: CanLII (ONCA) · CanLII (SCC). The staged scene, the cellphone and text evidence, and the murder-for-hire theory are set out in the Court of Appeal’s reasons; the disposition (a new trial on first-degree murder for all accused, the attempted-murder convictions standing) is settled in the Supreme Court’s 2025 decision. **Note:** as of this writing the first-degree murder charges are to be retried. The often-cited “700,000 records” figure comes from reporting; the decisions describe “a large volume” of cellphone and text evidence.

Chapter 13 - He Said He Went Fishing

His alibi was that he'd been fishing in San Francisco Bay. Four months later his wife's body washed ashore a mile from the exact spot, and the GPS on his rental cars showed he kept driving back to it.

On Christmas Eve 2002, Laci Peterson, eight months pregnant, vanished from her home in Modesto, California. Her husband, Scott, told police he had spent the day fishing. Not nearby. He had driven roughly ninety miles to the Berkeley Marina on San Francisco Bay, launched a boat, fished for an hour or two in the cold, and come home to find her gone.

It is worth pausing on how strange an alibi that is before a single piece of forensic evidence enters the room. December 24 in the Bay was gray, damp, and raw. The marina was nearly empty. A man whose very pregnant wife was at home for the holidays had, on this account, driven three hours round trip to stand in a boat in the wind. Even Laci's stepfather, an avid fisherman himself, remarked at the time that it was an awfully late, awfully cold hour to be going out.

The alibi was a place. And the trouble with building your alibi around a place is that the place can be watched, and, as it turned out, the place could give up a body.

The fisherman who couldn't fish

Before the machines said anything, Scott Peterson's own story kept tripping over its feet.

He had, it emerged, bought the boat in near-total secrecy. On December 7, the day after he learned he could no longer hide the existence of his marriage from a woman he was seeing, someone on his home computer went searching classified ads for boats. He inspected one the next day and bought it on December 9, taking it without the anchors that came with it. He never registered it. He never mentioned it to his father, or to his fisherman stepfather who had invited him out many times, or to the friend he regularly talked fishing with. A man does not usually hide a new boat from the exact people who would be delighted by it, unless the boat is not really for fishing.

The same computers showed searches, on December 8, for boat ramps and nautical charts, for currents and maps of the Berkeley Marina and the waters around a spot called Brooks Island. In his boat, police found a homemade anchor made of cement. In his truck bed, more cement, and a claw hammer dusted with cement powder, which is a curious amount of masonry for a fishing trip.

And when the state put a genuine expert on the stand, a published author on Bay fishing, the alibi didn't just weaken, it was dismantled point by embarrassing point. Brooks Island was the wrong place for the sturgeon Peterson's own searches suggested he was after; they schooled elsewhere that time of year. Sturgeon want live bait, not the lures he carried. His rod was too weak to land one anyway. Reeling one in demands solid anchoring, which his sad little cement block could not provide. And trolling for sturgeon, the method he claimed to have used, was flatly illegal. Peterson had constructed an alibi around a kind of fishing that, in that place, at that time, with that gear, was essentially impossible. He had picked a cover story he did not know enough to tell.

Then there was the reason for all of it. On December 30, a woman named Amber Frey walked into a police station. She and Peterson had been dating since November, seriously enough that he had met her daughter and discussed having children, seriously enough that she had no idea he had a wife. When she learned the missing pregnant woman on the news was married to the man she'd been seeing, she went to the police, and soon she was recording their calls.

The tracks he couldn't stop making

Here is where this becomes a location chapter, and one of the most quietly damning in the book.

In January, with a warrant, the Modesto police mounted a surveillance camera outside Peterson's home and attached GPS tracking devices to his vehicles. Not one vehicle, because Peterson had taken to renting a rotating series of cars and trucks, a few days at a time, a habit that itself invites a question. The GPS data, backed up by officers' own eyes, told a story no innocent explanation ever quite covered. At least five times that January, Scott Peterson drove the ninety miles from his home to the Berkeley Marina. On January 5 he went in a gray Subaru, stayed five or ten minutes, and left. On January 6 he came back in a red Honda, again for only minutes. On January 9, a white pickup. A different vehicle nearly every time, each making the same long pilgrimage to the same cold stretch of water, to stand there briefly and go home. On January 11, realizing the police were onto him, he stopped, and the department shut the surveillance down.

Think about what those trips are, and are not. They are not fishing; he never launched a boat. They are a man drawn back, again and again, ninety miles each way, in a carousel of borrowed cars, to the one place on earth he should have wanted never to see again. The GPS did not record a killing. It recorded something almost worse: the helpless orbit of a man circling the water he had put his wife into.

Because that is where she was. In mid-April, after a heavy storm churned the Bay, a couple walking their dog found the body of a baby near the southern tip of Brooks Island. The next morning, Laci's body washed ashore, just over a mile from the same island. DNA confirmed them: Laci and her son, Conner. They had surfaced at the precise place Scott Peterson said he had gone fishing, and the precise place his rented cars kept quietly returning to for a month.

Peterson seemed to sense the tide turning before the bodies did. On April 12, the day before the baby was found, he bought a car using his mother's name. He grew a goatee, and he dyed his hair. When police,

fearing he would run, arrested him on April 18, the disguise told them everything the GPS already had.

What the appeal decided

A jury convicted Scott Peterson of the first-degree murder of Laci and the second-degree murder of Conner, found the multiple-murder special circumstance true, and sentenced him to death. In 2020 the Supreme Court of California affirmed the guilt convictions, rejecting his claim that the storm of pretrial publicity had denied him a fair trial. It did, however, reverse the death sentence, finding the trial court had made significant errors in selecting the jury that decided his punishment. *(He was later resentenced to life, a development that comes from news coverage rather than this decision.)* His convictions for the murders stand.

How'd he get caught?

He was caught by the place he chose to hide behind. Scott Peterson wanted an alibi with distance in it, ninety miles of it, so he pointed to a marina and a fishing trip he was too ignorant of fishing to fake. But an alibi anchored to a spot on the map is a hostage to that spot, and this one betrayed him twice. First the GPS on his ever-changing rental cars caught him returning to that cold water over and over, the compulsive circling of a man who could not stay away from what he'd sunk there. Then the Bay itself, on its own schedule, handed Laci and Conner back to shore within a mile of it. He said he went fishing. The one thing he managed to catch was himself.

Read the case yourself: *People v. Peterson*, 10 Cal. 5th 409, 472 P. 3d 382 (2020) (No. S132449), Supreme Court of California, decided August 24, 2020 (Kruger, J.). Free online: Justia. The factual narrative, the fishing-alibi evidence, and the January GPS surveillance are set out in the opinion's statement of facts; the guilt affirmance and the reversal of the death sentence follow.

Chapter 14 - The Blind Photo From Inside a Pocket

Somewhere on the drive to a robbery that would end in murder, a phone in someone's pocket took a picture of the inside of that pocket. No one meant to take it. It was pure darkness. And it was stamped with the time and the place.

Modern phones are always half-awake, and every so often, jostled in a pocket or a bag, one of them fires the camera at nothing and saves a black rectangle no human eye will ever want to see. Usually these accidental photos are deleted with a shrug. In the case of Melissa Zielinski, one of them helped place her near the scene of a killing, because a photo of nothing is still a photo of *somewhere*, at *some time*, and a phone records both whether you asked it to or not.

On August 27, 2020, Karl Henderson was robbed and fatally shot in the home he shared with his father in Lino Lakes, Minnesota. Henderson's father came home to find a man and a woman walking up from the basement, the man carrying a large object. He told them to stop. They kept walking, and left. When he went down to the basement, he found his son shot on the floor. The large object the man had been carrying was a safe, the safe in which Karl Henderson was known to keep as much as fifty thousand dollars.

A plan with a paper trail

Melissa Zielinski needed money to buy a house, and the evidence showed she had Henderson's name, his number, and a plan, worked out with a man named Nicholas, to rob him. Like so many people in this book, she left that plan lying around in the one place people forget is permanent: her phone.

The day before the robbery, she texted her own son that “we are going to collect some money that’s owed to me hopefully.” Her son, reading the situation more clearly than perhaps she intended, replied, “So you and Nick are going to muscle some money.” Zielinski’s answer has the ring of a woman talking herself into something: “Hopefully. I’ve waited long enough.” In the days *after* the killing, her phone kept confessing. Her internet history filled with searches about SentrySafe brand safes, the very brand she and Nicholas had hauled out of the basement and now needed to crack open. And she visited a Star Tribune news article whose headline told her exactly how much trouble she was in: “Shooter left murder weapon next to body in Lino Lakes home.”

Against that backdrop came the accidental photograph. Investigators searching her phone found an image taken, apparently by mistake, from inside a pocket, a picture of nothing at all. But the phone had geotagged it, silently recording the GPS coordinates where it was snapped, and those coordinates placed the phone about a nine-minute drive from the crime scene, at around the time of the murder. Nobody posed for it. Nobody knew it existed. It was the purest kind of evidence, a witness that could not be coached because it did not know it had seen anything.

The honest weight of it

It would make a tidier story to say the pocket photo cracked the case open, and this book has told plenty of stories where a single stray thread did exactly that. Zielinski’s is not quite one of them, and the Minnesota Supreme Court was candid about why, in a way worth borrowing.

The accidental photo was not the only thing placing Zielinski near the killing; it was, if anything, the least of it. Cell-phone location data obtained by warrant from her carrier showed her phone travelling with Nicholas’s phone to the murder scene at the time of the murder and returning together afterward, a far more complete account than one blind snapshot. Her DNA was found on the very safe stolen from Henderson’s home. A friend testified to helping her break into it. The “I’ve waited long enough” texts supplied motive and intent; the safe searches and the

news-article visit supplied consciousness of guilt. As the court put it, even without the accidental pocket photo, the state's case overwhelmingly proved her guilt.

That candor is the point, not a weakness. The accidental photo is memorable precisely because it is so absurdly, mechanically honest, a phone betraying its owner by taking a picture of the inside of her own coat, and the strength of the case did not have to rest on it because everything else, the phone that travelled with the killers and the DNA on the stolen safe, was already saying the same thing. Melissa Zielinski was convicted of first-degree intentional murder. On appeal, the Minnesota Supreme Court affirmed that conviction, correcting only a technical problem, the entry of a duplicate second-degree murder conviction for the same killing, which it reversed.

How'd she get caught?

She was caught the way most people in the smartphone age are caught: by a device that documented her whole day and had no loyalty to her at all. Melissa Zielinski planned a robbery in texts, researched the safe in her search bar, read about the murder in the news, and carried, through all of it, a phone that logged where she went as faithfully as it logged what she typed. And at some point, unbidden, that phone reached into its own pocket and took a photograph of the dark, stamping it with a time and a place near a dying man. She never took that picture; her pocket took it. But it did not matter who pressed the button, because the machine was keeping the record either way, and the record did not care that no one was looking.

Read the case yourself: *State v. Zielinski*, 10 N.W.3d 1 (Minn. 2024) (No. A22-0710), Supreme Court of Minnesota, 2024. Free online: Justia. The robbery-murder, the incriminating texts and searches, the geotagged accidental photo, and the cell-phone location and DNA evidence are set out in the opinion, which affirms the first-degree conviction and reverses a duplicative second-degree count. The court expressly notes the case was overwhelming even without the photo.

Chapter 15 - The Cameras on the Interstate

He drove to the killings in his dead sister's car, a black Honda with distinctive chrome trim. It was the most recognizable vehicle he could have chosen, and the licence-plate readers on the interstate recognized it all the way home.

Grief curdles, sometimes, into something murderous, and Cody LaBranche's had. His sister Brittany had died of a drug overdose, and LaBranche blamed the man she had lived with, Jonathan Pizzuto, convinced Pizzuto was responsible for her death and suspecting she had been murdered. The grievance festered, feeding on smaller insults, disputes over Brittany's belongings, her cremated ashes, her pets, all still in Pizzuto's house. In the days before the killings, the record showed LaBranche trying again and again to contact Pizzuto.

On January 17, 2022, the bodies of Jonathan Pizzuto and William Mitchell, a guest who had been sleeping on Pizzuto's sofa, were found at the house on Rosa Avenue in Metairie, Louisiana. There were no weapons at the scene, but investigators recovered ten spent .45-caliber casings. Pizzuto's dog was gone.

LaBranche had a plan for the getaway, of a sort. What he did not have was an inconspicuous car.

The most memorable car he could have picked

When Brittany died, LaBranche took possession of her vehicle, a black Honda Accord with chrome trim, and it was that car he drove to Rosa Avenue. As the investigation began, a suspect vehicle came into focus

quickly and stayed there, because it was hard to miss: a small, black, four-door sedan with distinctive chrome features, captured on home surveillance video leaving the scene minutes after the gunshots. A neighbour saw a figure in dark clothing walk out of the victims' house, get into that car, and accelerate away.

From there the car was traceable, because it had a paper identity. Police linked the distinctive sedan to Brittany LaBranche's Honda Accord, now registered to Cody LaBranche's mother, at the same Ponchatoula address where LaBranche himself lived. A dead woman's car, inherited by her aggrieved brother, still carrying its plates and its papers, is not a getaway vehicle. It is a return address.

And then the interstate finished the job. Investigators pulled data from Automatic Licence Plate Reader systems, the networks of cameras that photograph passing plates and timestamp their locations, and the readers had seen the Honda. Hours after the murders, the Accord was recorded travelling northbound on Interstate 55 near Hammond, leaving the New Orleans area within the exact window of the killings, on a trajectory that matched a drive from Metairie, where two men lay dead, home toward Ponchatoula. The killer had not been followed by any detective that night. He had been followed by the road itself, one automated camera handing him to the next as he fled north, building a timestamped map of his escape that no one had to be awake to draw.

The confession, and the river

The plate readers put the car on the highway. LaBranche's own mouth put him behind the wheel. Arrested on February 11, 2022, and advised of his rights, he gave a recorded statement in which he laid it out: he had armed himself at home, driven to the Rosa Avenue house to confront Pizzuto about his sister, entered through the side door, and opened fire, shooting Mitchell first and then Pizzuto. He denied taking the dog. He admitted throwing the murder weapon into a river, the one piece of evidence he successfully made disappear, and the one that mattered least, since the rest of the case did not need it.

He was convicted of two counts of first-degree murder and, on appeal in 2025, the Louisiana courts affirmed. The ALPR trail was one strand among several, the surveillance video, the neighbour, the vehicle's registration, the confession, but it was the strand that turned a distinctive car glimpsed leaving a murder scene into a documented, minute-by-minute flight up the interstate.

How'd he get caught?

He was caught, in part, because he committed a murder in a billboard. Of all the cars Cody LaBranche might have driven to Rosa Avenue, he chose the one nobody could forget and everyone could trace: his dead sister's black Accord with its chrome trim, registered to his own mother at his own address. It announced itself on the victims' security cameras, and then, as he fled, it announced itself again to the licence-plate readers strung along Interstate 55, which do nothing all day but memorize the plates of passing cars and remember exactly when and where they saw them. A getaway depends on being forgotten. LaBranche fled in a vehicle built, almost, to be remembered, past a system of cameras designed for nothing else, and by the time he reached Ponchatoula the road had already written down where he had been.

Read the case yourself: *State v. LaBranche*, No. 25-KA-184 (La. App. 5 Cir. 2025), Court of Appeal of Louisiana, Fifth Circuit; FindLaw case ID 118267251. Free online: FindLaw. The murders, the distinctive-vehicle identification, the ALPR tracking of the Honda Accord northbound on I-55, and LaBranche's confession are set out in the opinion. (Citation note: cite by docket No. 25-KA-184 for now; because the opinion is from late 2025, a bound So. 3d page has likely not been assigned yet and it may exist only as a 2025 WL slip cite. Confirm before print.)

Chapter 16 - The Phone That Outlived Its Owners

A retired couple vanished on a summer road trip and were never seen again. Two hours after they disappeared, someone used their cell phone to call an old girlfriend. That someone was not on their Christmas-card list.

On the third of July, 2010, Lyle and Marie McCann, a retired married couple, left Edmonton in a large motor home towing a Hyundai SUV, bound for a family vacation in British Columbia. A store camera in St. Albert recorded them buying groceries and gasoline, ordinary people doing an ordinary errand, and at 10:08 that morning they pulled onto Highway 16 heading west. No one who knew them ever saw them alive again. Their bodies have never been found.

What happened between that grocery run and their disappearance had to be reconstructed almost entirely from the trail their killer could not stop leaving. And the first thread in that trail was the most modern kind of witness there is: a telephone that kept working after its owners were gone, and kept a record of every person the new man in possession of it decided to call.

Two hours later, a phone call

That summer, Travis Vader was unemployed, penniless, and deep in a substance-abuse problem. On July 3 he drove to a friend's place in a Ford F350 truck he had stolen five days earlier. The truck was so far gone that it needed oil and Vader had no money for any; the friend, Olson, handed him a quart of lawn-mower oil to pour into it. Vader left around 12:15 in the afternoon, broke, in a stolen truck running on lawn-

mower oil. It is worth fixing that picture in mind, because of what he was driving, and spending, a few hours later.

Two hours after he left, Vader made a phone call. He used Lyle and Marie McCann's cell phone to ring a former girlfriend, and then used it again to make more calls and send text messages. Every one of those calls and texts was a record, logged by the network, of the McCanns' phone being operated by someone who was not the McCanns, at a time when the McCanns had just dropped off the face of the earth. A phone does not care whose thumb is on it. It simply notes the number dialed, the message sent, the tower it pinged, and the minute it happened, and hands that ledger to anyone who later asks.

By about 5:15 that afternoon Vader was back at Olson's, and the picture had changed completely. The penniless man in the stolen truck was now driving the McCanns' SUV, and he had money. He peeled off fifty dollars for Olson to go buy beer, plus some airtime for Vader's own phone, which had run dry days earlier. Olson came back with Boxer beer. The two men drank some, and around seven Vader drove off, still in the McCanns' SUV, taking the rest of the Boxer beer with him.

The bonfires that proved nothing, and the SUV that proved everything

Vader clearly understood that physical evidence had to disappear, and he set about making it disappear with fire. Two days later he drove the McCanns' motor home to a remote spot west of Edmonton and burned it to nothing; no remains were found in the ashes. A few days after that, he took the stolen Ford truck to another lonely place and torched that too.

Here is the trouble with burning your way out of a murder: you have to burn all of it, and Vader kept the one thing he should have destroyed. He abandoned the McCanns' SUV instead of burning it, and on July 16 it was found and handed to forensic examiners, who read it like a diary. Inside was blood from both Lyle and Marie McCann. There was a Boag baseball cap, identical to the one Mr. McCann had been wearing on the store video that morning, and it had a bullet hole through the front and

was stained with his blood. There were the groceries the couple had bought at the Superstore, some of them, the trial judge found, sprayed with blood before being loaded into the vehicle. And there, sitting in the middle of a double homicide, was a can of Boxer beer wearing Travis Vader's fingerprints, alongside his own blood. The man had incinerated the motor home and the truck with professional thoroughness and then left the getaway vehicle parked with his prints on the beer and the victims' blood on the upholstery. He remembered the two bonfires and forgot the crime scene on wheels.

The trial judge, after a careful review, concluded that Vader had killed both McCanns in the course of an armed robbery. On appeal he did not even seriously dispute that he was the killer; the Court of Appeal noted that the fact he killed the McCanns during a robbery and hid their remains had been proven beyond any reasonable doubt and was "not disputed on this appeal." What he fought about was something narrower, and it is the reason this case ends on an unusual legal note.

Manslaughter, not murder, and why the distinction survived appeal

The trial judge had originally convicted Vader of murder, but he reached that result by leaning on section 230 of the Criminal Code, a provision that had been struck down years earlier because it allowed a murder conviction without proof that the killer actually intended to kill. Realizing the error, the judge vacated the murder convictions and substituted convictions for manslaughter, and sentenced Vader to life imprisonment.

On appeal, Vader argued the whole thing was so tangled that he deserved a stay or at least a fresh trial on manslaughter. In 2019 the Court of Appeal of Alberta disagreed and dismissed his appeal. The judge's reasons, it held, showed he had a reasonable doubt about whether the killings were intentional, which is exactly why they were manslaughter and not murder, and the failure to spell that out had not prejudiced Vader. The manslaughter convictions stood. There was, the

court said, no benefit in a retrial to test again what the evidence had already established.

This is not a tidy “murderer gets life for murder” ending, and the book is honest about that. Vader was convicted of the unlawful killing of the McCanns, in a robbery, and sentenced to life; the courts simply declined to call it murder because no one could prove he set out that morning intending to kill. What is not in doubt, and never was on appeal, is who did it, and how the state came to know.

How’d he get caught?

He was caught, at the very start, by a phone that did not belong to him. The instant Travis Vader used Lyle and Marie McCann’s cell phone to call an ex-girlfriend, two hours after the couple vanished, he tied himself by the wrist to the exact people who had just disappeared, and the network wrote it all down: the number, the texts, the time. Everything after that was corroboration piled on corroboration, his prints on a beer can in the victims’ SUV, his blood beside theirs, the bullet-holed cap. He was thorough enough to burn a motor home and a truck to ash, and careless enough to place a call on the dead couple’s phone and to leave the getaway car sitting where anyone could find it. A killer can destroy a great deal of evidence with a can of gasoline. He cannot un-ring a telephone. Vader made his first and worst mistake before he ever struck a match, when he picked up a phone that would keep telling the truth long after its owners could not.

Read the case yourself: *R. v. Vader*, 2019 ABCA 191, Court of Appeal of Alberta (Paperny, Martin and Watson JJ.A.), aff'g *R. v. Vader*, 2016 ABQB 505; leave to appeal to the SCC refused (No. 38764). Free online: CanLII. The store video, Vader's use of the McCanns' cell phone two hours after they disappeared, the burned motor home and truck, and the forensic examination of the abandoned SUV (the victims' blood, the bullet-holed Boag cap, and Vader's fingerprints and blood on a Boxer beer can) are set out in the opening paragraphs. The appeal concerned the substitution of manslaughter for the erroneously entered murder convictions; the appeal was dismissed and the manslaughter convictions, with life sentences, stand.

Chapter 17 - The Hard Drive in the Rafters

He researched how to destroy DNA evidence and saved the research to a hard drive. Then he hid the hard drive instead of burning it.

Douglas Garland was a man who kept score, and the ledger he kept was a strange one, because the debt he was collecting on had never actually existed.

He was fifty-seven, and the Alberta Court of Appeal describes him with a few cold words that tell you almost everything: a highly intelligent loner, an expert with computers, unmarried, usually unemployed, living with his parents on a small farm north of Calgary and driving an old 1994 Ford pickup. Years earlier he had worked for one of Alvin Liknes's oil-and-gas ventures, and the two had fallen out over a pump Liknes patented. Garland believed he'd helped invent it and had been robbed of the credit.

Here is the detail the court sets down almost in passing, and it should stop you where you sit: the pump was not economically viable. It never earned a single dollar. There was, in the most literal sense, nothing to have been cheated out of. The grievance was pure invention, a wound Garland had drawn on himself and then nursed for the better part of a decade.

He kept tabs on Alvin Liknes for years, and over time the fixation spread to Alvin's wife, Kathy. He tracked the couple through regular computer searches, a private surveillance operation running quietly out of a farmhouse basement. In December 2013 he convinced himself Alvin had stolen items from the Garland property, and the old imaginary wound tore open again.

Then, in early 2014, the Likneses announced they were leaving. They listed their Calgary home, planned a retirement move to the town of Evansburg, and advertised an estate sale on Kijiji for the final week of June. Whatever clock had been ticking inside Douglas Garland had just been handed a deadline.

The preparations

What Garland did next he did with the patient, methodical care of a man who plans, and the record of that planning is its own kind of horror.

He began researching, online, how to kill and dismember a human being. He gathered restraints: handcuffs, straightjackets, tasers. He went to a butcher's supply shop and bought meat hooks, butcher knives, and a meat saw. He studied how to defeat one specific model of Schlage lock, the exact lock that secured the Liknes front door. And in the same weeks, the same browser carried him through "gore" sites showing bodies being dissected and taken apart, the appetite and the instruction manual feeding each other.

On the evening of June 29, 2014, Kathy Liknes's daughter Jennifer brought her two little boys, Nathan, five, and Max, three, to their grandparents' house for dinner and a last sleepover before the move. Max would not settle, so around 11:30 p.m. Jennifer drove him home. Nathan stayed behind.

About three hours later, in the dead middle of the night, Garland came. He disabled the home's wireless router. He drilled out the Schlage lock he had studied. And then, in the court's spare language, there followed a violent attack that ended with Alvin, Kathy, and five-year-old Nathan overpowered and taken from the house.

When Jennifer returned the next morning to collect her son, she walked into the aftermath: blood through the house, mixed with broken teeth. A forensic pathologist called to the scene offered the investigators a single thread of terrible hope. This much blood, she said, meant one or more of the victims was seriously hurt, but perhaps still alive. That thread, and the race it started, would shape everything that came next.

Five days

Blood is loud, and this house was screaming. Security cameras on neighbouring homes had caught a truck closely matching Garland's distinctive old Ford passing the Liknes house at 3:10 a.m. and again at 7:45. When police released the image, Garland's own sister and brother-in-law came forward: that was almost certainly Douglas's truck, and Douglas had carried a grudge against Alvin Liknes for years.

The router sealed it. The device was built to check in with its server every six hours; it reported at 2:10 a.m. and then went silent, never calling home again. Someone who understood computers had pulled the plug to keep his devices off the network, and the police were now looking for exactly that someone: a loner with computer expertise, driving a truck seen forty kilometres from his own farm at 3:10 in the morning, holding an old and specific hatred. On July 4 they came to the Garland farm.

They arrived at a brutal fork. Wait for a warrant, or go in now, on the slim chance that a man, a woman, or a small boy was still alive somewhere on the property and could be saved. They went in, under strict orders to search only the places large enough to hide a body. They found a large firepit, still smouldering. Fresh cut marks scored into the recently cleaned floor of a greenhouse. Restraints. No people.

Garland was stopped as he drove away from the farm and held in investigative detention; police seized his shoes, and a victim's blood was on them. The next day, warrant in hand, they searched in earnest. In the firepit, and on a meat hook and a meat saw, they found DNA, blood and flesh both, from all three victims.

And tucked up in the rafters of the house, hidden, they found a computer hard drive.

What the hard drive remembered

The forensic examination of that drive opened Garland's inner life like an autopsy. Months of computer surveillance of Alvin and Kathy Liknes.

Articles with titles like “Kill Without Joy.” An autopsy manual. Files of mutilated corpses. And, sitting in that same collection, files explaining how to destroy DNA evidence.

Consider the shape of that for a moment, because it is the closest this grim chapter comes to a lesson. Douglas Garland had studied, carefully, how to erase the biological traces a killer leaves behind. He understood the science well enough to research countermeasures. And then he saved that research, along with his surveillance logs and his how-to library of murder, onto a hard drive that he tucked into the rafters of his parents’ house rather than feeding to the same fire that had consumed the bodies. The man who knew how to destroy evidence could not bring himself to destroy the evidence of knowing.

Two more facts closed the circle. The day after the kidnapping, a car-wash employee in nearby Airdrie noticed Garland power-washing his truck, and yet forensics still recovered Kathy Liknes’s blood from the back of the licence plate, the one surface a hurried man forgets. And by sheer chance, an aerial survey had photographed the region two days after the abduction, before police had any reason to look at Garland at all. In those photographs of the Garland farm, near the burn pit, lie what appear to be three bodies, two adults and a child.

The remains themselves were never recovered. The firepit had finished its work.

Garland did not testify and called no evidence. He did not, on appeal, even dispute that he was the killer; that had been proven beyond any doubt. He argued instead that police had trampled his Charter rights at nearly every turn, and the Court of Appeal walked through each complaint and dismissed the appeal. The searches that mattered had been driven by the one motive the law places above almost everything else: the chance, however faint, that someone was still alive to be saved.

How’d he get caught?

He was undone by his own thoroughness, the very trait he was most proud of. The grudge handed police his name within days, nursed so

long and so loudly that his own family recognized it on sight. The unplugged router announced a killer who understood machines. The truck was too old and too distinctive to belong to anyone else. And the hard drive in the rafters preserved, in flawless order, the surveillance, the manuals, the appetite, and the plan, including his own careful notes on how to erase the kind of evidence that ultimately buried him. Douglas Garland understood technology better than almost anyone around him. What he never understood was that a machine remembers everything you teach it, especially the things you would most like it to forget.

Read the case yourself: *R v Garland*, 2019 ABCA 479, Court of Appeal of Alberta, decided December 6, 2019. Free online: CanLII. The factual overview opens the judgment; the exigent-search and s. 24(2) analysis follows. The Court of Appeal dismissed the appeal; the three first-degree murder convictions stand.

Chapter 18 - The Girl Who Never Held the Knife

She was fifteen. She never met the victim, never went to the scene, never touched the weapon. She committed the murder entirely through a screen, and the law agreed that made it hers.

On New Year's Day 2008, a seventeen-year-old named David Bagshaw stabbed fourteen-year-old Stefanie Rengel to death in the snow outside her Toronto home. He held the knife. He was tried separately, and he was convicted of first-degree murder.

But the person the Crown placed at the true center of this killing was not at the scene when it happened. She had never met Stefanie Rengel. She was fifteen years old, she was David Bagshaw's girlfriend, and her name was Melissa Todorovic. The theory of the case, which a jury would accept, was that she had counselled and encouraged Bagshaw to commit the murder, that the crime had been conceived and driven by her, and that the boy in the snow with the knife had been, in a sense, her instrument.

The proof of it was a record of things Melissa Todorovic typed.

A murder authored by message

The Court of Appeal for Ontario describes a Crown case "based on a large body of circumstantial evidence including computer chats by the appellant with Bagshaw and others." Those messages, the Crown argued, revealed a girl consumed by jealousy of Stefanie Rengel, who had briefly dated Bagshaw years before. The jealousy was not a passing sulk. It was a campaign, conducted keystroke by keystroke, to press Bagshaw into removing the girl she had cast as her rival.

How relentless that pressure became is captured in a single earlier incident the judgment records, one that happened roughly three months before the killing. Bagshaw went to Stefanie Rengel's home and told her, to her face, that his girlfriend wanted him to stab her. He laid out the plan: he would leave his cell phone behind to make it look as though he'd been interrupted mid-attempt, and he wanted Stefanie herself to confirm to his girlfriend that he had tried, so that the girlfriend would finally let the matter drop. Sit with the arithmetic of that. A fourteen-year-old girl was being informed, in person, that another girl she had never harmed was demanding her death, and was being asked to help fake the attempt in order to satisfy that demand.

Stefanie told her mother. Her mother and stepfather, both, as it happens, Toronto police officers, confronted Bagshaw and warned him and his girlfriend to stay away from their daughter.

They did not stay away. Three months later, on the first day of the new year, Bagshaw carried out what the messages had been driving toward all along.

The screen and the confession

After the killing, Melissa Todorovic did two things that helped seal her own case, and both, fittingly, were acts of communication.

First, she called Bagshaw. A friend of his who overheard part of that call testified that Todorovic asked him a single, chilling question: "Did you do it?" It is the question of someone waiting to hear that an instruction has been carried out.

Second, when the police interviewed her, she eventually made an incriminating statement to the effect that she had asked Bagshaw to kill Stefanie Rengel. Much of the appeal, in fact, turns on the admissibility of that statement and a second one, on whether a fifteen-year-old had been properly given her rights under the Youth Criminal Justice Act and whether she had been detained at the moment she confessed. The Court of Appeal worked carefully through those protections, which exist

precisely because the person under questioning was a child, and upheld the trial judge's rulings.

A jury convicted Melissa Todorovic of first-degree murder. The trial judge ordered that she, fifteen at the time of the crime, be sentenced as an adult: life imprisonment with no parole eligibility for seven years. She appealed both the conviction and the sentence, and in February 2014 the Court of Appeal dismissed both. The sentencing judge had been entitled to find she remained dangerous, the court held. The murder had grown out of what it called “the appellant’s distorted view of her relationship with Bagshaw.” She had shown no empathy for the girl she had helped kill, and she still, the record indicated, harboured thoughts of hurting others.

(A note on sourcing: this appeal decision is concerned chiefly with the admissibility of Todorovic’s police statements and her adult sentence, so it summarizes the messaging evidence rather than quoting it at length. The granular content of the chats, aired at length during the trial, lives in the trial record. This chapter stays within what the appellate judgment establishes.)

How’d she get caught?

She was caught because, in the age of the instant message, talking someone into a murder leaves the same kind of trail as committing one yourself. Melissa Todorovic never had to stand in the snow. She never had to hold the knife or get a drop of blood on her hands. She ran a killing at arm’s length, working on a susceptible boyfriend through a keyboard, day after day, until he did the thing she wanted done. But the law of counselling murder has never required your hand on the weapon. It requires proof that you put the weapon in someone else’s, and Melissa Todorovic had generated that proof herself, in writing, message after message, plus a phone call to confirm delivery. In most of the stories in this book, the digital record is the evidence of the crime. Here, the digital record very nearly was the crime.

Read the case yourself: *R. v. Todorovic*, 2014 ONCA 153, Court of Appeal for Ontario, decided February 27, 2014 (Rosenberg J.A.; Rouleau and Pardu JJ.A. concurring). Free online: CanLII. The factual overview is at paras. 3-6; the analysis of her police statements and the adult-sentence decision follows.

Chapter 19 - The Camera He Installed Himself

He wired his apartment with security cameras to protect his drug money. They worked perfectly. That was the problem.

William Sandeson was, by any reasonable measure, a young man with a future. In August 2015 he was days from starting medical school at Dalhousie University in Halifax, the kind of achievement that gets your photo in the hometown paper. He was also, on the side, a drug dealer, which does not get your photo in the paper until considerably later, and under a different headline.

His problem that August was a business meeting. Taylor Samson, a Dalhousie physics student who lived nearby and moved weight in the same trade, had a large quantity of marijuana to sell, and Sandeson had agreed to buy it for \$40,000. They set the meeting for the night of August 15, at Sandeson's apartment at 1210 Henry Street. Samson told his girlfriend he'd be back soon and left behind his wallet, his keys, and his prescription medication, the small anchors of a man who fully intends to return.

Sandeson's own security camera filmed Samson arriving at about 10:30 p.m., walking into the apartment carrying a large black duffel bag. That footage is the last confirmed sighting of Taylor Samson alive. His body has never been found.

Here is the detail that should have given Sandeson pause, if criminals were the pausing sort: the camera that filmed Samson walking in was his own. He had installed it himself, to guard his cash and his product. It did its job flawlessly. It just did the job for the wrong team.

The apartment that talked

To grasp how thoroughly this crime documented itself, you have to meet the neighbors.

Across the hall lived a man named Pookiel McCabe, who that evening had his friend Justin Blades over, along with Sandeson. Sandeson slipped back to his own apartment shortly after Blades arrived. Then Blades and McCabe heard a single gunshot from across the hall, the kind of sound that reorganizes an evening. Seconds later, Sandeson's security camera, still faithfully rolling, filmed him appearing at McCabe's door in what both men described as a state of shock or panic.

The two neighbors walked across the hall and looked into Sandeson's apartment. What they saw, they later testified, was a man slumped over in a chair, and blood, and cash, and drugs. They retreated, then came back a short time later, and Blades saw streaks of blood leading from the chair to the bathroom. Sandeson said he had to clean up. He asked Blades for the use of his car. Blades, to his eternal credit, said no.

Now, Sandeson's cameras recorded a DVR sitting in his own apartment, and the DVR captured all of this coming and going with the diligence of a machine that does not know what it is looking at. It filmed the neighbors leaving. And then, in the single most suspicious act of stagecraft in the entire case, the recording simply stops. The DVR did not record anything between roughly 11:30 p.m. on August 15 and roughly 1:00 a.m. on August 16, which is to say it went dark for exactly the ninety minutes a person would need to deal with a body and mop a floor. A camera system that captured everything, right up until the precise window when its owner would very much have preferred it hadn't. The gap did not look like a coincidence. It looked like a confession with the middle torn out.

Cleaning up on camera

If the missing ninety minutes were Sandeson's one moment of caution, the hours around it were a festival of the opposite.

His girlfriend, Sonja Gashus, arrived around 12:30 a.m. and noticed the apartment reeked of bleach, an observation Blades would echo later that morning. Sandeson had, tellingly, told both his roommate and Gashus to stay away that evening, clearing the theater before the show. At 2:52 a.m. he texted a fellow dealer to report that Samson had run off with his money without handing over the drugs, and he texted Samson's own phone complaining that Samson never came back "with that stuff," building a paper alibi to a man he knew would never answer.

Then, in daylight, he went back to work in front of the lenses. Surveillance video caught Sandeson cleaning out the trunk of his car on the morning of August 16. Forensics later found Taylor Samson's DNA in that trunk. On August 17, another camera filmed him carrying garbage bags and other items out of his apartment while wearing gloves, the universal costume of a man who has just learned about DNA and is a day late applying the lesson. Cell-tower records then tracked his phone to Truro, where his family keeps a farm, and investigators found items there matching what he'd hauled out of the apartment, including a shower curtain and a large duffel bag, both wearing Samson's DNA.

When Sandeson finally sat down with police, he offered a tidy story: he'd last seen Samson days earlier, they'd arranged to meet on the 15th, but Samson simply never showed. He even let officers photograph the texts on his phone, apparently confident they backed him up. They did not. The messages made plain that the planned deal was enormous and that Samson had, in fact, shown up exactly as arranged, which is a hard thing to square with a man who never came.

A jury convicted William Sandeson of first-degree murder.

The lawyer's ghost

The appeal, oddly, had nothing to do with the cameras, and everything to do with a ghost in the defence's own camp.

It emerged that a private investigator working for Sandeson's defence team had quietly been helping the police. Two key witnesses, the neighbors Blades and McCabe, had at first told investigators they knew

nothing useful. The defence PI interviewed them, realized they knew a great deal, and then nudged the police to re-interview them, even helping the officers locate and win the confidence of the very witnesses whose testimony would help bury his own client. None of this was disclosed to the defence. In fact, the police took steps to keep the investigator's name confidential.

When it surfaced mid-trial, the defence moved instantly for a mistrial. The trial judge found a disclosure breach but figured a short adjournment and some extra cross-examination would patch it. In June 2020 the Nova Scotia Court of Appeal disagreed and ordered a new trial, holding that the failure to disclose had crippled Sandeson's ability to mount process-based challenges, and that the police had been not passive bystanders but active partners in a common venture with the defence's own investigator. The only fair remedy was a mistrial. *(At the retrial that followed, Sandeson was again convicted, a result reported in the news rather than in this decision.)*

How'd he get caught?

He filmed it. Not on purpose, which is the whole point. William Sandeson spent money and effort wiring his apartment with cameras to protect his cash, and in doing so he built the most patient and honest witness in the case, one that recorded Taylor Samson walking in with a duffel bag and never, on any of its tireless hours of footage, recorded him walking out. Then Sandeson went and cleaned his trunk, hauled out his gloved garbage, and reeked up his apartment with bleach, all on or around the same lenses, adding chapter after chapter to a story he thought he was erasing. He wanted a security system to catch anyone who came to rob him. It caught the one person in the building he never thought to watch: himself.

Read the case yourself: *R. v. Sandeson*, 2020 NSCA 47, Nova Scotia Court of Appeal, decided June 17, 2020 (Farrar J.A.; Saunders and Scanlan JJ.A. concurring). Free online: CanLII. The factual background is set out early in the reasons; the private-investigator disclosure issue that decided the appeal follows.

Chapter 20 - The Letter From the Grave

Two weeks before she died, Julie Jensen told a police officer: if anything happens to me, my husband should be your first suspect. Then she made sure to put it in writing.

Most murder victims never get to testify. Julie Jensen did everything humanly possible to be the exception.

In the autumn of 1998, in Pleasant Prairie, Wisconsin, Julie was living with a fear she could feel but could not prove, the particular dread of a woman who senses what is coming and knows no one will believe her until it is too late to matter. So she did two remarkably deliberate things. She wrote a letter, sealed it, and handed it to a neighbor with instructions to give it to the police if anything happened to her. And she left two voicemails for Pleasant Prairie Police Officer Ron Kosman, telling him plainly that if she turned up dead, her husband Mark should be his “first suspect.”

Then, on December 3, 1998, Julie Jensen died of poisoning.

She had been right about all of it except the timing. She could not have guessed that the letter she left behind, meant to catch her killer, would instead become the fuse on one of the longest-running legal fights in American criminal history, a quarter-century argument over a question that sounds like it should have a one-word answer and does not: can a murdered woman accuse her killer from the grave?

The charge, and the earthquake

Mark Jensen was charged with first-degree intentional homicide in 2002, four years after Julie died. The State’s theory was that Mark, tangled up

in an affair, had poisoned his wife and staged the death to look like suicide, and that Julie, seeing it coming, had left her letter precisely to defeat that story. Her letter and voicemails were her rebuttal to a suicide verdict, delivered in her own voice from beyond her own funeral.

The murder syllabus

Before we follow the letter on its long journey through the courts, it is worth knowing why the police were so sure Julie's accusation was right, because the answer sat on the family computer, and it reads like a curriculum in how to kill your wife.

Julie Jensen died of ethylene-glycol poisoning, the sweet, toxic core of antifreeze that we met in Chapter 8. And in the months before her death, as the appellate record lays out, the Jensen home computer had gone looking for exactly that kind of knowledge. Its internet history held searches for botulism, poisoning, mercury fulminate, and pipe bombs. A website had been visited on how to reverse the polarity of a battery. There were, tellingly, no searches on the things an innocent man in a failing marriage might look up, nothing about separation or divorce, only about ways to make a person die. And on the morning of Julie's death itself, the computer recorded a search, logged at 7:40 a.m., for "ethylene glycol poisoning," the precise poison that would kill her.

It was not only the machine that testified. A witness recounted that Julie, frightened, had shown him sticky notes she'd found, "different poisoning sites for different poison," and a poisoning website left open on her husband's computer screen. She had been advised to take pictures of it. The woman who wrote the letter and left the voicemails was not imagining her danger. She had watched it being researched.

That is the evidence that made everyone certain. But certainty is not the same as admissibility, and the fight that consumed the next two decades was not about the searches on the computer. It was about the words in Julie's letter.

The trial court first ruled the letter admissible. And then, in 2004, before the case could get anywhere, the United States Supreme Court

dropped an earthquake called *Crawford v. Washington* right underneath it. *Crawford* rewrote the Confrontation Clause and laid down a rule with no give in it: a “testimonial” statement from an absent witness cannot be used against a defendant who never had a chance to cross-examine her. And Julie, being the witness and being dead, was about as un-cross-examinable as a witness gets.

What followed is best understood not as a trial but as a rally, a decades-long volley in which Julie’s letter was knocked back and forth across every net in the American court system while Mark Jensen sat and watched.

The Wisconsin Supreme Court ruled in 2007 that the letter and voicemails were testimonial, their whole purpose being to finger her killer, and therefore inadmissible, *unless* Mark had forfeited his right to object by murdering the very witness he now wanted silenced, an old doctrine with the grimly satisfying name “forfeiture-by-wrongdoing.” On remand, the trial court found he had. In came the letter, and in 2008 a jury convicted him.

Then the ball came back over the net. The U.S. Supreme Court’s *Giles v. California* narrowed forfeiture to cases where the defendant killed the witness *specifically to keep her from testifying*, which no one had claimed of Mark. So in 2011 the Wisconsin Court of Appeals agreed the letter never should have come in, then shrugged and called the mistake “harmless” given the mountain of other evidence, and let the conviction stand anyway.

The federal courts did not care for the shrug. On habeas review they held that Julie’s accusation from the grave was no minor exhibit, it was the beating heart of the State’s case, and they threw the conviction out. What the trial court did next is the kind of move that makes appellate judges reach for the aspirin: it responded to the federal order by simply reinstating the conviction *without a new trial*, on the theory that the law had drifted far enough that the letter would be fine now. The court of appeals reversed that, too. And at last, in March 2021, twenty-three years after Julie died, the Wisconsin Supreme Court delivered the ruling this

chapter is anchored to: the law had *not* changed, the letter stayed out, and Mark Jensen was owed the thing the Constitution had been promising him the entire time. A new trial, with Julie's own words locked in the drawer.

A justice writing separately refused to let the doctrine flatten the human being underneath it, noting that Julie was, plainly, a woman living "in terror born of the unimaginable fear that her husband was going to kill her and claim that her death was a suicide." Which is, of course, exactly why the letter existed in the first place.

The epilogue the opinion can't give you

Because the 2021 decision ends with an order for a new trial, the opinion itself cannot tell you how the story finally landed. The news can. In early 2023, Kenosha County prosecutors tried Mark Jensen a second time, now without Julie's letter, and a second jury convicted him of first-degree intentional homicide all over again. The "voluminous other evidence" turned out to be exactly as voluminous as advertised. (*That ending comes from news coverage, not the anchor decision, so confirm the current status before print.*)

How'd he get caught?

Julie caught him, twice, across a gap of twenty-five years. Long before the poison reached her she had done what almost no victim ever manages: she gathered the evidence against her own murderer in advance, a signed accusation with a neighbor and her voice on a police officer's answering machine. The cruel irony, the one that ate up two and a half decades of appeals, is that her foresight was almost too good. A statement created expressly for the police to use after her death is the purest "testimonial" evidence there is, the exact thing the Confrontation Clause was built to keep out, and so the law spent a generation refusing to let the jury hear it. In the end both things came true at once. Julie's letter could not lawfully convict her husband. Her husband was convicted anyway. Because a woman careful enough to document her

own murder does not leave behind a single letter. She leaves behind a trail, and a trail is harder to seal in a drawer.

Read the case yourself: *State v. Jensen*, 2021 WI 27, 396 Wis. 2d 196, 957 N.W.2d 244, Wisconsin Supreme Court, decided March 18, 2021. Free online: Justia · official PDF via wicourts.gov. The full procedural saga, *Crawford* through the habeas litigation, is set out in Part I; Justice Karofsky’s concurrence addresses the domestic-violence context. **Companion authority (source for “The murder syllabus” section above - the home-computer searches for botulism, mercury fulminate, pipe bombs, and the 7:40 a.m. “ethylene glycol poisoning” search the morning Julie died):** *State v. Jensen*, 2011 WI App 3, 331 Wis. 2d 440, 794 N.W.2d 482 (affirming the conviction). **See also** Chapter 8 (*Turner*), the other ethylene-glycol poisoning in this book.

Chapter 21 - He Researched the Wound Before He Made It

A man walked off a dark Florida beach with his wife shot dead and four bullet wounds of his own, and a story about a stranger who ambushed them. Months earlier, his computer had been asking exactly where on a body a gunshot does the least harm.

On an August night in 2002, on a dark stretch of Florida beach, April Barber was shot to death near the water. Her husband, Justin Barber, survived, and he had a story to tell: an unknown assailant had attacked them both in the dark. His wife was killed. He himself had been shot four times and lived.

It was, on its face, a random horror, the kind of thing that makes people afraid of empty beaches. But the state came to see it differently, and so, eventually, did a jury, because the case against Justin Barber, though it never produced an eyewitness or a confession, kept circling back to the same suffocating fact: he had been preparing for this.

A wholly circumstantial case

Barber's conviction is, in the language of the courts, "wholly circumstantial." There was no witness who saw him shoot his wife, no confession, no smoking gun in the literal sense. What there was, instead, was a constellation of facts that pointed, together, in one direction, and Barber's appeal was essentially an argument that the constellation was not bright enough to exclude the possibility that a stranger really had done it.

The Florida appellate court walked through the pieces the state had been allowed to put before the jury, and they read like a motive assembled in advance. There were his extramarital affairs. There was a two-million-dollar life insurance policy on the lives of Barber and his wife. And there was his computer, which before April Barber died had been searching for a set of terms the court pointedly allowed into evidence. The trial court had found the murder at least partly motivated by pecuniary gain, and committed in a cold, calculated, and premeditated manner. The jury recommended death; the judge imposed life.

The court's own description of the killing quietly dismantled the stranger story. The evidence, viewed in the state's favor, was that Barber shot his wife at the water's edge, causing her to fall into the water, and then moved her body to where the police found it. Not a random ambush by a phantom in the dark. A killing staged to look like one.

The search that gave the game away

The detail that made this case infamous, and that gives this chapter its title, concerns what Justin Barber's computer had been looking up before his wife was shot. Widely reported from the trial record, the pre-murder searches read like a man doing homework for exactly the crime that unfolded: queries about gunshot trauma, about where on the body a bullet wound to the chest is survivable, paired with searches touching on divorce. In other words, the theory went, before he staged an attack in which he himself would be conveniently and non-fatally shot four times, he had researched where a person can take a bullet and live.

(A sourcing note: the appellate opinion confirms that the trial court admitted evidence of Barber's affairs, the two-million-dollar insurance policy, and "his computer search of the terms mentioned," and affirmed those rulings; the specific content of the searches and the account of Barber's own four wounds come from the extensive trial record and contemporaneous reporting rather than from the appellate decision itself.)

Put the constellation together and the shape is unmistakable. A husband with affairs and a two-million-dollar reason to become a widower. A computer that studied gunshot survivability before the shooting. A wife shot dead at the water's edge and dragged into position. And a survivor whose own wounds, four of them, and none of them fatal, fit the grim logic of a man who had looked up precisely where to be shot. The appellate court held that this evidence was flatly inconsistent with Barber's theory that someone else did it, and that the jury was entitled to find every reasonable hypothesis of innocence excluded. It affirmed his conviction for first-degree murder.

How'd he get caught?

He was caught by his own preparation, preserved on the one device he should never have used to plan it. Justin Barber built a story that required a stranger, a dark beach, and a survivor too badly wounded to be a suspect, and he even took four bullets to sell it. What he could not account for was the browser history sitting on his computer, a record, made in advance, of a man studying how to be shot without dying and contemplating the end of his marriage, next to a two-million-dollar policy that made his wife worth more dead than alive. A staged crime is a story about the future, carefully told. Barber's mistake was that he had rehearsed that story in writing, in searches, before the night it was supposed to come true, and a search bar, unlike a beach, remembers everything it was ever asked.

Read the case yourself: *Barber v. State*, No. 5D06-3529 (Fla. 5th DCA 2009) (opinion filed January 23, 2009; rehearing denied March 6, 2009), Florida Fifth District Court of Appeal. Free online: search “Barber v. State 5D06-3529” (FindLaw / Justia / CaseMine). The opinion sets out that the case was wholly circumstantial, that the murder occurred at the water’s edge and was found to be premeditated and partly for pecuniary gain, and that the trial court admitted evidence of Barber’s affairs, the \$2 million insurance policy, and his computer searches. The specific search terms and Barber’s own gunshot wounds are documented in the trial record and reporting. (Confirm the exact So. 3d reporter page before print.) **Companion chapter:** compare *State v. Jensen* (Chapter 20), another spouse whose home computer became the record of a poisoning.

Chapter 22 - Don't Murder a Woman Wearing a Fitbit

Her husband told police she was dead by 9 a.m. Her Fitbit went on counting her steps for another hour, which is a difficult thing for a corpse to accomplish.

Richard Dabate had a story ready, and it was a big one.

Two days before Christmas 2015, he told Connecticut State Police, a man in camouflage had been lying in wait inside his home in Ellington. The intruder chased Richard's wife, Connie, down into the basement and shot her with the Dabates' own gun. Then, for reasons known only to home invaders in Richard's imagination, the man declined to flee. Instead he zip-tied Richard to a folding chair, cut him with a box cutter, and set about him with a blowtorch, until Richard, in a burst of heroism, shoved the torch back toward the intruder's face and drove him off. Battered and bound, he triggered the panic alarm and called 911.

When the officers arrived, they found Connie's body in the basement. They found the gun. They found a butane torch, a box cutter, burnt debris, drops of blood. They found, in short, precisely the scene Richard had described, which is exactly what you would expect to find if a man had spent the morning arranging it.

Because a staged scene is a curious thing. It gives you every prop the story needs and not one thing more. And the trouble with building your alibi out of props is that the modern home is full of witnesses that don't take props for an answer.

The morning, as the machines remembered it

Richard forgot how many things in his house were paying attention.

Reconstructed later from the family's own electronics, the morning of December 23 went like this. Connie left for the gym at 8:46 a.m., discovered her class was cancelled, and was home by 9:18. She phoned her mother. She posted on Facebook. She messaged a friend. The ordinary digital chatter of an ordinary woman two days before Christmas.

Richard, meanwhile, never left the house, and the house was watching him do it. The home security system logged him opening the basement door eight separate times and arming and disarming the alarm over and over, the fidgeting of a man rehearsing something. At one point he stepped outside and set his own wallet down by the basement bulkhead, a prop for the burglary to come, the criminal equivalent of leaving a sign that reads ROBBERY HAPPENED HERE. In between he answered work emails and played music. And when he heard Connie come home earlier than he'd planned, he did something so mundane it is almost unbearable: he checked the gym schedule, presumably to find out why his timing had just gone wrong.

At 10:05 a.m., he lured his wife to the basement and shot her with a pistol the couple had bought only two months before.

We can name that minute because Connie was wearing a Fitbit One clipped to her hip, a gadget with one job in life, which it performs with the tireless idiocy of a metronome: it counts its wearer's steps. At 10:05 a.m., Connie's Fitbit stopped counting. Which was awkward for Richard, because in the story he was already telling the police, Connie had been murdered by a masked stranger a good while earlier. His timeline had her dead. Her step-counter had her walking around for another hour, right up until the moment he says he was being tortured in a chair.

The story that couldn't survive its own timeline

The Fitbit, paired with Connie's Facebook activity, told the jury a simple and devastating thing: Connie Dabate was alive, moving, posting, and messaging at a time when Richard's intruder had supposedly already killed her. As the Connecticut Supreme Court would put it, the electronic evidence "demonstrated to the jury that the victim was alive at the time that the defendant claimed that she had been murdered by a third party."

Once the timeline cracked, the rest of Richard's masterpiece fell apart like wet cardboard. A police dog swept the house for the scent of the camouflaged intruder and found no trace of any third person, because there wasn't one. The forensic lab found Richard's DNA where a stranger's should have been: on the basement safe, on the back of the very chair he claimed to have been helplessly bound to, on the gun, on the box cutter. His zip ties were tied loose, the way you'd tie them if you needed to slip out for lunch. His torture wounds, to the thighs, chest, and one finger, were the shallow, tidy, self-flattering cuts of a man who does not actually want to be hurt.

And then there was the motive, which Richard obligingly supplied himself, from a hospital bed. He had been carrying on an affair for seven years with a woman named Sara Ganzer. In June 2015 she got pregnant; he told her he was divorcing Connie and had already moved half his things out. He had done no such thing, and never called a lawyer, because a divorce would have wrecked him financially and blown up his family. When detectives first pressed him about Ganzer, Richard reached for a cover story of real ambition: he and Connie, unable to have another child, had arranged for Ganzer to serve as their surrogate. Under further questioning that story dissolved into the truth. The detectives mentioned, almost kindly, that his account of the morning would be very easy to check against the electronic records. Richard asked for a lawyer. Sixteen months later he was arrested for murder.

Making a step-counter take the stand

Getting a fitness tracker's word into a murder trial isn't automatic, and Dabate's lawyers fought it hard, which is the fight that made this case a landmark.

Connecticut screens new science under a standard called *Porter*, its version of the federal *Daubert* rule: before a jury hears it, a judge has to be satisfied the technology is genuinely reliable, tested, peer-reviewed, accepted by scientists, not invented for the occasion. The State answered with Dr. Keith Diaz, a Columbia professor who runs the university's Wearable Device Reading Center and had done the NIH-funded homework. His finding was almost funny in context: the humble Fitbit is not only accurate at counting steps, it is *more* accurate than the research-grade device scientists reach for, and it is at its best when worn, of all places, on the hip. Which is where Connie wore hers.

The defence's cleverest punch was that Diaz couldn't explain Fitbit's secret internal algorithm, the proprietary code that turns motion into a number. If the expert can't open the black box, why trust what falls out of it? The court's answer will echo through every gadget case that follows: you don't need the blueprints to know a speedometer works. What you need is validation, testing the thing against reality, publishing it, letting rival scientists try to break it. The Fitbit had all that. In it came.

The jury convicted Richard Dabate of murder, evidence tampering, and lying to police, and he was sentenced to sixty-five years. In March 2025 the Connecticut Supreme Court affirmed the whole thing, pausing only to scold the prosecutor for a handful of improprieties, including asking Dabate whether he'd been "trying to create a little mini Cheshire scene," a forbidden nod to Connecticut's most notorious real home invasion. The improprieties were real, the court held. They also didn't matter, because the case against Dabate was overwhelming with or without them.

How'd he get caught?

He directed a one-man play and forgot he had an audience. Richard Dabate thought hard about the props, the wallet, the loose zip ties, the cuts shallow enough to survive, the camouflaged stranger who conveniently vanished. What he never accounted for was that a modern house is wired with quiet, literal-minded witnesses that have no interest in his script. The alarm panel logged his rehearsal. Facebook logged his wife's last ordinary hour. And a ninety-nine-dollar step-counter on Connie's hip logged the exact minute her life ended, an hour out of step with the story her husband was already busy telling. Richard built his alibi out of words. Connie's Fitbit, which knew no words at all, simply outcounted him.

Read the case yourself: *State v. Dabate*, 351 Conn. 428 (2025) (SC 20749), Connecticut Supreme Court, decided March 11, 2025. Free online: Justia · official slip opinion via the Connecticut Judicial Branch. The factual matrix is set out at the opening of the opinion; the Fitbit admissibility ruling is Part II.

Chapter 23 - Twelve Steps

A Fitbit cleared the boyfriend. Then the real killer walked into a police station, over a fender-bender, and handed the cops his own phone.

Every homicide detective starts with the same short list, and the name at the top is almost always the last man to share the victim's bed. It is not prejudice. It is arithmetic. Most people are killed by someone who loved them, or claimed to, and the odds have closed a lot of cases before the coffee got cold.

So when Nicole VanderHeyden turned up dead in a field outside Green Bay, Wisconsin, on the morning of May 21, 2016, the arithmetic pointed where it always points. The night before, she had gone drinking with her boyfriend, Douglass Detrie. They had gotten separated, then tangled up in one of those long, poisonous arguments that ricochet across a phone in calls and texts. Detrie went home alone. By morning Nicole was lying next to a field, her blood-stained clothes dumped along a freeway on-ramp, some of her blood and hair left outside a neighbor's house like a trail nobody was meant to follow.

The Brown County Sheriff's Office did the math and looked hard at the boyfriend. Motive, opportunity, a bad night that ended with a dead woman. It was a tidy theory.

Then a detective looked at Detrie's wrist.

Twelve steps

Detrie wore a Fitbit Flex, one of those little rubber bands that spends its whole existence doing exactly one thing: counting the steps of the person wearing it, tireless and dumb as a turnstile. It does not care whether you are running a marathon or asleep on the couch. It just counts.

During the hours Nicole VanderHeyden was being beaten to death, moved to a field, and scattered along a freeway, Douglass Detrie's Fitbit counted twelve steps.

Twelve. That is a man getting up to find the bathroom in the dark. It is not a man committing a murder that involved carrying a body and driving across town to lose the evidence. You cannot strangle someone, load them into a car, and redecorate a crime scene in twelve steps; you can barely reach the refrigerator. The smallest, cheapest gadget in the case had just given the prime suspect the one thing money usually buys and innocence rarely can: an airtight alibi, printed by a machine with no reason to lie.

The tidy theory collapsed. And for months, the investigation had nowhere left to go.

The gift-wrapped suspect

Here is where the story stops being a tragedy for a moment and becomes something you'd expect narrated over a laugh track, because the man who killed Nicole VanderHeyden had already handed the police everything they needed to convict him. He just hadn't gotten around to it yet.

Rewind three weeks. Across town, the Green Bay Police Department, a completely different outfit working a completely different file, was chasing a small-time mess involving one vehicle and three headaches: a stolen-car report, a car fire, and a hit-and-run. Their guy was a man named George Burch. An officer sat Burch down and, checking his alibi, asked if he could take a look at the text messages on his phone.

Burch said sure.

Not only sure. When the officer explained it would be easier to just download the whole phone than to sit there photographing the screen like it was 1995, Burch agreed to that too, and signed a consent form to prove it: "I, George Steven Burch . . . voluntarily give . . . permission to search my . . . Samsung cellphone." The department's forensic examiner

did what examiners do when handed a signed permission slip: he vacuumed the entire device, every byte, and filed the copy away in long-term storage. Burch got his phone back and went on with his life, presumably relieved to have been so cooperative.

The download sat in a drawer, quietly holding a confession nobody had read yet.

What the drawer was holding

Two months later, the Sheriff's Office, still stuck on the VanderHeyden case, finally caught a break the old-fashioned way: DNA on Nicole's sock came back to George Burch. The detectives ran his name through the local records to see if anyone had ever crossed paths with him, and up popped the Green Bay file, the one about the stolen car and the fire, with a signed consent form stapled to a complete mirror image of his phone.

They opened it. And there, in the browser history, was the detail that should be taught in schools: **sixty-four separate visits to news stories about Nicole VanderHeyden's death.** Sixty-four. A man who told anyone who'd listen that he had nothing to do with it could not stop refreshing the coverage of it, the way you worry a loose tooth you swear doesn't hurt.

The phone had more to say. It was tied to a Google account, and a warrant to Google produced the "Dashboard" location history, a quiet little map of everywhere the phone had been. It put Burch at the bar Nicole visited her last night alive. It put him near her home. It put him at the field where her body was found. And it put him at the on-ramp where her bloody clothes were thrown from a moving car. The phone had ridden shotgun through the entire murder, taking notes, and its owner had personally carried it into a police station and offered it up over a traffic beef.

The story he brought to court

By trial, Burch had no choice but to admit he'd been with Nicole that night; the data had nailed his shoes to the floor. So he built a story around it, and it was a beauty. Yes, he'd met her at a bar. Yes, they'd left together, parked near her house, gotten intimate. And then, he told the jury, he blacked out, and woke up on the ground to find Nicole dead and her boyfriend, Detrie, standing over the two of them with a gun. At gunpoint, Burch said, Detrie forced him to load the body into his own car, drive it to a field, and carry it into the ditch, after which Burch heroically shoved him, sprinted to his vehicle, and escaped, pausing only, on the drive home, to fling Nicole's clothing out the window "in a panic."

It was the sort of tale that requires a very specific listener: one who has never met a coincidence he didn't adore. It cast, as the villain, the one man in Wisconsin with a twelve-step, machine-printed alibi. And Burch had shared this harrowing gunpoint ordeal with precisely no one, not during the months police publicly begged for tips, not with a single friend, until the witness stand made it convenient.

The jury took the twelve steps over the blackout. George Burch was convicted of first-degree intentional homicide and sentenced to life.

The law catches up

Burch appealed all the way to the Wisconsin Supreme Court with a genuinely interesting complaint: sure, he'd signed a consent form, but he'd only meant to show the cops his *texts*, not donate the entire contents of his phone to a murder investigation that hadn't even started yet. And once one police department had it, could another one really go rummaging through it months later for a different crime?

In 2021 the court said yes, and yes, though the justices split enough ways to show these are not easy questions in the smartphone age. Burch's form authorized a search of his cellphone, full stop, with nothing limiting it to text messages; and one department sharing lawfully held

evidence with another was, in the trial court's words, common and long-understood practice. The court also ruled the Fitbit's step count could go to the jury without an expert first climbing onto the stand to vouch for the science, a mirror image of the fight in the *Dabate* case a chapter over, where the same little gadget got the full white-glove treatment. Wisconsin let the wristband speak for itself.

How'd he get caught?

By being helpful. Somewhere out there is a version of George Burch who keeps his mouth shut and his phone in his pocket, and that man is a much harder case. The real one signed a form over a fender-bender and gift-wrapped a map of the killing: his phone at the bar, at her house, at the field, at the on-ramp, and sixty-four anxious little pilgrimages back to the news. Meanwhile the man the odds had elected, the boyfriend, the easy answer, was saved by a nine-dollar-a-month gadget that had clocked him doing twelve steps' worth of nothing. The oldest rule in the detective's book says look at the one she loved. The newest footnote says check his wrist first.

Read the case yourself: *State v. Burch*, 2021 WI 68, 398 Wis. 2d 1, 961 N.W.2d 314, Wisconsin Supreme Court, decided June 29, 2021. Free online: CourtListener · Justia · official PDF via wicourts.gov. The facts are set out in the Background section; the cellphone-consent and Fitbit rulings follow in the Discussion.

Chapter 24 - The Car That Almost Testified

Your car remembers the last five seconds before a crash: how fast you were going, whether you braked, whether you were belted in. It is the most honest witness to a fatal wreck. And in these two cases, the courts told the police they could not read it without a warrant.

Almost every chapter in this book is about a machine that testified against a killer. This one is about two machines that were ready and willing to, and were silenced, not because they lied, but because of how the police went about making them talk. It is the counterweight the book needs, a reminder that the same technology that convicts is powerful enough to frighten the law into guarding it.

The machine in question is the event data recorder, the “black box” tucked inside nearly every modern car. It is always listening to the vehicle around it, and in the instants surrounding a crash it freezes a record of the things that matter most to a collision investigator: the speed, the throttle, the brake, the steering, whether the seatbelts were buckled. After a fatal wreck, that little box holds the closest thing to an eyewitness account that exists, an unblinking, mechanical memory of exactly what the driver did in the seconds before someone died.

Two crashes, two boxes, two silences

Charles Worsham was driving a car in a high-speed crash in Florida that killed his passenger. The vehicle was impounded, and twelve days after the crash, the police downloaded the data from its event data recorder. They did not have a warrant. When they finally applied for one, four days later, it was denied, for the simple reason that the search they wanted permission for had already happened. Worsham was charged

with DUI manslaughter and vehicular homicide, and he moved to suppress the black-box data.

The state's argument was blunt and, it turned out, fatal to its own case: it claimed Worsham had no privacy interest in the data at all, so that reading it was not a "search" the Fourth Amendment even touched. In 2017 the Florida Fourth District Court of Appeal disagreed and affirmed the suppression. There is, the court held, a reasonable expectation of privacy in the information an event data recorder retains, and downloading it from an impounded car without a warrant, and without any emergency to justify skipping one, violated the Fourth Amendment. The box had recorded the truth of the crash. The truth was thrown out.

A few years earlier and a continent away, a California case had run the same course. George Xinos, intoxicated, struck and killed a pedestrian and fled the scene, and was convicted of vehicular manslaughter. Central to the case was the data police had pulled, again without a proper warrant, from the sensing and diagnostic module in his car, the same kind of black box, holding the same kind of last-seconds record. On appeal, the court held that the warrantless download was not supported by probable cause and that admitting the module's data violated the Fourth Amendment, and it reversed. *(A note of caution: the Xinos opinion was later ordered depublished, meaning it cannot be cited as binding precedent in California, though its reasoning remains a clear illustration of the principle.)*

The witness the law makes wait outside

There is an irony at the heart of these two cases that is worth sitting with, because it defines the boundary this whole book runs along.

In every other chapter, a device's memory is a gift to the prosecution: the Fitbit that keeps counting, the phone that logs the towers, the car whose GPS retraces the route to the body. Here the device's memory was every bit as damning, arguably more so, because a black box does not deal in inference. It does not merely place you near a crash; it tells the

court how fast you were going and whether you hit the brake. It is as close to a perfect witness as forensic technology has produced.

And that is precisely why the courts flinched. A witness that reliable, that total, that effortless to summon, is exactly the kind of power the Fourth Amendment exists to keep on a leash. If the police can pull a complete record of your final drive out of your impounded car whenever they like, with no warrant and no judge, then the same box that convicts a drunk driver can be read on any of us, for any reason, or none. So the law drew the line not at whether the machine could testify, but at *how* it could be compelled to: with a warrant, through a judge, the way the Constitution insists the most powerful searches be run. Both drivers' black boxes were ready to tell the whole story. Both courts said the state had skipped the step that lets a free country listen.

How'd they get caught? And why didn't it stick?

They were caught, in the plain sense, by their own cars, which recorded their speed and their braking and their failures with the loyalty of a machine that has no idea whose side it is on. Charles Worsham's car knew what happened on that road, and so did George Xinos's. The catching was never in doubt.

What these cases teach, and why they earn a place among the stories of killers undone by evidence, is the flip side of every other chapter: that being recorded and being convicted are not the same thing, and the gap between them is the law. The event data recorder is the future this whole book is describing, a world in which the objects around us witness everything and forget nothing. These two decisions are the reminder that the future still has to come through the courthouse door, and that a witness powerful enough to convict the guilty in an instant is powerful enough that we should want a judge in the room before it speaks. The car almost testified. The Fourth Amendment sent it home.

Read the cases yourself: *State v. Worsham*, 227 So. 3d 602 (Fla. 4th DCA 2017); *People v. Xinos*, 192 Cal. App. 4th 637 (2011) (later depublished; not citable as precedent in California). Free online: Worsham - Leagle / FindLaw; Xinos - vLex / CaseMine. Both opinions describe the event-data-recorder download, the absence of a valid warrant, and the Fourth Amendment ruling suppressing (Worsham) or reversing on (Xinos) the black-box evidence. Note: both are vehicular-homicide/DUI cases, and in both the device data did **not** ultimately convict - the point of the chapter.

Chapter 25 - The Residue Doesn't Lie, But It Doesn't Explain

A speck of lead, antimony, and barium, fused by the heat of a gunshot, cannot tell you whose finger was on the trigger. It can only tell you that you were standing much too close to one.

Not every chapter in this book is a story about a criminal outsmarting himself. This one is about the humbler, harder kind of case, the sort investigators actually face most of the time, where no single clue shouts the answer and the truth has to be built brick by circumstantial brick. Andrew Stevenson's case turns on a piece of evidence that is famous for pointing straight at the guilty and infamous for occasionally pointing at the innocent, and the honest tension between those two things is the whole story.

At about 7:20 on the evening of December 23, 2006, Stefanie Stevenson walked the short distance from her house to her van. She was leaving for a shift at the local hospital. Someone who had been waiting beside her home stepped out of the dark and shot her once in the head.

Roughly two hours later, her estranged husband, Andrew Stevenson, was under arrest and charged with first-degree murder.

No one disputed that whoever fired that shot was guilty of first-degree murder. This was not a robbery gone sideways; the killer had lain in wait, patient and deliberate. The only question in the entire case was the biggest one of all: identity. Who was the figure beside the house? There were no eyewitnesses. The gun was never found. Andrew Stevenson did not testify. The Crown's case was built entirely of

circumstance, and one of its most important bricks was invisible to the naked eye.

Motive, opportunity, and a missing hour

Before the science, the ordinary evidence leaned toward the husband, though it never leaned cleanly, and the Court of Appeal was scrupulous about saying so.

The couple had separated thirteen months earlier and were grinding through a divorce. Stevenson believed his wife had cheated during the marriage and nursed what the judgment calls “a considerable grudge,” and this was not idle character assessment: he had been convicted of threatening her only months before, in the summer of 2006. The day before she was killed, Stefanie told him she’d rejected his latest financial-settlement offer, some \$30,000, and that his next word on the subject would come from her lawyer. There was evidence he resented that she’d begun living with another man and had said he didn’t want another man raising his children. And he knew the two things a lurker would need to know: that she’d moved into this particular house only about three weeks earlier, and her work schedule, because he took their daughters while she worked.

But, the court stressed, the motive evidence “did not point only in one direction.” The two were largely getting along where the children were concerned. The settlement conversation had not been a screaming match. Stevenson had a new relationship of his own and, by appearances, had moved on. This is not the file of a man visibly boiling over. It is the file of a man with reasons, which is a weaker and more human thing.

Opportunity had the same frustrating shape. Stevenson left his sister’s home near Brockville around 5:00 p.m., and video surveillance dutifully tracked him Christmas shopping until 6:35, when a McDonald’s camera caught him about twenty minutes from the murder scene. Stefanie was killed between 7:20 and 7:25. He was back at his sister’s, a twenty-to-twenty-five-minute drive from the scene, by around 8:30.

Which leaves a hole in the evening, 6:35 to 8:30, unaccounted for by any witness or camera, and precisely wide enough to contain a murder. A missing hour is not proof. But it is the kind of silence a jury notices.

That is a case badly in need of a physical fact to close the gap. The Crown's physical fact was gunshot residue.

What the particles were, and what they weren't

When police arrested Stevenson, they bagged his hands in plastic to preserve any residue, then later daubed them and seized his clothing for testing at the Centre of Forensic Sciences.

The haul was substantial. Examiners found two gunshot-residue particles on the back of his left hand, nine on the web of his right hand, thirteen on the back of his right hand, and more on his jacket sleeve and on the front and back of his pants. And these were not loose approximations or lookalikes. A particle only counts as GSR if it contains all three elements, lead, antimony, and barium, fused together by the specific heat and pressure of a firearm going off. The forensic scientist explained that such particles are stubbornly persistent, they don't readily degrade, and, crucially, they transfer from surface to surface with the lightest contact.

That last property is the hinge the entire case swings on, and the reason this chapter sits a little uneasily beside the others. As the expert testified, and as the Court of Appeal underlined, the presence of GSR on a person's hands "does not assist in identifying how the particles came to be" there. The residue proves you were near a gun when it fired. It does not, on its own, prove your hand pulled the trigger. The defence pressed exactly that point, floating innocent routes for the particles to have arrived, including transfer after the arrest, from officers' hands or from surfaces in police custody. It is a real argument, and the honest truth is that gunshot residue has helped convict the guilty and has, in other cases, helped rush the innocent toward the wrong verdict.

The admissibility of that evidence, and the way it was explained to the jury, was the heart of the appeal. In November 2014 the Court of Appeal for Ontario examined how the residue had been presented and dismissed the appeal. The GSR was properly admitted. Stacked together with the lying-in-wait ambush, the grudge, the killer's private knowledge of the victim's new address and schedule, and that missing hour, the particles helped a jury conclude, beyond a reasonable doubt, that the patient figure beside the house had been her husband.

How'd he get caught?

He was caught by a constellation, not a single star, and that is the point worth sitting with. Nobody saw the shooter. Nobody recovered the gun. What the Crown assembled instead was a killer who happened to know where the victim now lived and when she left for work, a husband with a grudge and a fresh money grievance, an hour on the night of the murder he could not account for, and then the residue, dozens of three-element particles across both hands and his clothes, the chemical signature of standing beside a gun at the instant it speaks. Take any one of those facts alone and Andrew Stevenson had an answer. The GSR could transfer. The hour could be spent anywhere. A grudge is just a grudge. What he could not answer was the sheer improbability of all of them landing on the same man, on the same night, outside the same house. Some criminals are undone by one spectacular blunder. Others are simply buried, one modest and innocent-looking fact at a time, until the pile stops looking like a coincidence.

Read the case yourself: *R. v. Stevenson*, 2014 ONCA 842, Court of Appeal for Ontario, decided November 26, 2014 (Doherty J.A.; Rouleau and Epstein JJ.A. concurring). Free online: CanLII. The evidence is grouped under six headings beginning at para. 4; the detailed GSR findings and the admissibility analysis follow.

Chapter 26 - No Gun, But the Bullets Matched

The murder weapon was never found. It didn't have to be. The killer kept the matching ammunition in his bedroom and photos of the rifle on his Facebook.

Most shooting cases begin with a gun. This one never produced one, and it is a useful reminder that a firearm leaves a great deal of itself behind even when it walks away, in the round it fires, the ammunition it feeds on, and, increasingly, in the photographs its owner cannot resist posting.

The story starts, as more and more of them do, with a fight arranged by phone. A sixteen-year-old, whom the law shields behind the initials J.M.F. because he was a young person, exchanged messages with the man who would become the victim. Between the appellant's phone, the victim's phone, and their Facebook records, investigators could later read the whole negotiation: the two had agreed to meet that evening to fight, and they had set terms. No weapons. No backup. No police.

It was, in other words, supposed to be a fair fight, and exactly one of the two young men showed up honoring the deal.

Two gunshots on a borrowed phone

The victim did not come alone. He arrived with two other people, and one of them, a person the record calls M.P., pulled out the victim's own cell phone and recorded what happened next. The video is not the clean piece of evidence a prosecutor dreams of. It shows the victim getting out of the vehicle and walking toward a figure whose face cannot be made out in the dark. Then two gunshots crack across the audio, and that is all the camera can tell you. It captured a murder it could not identify.

What the camera couldn't supply, the physical evidence began to. At the scene and on the autopsy table, the story sharpened: the victim had been killed with a .22-calibre bullet. And a .22 is a common enough round that on its own it proves little, which is why the next fact matters. When police later searched the sixteen-year-old's bedroom, they found ammunition, and it was consistent with the calibre and make of the round that killed the victim. No gun. But the food the gun ate was sitting in his room.

Then his own phone finished the job the crime-scene video had started. Extracted from the device and from his Facebook were images of at least three firearms, and one of them was a rifle of a calibre, and taking ammunition, consistent with the casing found at the scene, a gun that could have fired exactly the round that killed a young man in the street. He had agreed to a no-weapons fight, brought a gun, kept its diet in his bedroom, and kept its portrait on his social media.

The phone had one more thing to say, and it said it in his own words. After the shooting, the appellant texted M.P., and although he made a point of trying to delete the messages afterward, they were recovered, and they could be read to place him at the scene and to have him admitting his involvement. Further messages between the appellant and his sister, sent as the police were closing in, read as a small anxious scramble to hide what he had done. A killer who deletes his confession has at least grasped that the confession is a problem. He has simply misunderstood, as so many in this book have, where deleted text messages go, which is nowhere.

The foyer

On that evidence a trial judge found the sixteen-year-old guilty of first-degree murder. And then the case did something the previous paragraphs would not lead you to expect: it fell apart, not over the ballistics, not over the confession, but over a doorway.

The Facebook messages on the victim's phone had pointed police to the appellant, and they obtained a warrant for the home where he lived

with his mother. He got a lawyer, and his counsel arranged for him to surrender at his father's house, with the understanding that a lawyer would be present when he gave his statement at the station. Two officers came to the father's home and were invited into the foyer. There, in front of the young man's parents and sister, they told him he was under arrest, and they did not advise him of his right to counsel or his right to remain silent. Their reasoning, they later testified, was that the crowded little entryway was no place for it, and that the privacy and control of the police vehicle would be better. Before they got him to that vehicle, an officer asked whether he had all his belongings, and specifically whether he had his cell phone. The teenager first said he had gotten rid of it, then, seconds later, admitted it was in the house but that he would not hand it over.

That small exchange, conducted before a child in custody had been told he could stay silent or call a lawyer, is what unraveled the conviction. The Manitoba Court of Appeal held that the statement had been obtained in breach of the appellant's right to counsel under section 10(b) of the Charter, protections the law makes especially robust for young persons precisely because they are young. Because that tainted exchange led to the seizure of the phone and everything on it, the statement and the phone's contents had to be excluded. Strip that evidence out, the court reasoned, and you remove a great deal of what the trial judge had leaned on. It did not necessarily mean there was too little left to convict; the ammunition, after all, had come from a separate search. But it meant the whole case had to be weighed again, fairly, the second time. In 2022 the court set the conviction aside and ordered a new trial.

How'd he get caught?

He was caught by the gun that wasn't there. A firearm can vanish into a river or a friend's basement and never surface, but the sixteen-year-old had surrounded himself with everything a missing gun implies: the matching ammunition in his bedroom, photographs of a compatible rifle on his Facebook, and a set of confession texts he trusted the delete

button to erase. On the strength of it, a judge convicted him. And then the same case became a lesson pointed in the other direction, a reminder that the rules about how police may treat a suspect, above all a child, are not technicalities to be brushed aside in a crowded foyer, and that cutting the corner can cost the Crown the very conviction the evidence had earned. He got caught by keeping the bullets. He got a second trial because the police forgot the warnings.

Read the case yourself: *R v F (JM)*, 2022 MBCA 52, Court of Appeal of Manitoba, decided June 8, 2022 (Monnin J.A.). Free online: CanLII. The facts are set out in the opening paragraphs; the section 10(b) Charter analysis and the order for a new trial follow. Note: a publication ban under the Youth Criminal Justice Act protects the identities of those involved.

Chapter 27 - What Happens When You Die

After they shot an innocent man in a parking lot, one of the killers pulled out his phone and Googled “what happens when you die.” He was not being philosophical. He was checking his work.

Nnamdi Ogba had no idea he was about to become a message.

He was an engineer who lived in Brampton, Ontario, and on the night he died he was simply visiting a friend from his soccer team who lived at Scarlettwood Court in Toronto. He had no gang ties, no criminal entanglements, no quarrel with anyone. He had the profound misfortune of walking through a parking lot at the wrong moment, in a place that two groups of young men had decided to turn into a battlefield.

The Crown’s theory, supported by a great deal of video, was that three men, whom it identified as members of a gang called C3, had driven into the territory of a rival gang, the Scarlettwood Crips, intending to shoot someone, anyone, to send a message. The victim did not have to be a rival. He only had to be there. Nnamdi Ogba was there.

A murder on camera

Very little about this killing had to be reconstructed, because a remarkable amount of it was captured on closed-circuit television, the quiet, unblinking witness that has become the modern city’s memory.

The cameras show three men taking a cab to a parking lot, climbing into a stolen Nissan Rogue fitted with stolen licence plates, and driving to Scarlettwood Court. The driver stays with the car and positions it for a fast exit, the automotive equivalent of leaving the engine running, because that is exactly what it was. Two of the men get out and walk

through the lot. At the same moment, Nnamdi Ogbu is leaving one of the apartment buildings. The footage shows the two men approach him from behind. There are several flashes of light in quick succession. Then the two turn and sprint back to the waiting car, pile in, and are driven away.

Ogbu was left in the parking lot, struck by five of the nine bullets fired. One of them reached his heart. It was not seriously disputed that this footage showed his murder. What the footage could not do, by itself, was prove which men were behind the guns and, crucially for a first-degree murder charge, prove that the killing was planned and deliberate rather than some chaotic eruption. For that, the Crown turned to the killers' phones, and the phones delivered something colder than any camera.

The search

Watch what the CCTV captured after the shooting, because this is the detail that will stay with you. The three men are together in an elevator. The driver is showing the other two something on his phone. He rubs their heads, the gesture of a coach after a good game, and offers them what looks like a pill, a little celebration in a moving box.

What was on the phone, a later search revealed, was the news. In the minutes after gunning down a stranger, one of the men had used his phone to pull up the information the police were releasing about a shooting in the Scarlett Road area, and then a news article about it. He was following the coverage of his own crime in real time, the way a gambler refreshes a score.

And then, a few hours later, that same phone was used to run a Google search. Two phrases. The first was “without vital signs.” The second was “what happens when you die.”

Sit with what those searches are. They are not grief, and they are not fear. They are quality control. A man who has just fired into another man's back is checking, with the same casual thumb he'd use to look up a restaurant, whether the job was finished, whether a person shot five times stays down, what the machinery of a human being does when you

switch it off. The next morning, a second defendant's phone was also used to read news articles about the shooting. The killers could not stop checking the box score, and every check was a timestamp, saved to a server, waiting.

Together with the stolen car, the stolen plates, the getaway position, the unhesitating ambush of a man who had done nothing, and the after-the-fact celebration, those searches painted precisely the picture the Crown needed: not a brawl gone wrong, but a planned and deliberate execution carried out to make a point. A jury convicted all three of first-degree murder.

An honest ending

This is the part of the chapter where honesty requires a turn, because two things are true about *R. v. Mohamed* that the cinematic version would leave out.

The first is about the gun. A firearms examiner did testify. She took the cartridge casings and bullet fragments recovered from the scene and from Ogba's body and ran their characteristics through an FBI database, which spat back a list of firearms that could have fired them. She noted that one of the two guns visible in the phone videos appeared to be on that list. But she was careful, as good experts are, about what she could not say: she could not definitively identify the murder weapon. The ballistics here did not slam a door. It leaned, gently, in a direction. In this case the smoking gun, so to speak, was never the gun. It was the cameras and the callous curiosity of the searches.

The second turn is about the verdict. In 2025 the Court of Appeal for Ontario set the convictions aside and ordered a new trial, concerned with how certain evidence, including gang-expert testimony and some of the video and image material, had been admitted. The men who were caught so vividly on camera and condemned so plainly by their own phones did not, in the end, stay convicted on this appeal. Their case goes back to be tried again.

That does not unmake how they were caught. It simply means that being caught and being convicted are two different stations on the same line, and the law insists, correctly, that the trip between them be done properly.

How'd they get caught?

They were caught by a city that never stops recording and by their own inability to look away from what they'd done. The CCTV followed them from the cab to the stolen car to the ambush to the elevator, a continuous ribbon of evidence they seem never to have considered. And then, handed a chance to simply vanish into the night, one of them instead opened his phone and asked the internet whether the man he had shot would die, turning his own curiosity into a signed, timestamped statement of intent. There is an old idea that the guilty return to the scene of the crime. These men did something the modern age makes far easier and far more damning. They looked it up.

Read the case yourself: *R. v. Mohamed*, 2025 ONCA 611, Court of Appeal for Ontario, decided September 5, 2025 (Fairburn A.C.J.O.). Free online: CanLII. The CCTV narrative and the phone evidence are set out early in the reasons; the firearms-examiner testimony and the admissibility grounds that led to a new trial follow. Note: the convictions were set aside and a new trial ordered.

Chapter 28 - The Second Shooter the Bullet Found

Witnesses saw one man standing in the road firing a rifle, and the police charged him with murder. Then the bullet pulled from the victim's body said he had not done it, and pointed into the dark at the side of the road, where a second shooter no one was watching had been standing.

On the evening of November 17, 2018, Hailey Dugay was twenty years old and sitting in the rear passenger seat of a pickup truck as it travelled down Kuz Road, a gravel road in the Interlake region of Manitoba. A single .30-calibre bullet came through the back of the truck and struck her in the lower back. She died of the wound. She had done nothing but ride in a truck down a country road.

What makes her case matter to this book is not a clever killer undone by his own device; it is the quiet, patient way a single recovered bullet can overrule every eyewitness on the scene, clear the man everyone was sure had done it, and finger the one they had not even been looking at. This is a chapter about ballistics, the forensic reading of what a fired gun leaves behind, doing the hardest thing that evidence can do: telling the police they had the wrong man, and where to find the right one.

The man everyone saw

At first the case looked simple, because there was a shooter in plain view. Several witnesses had seen Jesse Paluk standing on Kuz Road firing a rifle at the time the truck carrying Hailey Dugay was shot. He was the obvious suspect, and the police charged him with second-degree murder. If the story had ended with what people saw, it would have ended on Paluk.

But there were two guns on that road that night, both firing .30-calibre rounds, and the difference between them is the whole case. Paluk had a bolt-action Remington that fired large Magnum cartridges, about seven centimetres long. Standing somewhere off to the side, in the ditch, was a second man with a semi-automatic Winchester rifle that fired a different, smaller .30-calibre round, a SAVFC cartridge about five centimetres long. Two shooters, two guns, two distinct kinds of ammunition, and one of them killed her.

The physical scene preserved that distinction perfectly. Police found five spent Magnum casings in the middle of Kuz Road, and forensic analysis confirmed they had been fired by Paluk's bolt-action Remington. About ten feet away, in the grass of the ditch on the west side of the road, lay three spent SAVFC cartridge casings, a wholly different round, and analysis confirmed those had not come from Paluk's rifle. Two piles of brass, ten feet apart, in two different calibres of the same bore. The road itself was telling anyone who could read it that there had been two shooters, not one.

What the recovered bullet said

Then came the piece of evidence that resettled everything. The .30-calibre bullet that killed Hailey Dugay was recovered from her body, and it was examined. Forensic analysis confirmed that the fatal shot had not been fired by Paluk's bolt-action Remington, the rifle every witness had watched him shoot.

Sit with what that means. The man standing in the middle of the road, the man several people saw firing, the man the police had already charged with murder, was excluded as the killer by the bullet itself. Eyewitnesses are famously fallible; they place people, they miss things in the dark, they assume the man they can see firing must be the man who did the harm. The bullet is not fallible in that way. It carries the marks of the barrel that fired it, and those marks said: not this rifle. Paluk had fired, recklessly and dangerously, and he pleaded guilty to

discharging a firearm with recklessness for it. But he had not fired the shot that reached the truck.

Paluk became a cooperating witness for the Crown, and he identified the second shooter, the man in the ditch with the Winchester, as William Comber. On August 6, 2019, Comber was charged with the second-degree murder of Hailey Dugay, on the theory that his was the gun that fired the fatal, distinct SAVFC round.

Here the book has to be honest about a limit in the science, because Comber's own conduct created it. Comber had taken the Winchester rifle into his residence after the shootings, and the police never recovered it. Without the gun, the firearms examiners could not positively match the fatal bullet to Comber's rifle the way a recovered weapon allows; the make of the firearm that fired both the fatal shot and the three SAVFC casings could not be conclusively established. So the ballistics did not fingerprint Comber's gun. What it did was more subtle and, at trial, enough: it eliminated the only other shooter, and it proved that a second, different weapon firing a second, different cartridge had been at the roadside, exactly where Comber was seen standing. The defence tried to answer this by suggesting that Paluk had somehow wielded two guns at once, firing both cartridge types himself, a theory the courts did not accept. A jury convicted Comber of second-degree murder in December 2022.

Murder, then manslaughter

This case does not end where the jury left it, and the reason is worth understanding, because it is the difference between killing someone and meaning to.

On appeal in 2026, the Court of Appeal of Manitoba dismissed most of Comber's many grounds, but it agreed with one thing that mattered: the second-degree murder verdict was unreasonable, not because he did not fire the fatal shot, but because the evidence did not support the finding that he fired it with the intent the law requires for murder. Firing a rifle at a vehicle, the court reasoned, is not automatically the same as

intending to cause bodily harm to a person inside it. The fatal bullet had struck the tailgate, passed through the empty truck bed, punched through the cab wall and the rear seat, and only then reached Hailey Dugay; there was no evidence Comber had aimed at a person. That is the stuff of a reckless, unlawful killing, which is manslaughter, not the intentional killing that is murder. The court substituted a verdict of manslaughter and sent the case back for sentencing on that basis.

So Comber stands convicted of the unlawful killing of Hailey Dugay, not of her murder. It is a real conviction for a real death, told at the honest weight the law finally gave it, and the thread that produced it never wavered through either verdict: it was always the bullet, and the two kinds of brass in the road, that decided who fired the shot that killed her.

How'd he get caught?

He was caught by physics doing what witnesses could not. Everyone was looking at the loud man in the middle of the road, and the recovered bullet calmly informed the court that he was innocent of the killing, that his rifle had not fired the fatal round, and that a second gun of a different calibre had spoken from the ditch. Comber thought he had covered himself by carrying the Winchester home so it could never be found, and in a narrow sense he succeeded, because the science could not put that exact rifle in his hands. But he could not carry away the three spent casings in the grass, or reload the fatal bullet back into a body, or make the marks on it match the one gun the police already had. The ballistics cleared the wrong man and lit up the right one. You can hide the gun. You cannot hide the fact that it was a different gun.

Read the case yourself: *R. v. Comber*, 2026 MBCA 27, Court of Appeal of Manitoba (Mainella J.A.), heard October 22, 2025, judgment delivered March 30, 2026. Free online: CanLII (note: a publication ban under s. 486.5 of the *Criminal Code* protects certain witness/victim information). The two shooters and two firearms, the five Magnum casings tied to Paluk's bolt-action Remington, the three SAVFC casings ten feet away in the ditch, and the forensic analysis excluding Paluk's rifle as the source of the fatal bullet are set out in the background. The Winchester rifle was never recovered, so the fatal weapon's make could not be conclusively established. The appeal was dismissed but the second-degree murder verdict was set aside as unreasonable and a verdict of manslaughter substituted.

Chapter 29 - The Judge and the Paralyzed Hand

A retired appeal-court judge told police his wife had shot herself. But a stroke had left her right arm completely paralyzed, and the gunpowder was on her left hand, in a pattern no suicide could have made. This is also the chapter where the forensics, years later, came under suspicion themselves.

Jacques Delisle had spent his career on the other side of the bench. He was a retired judge of the Quebec Court of Appeal, the very court that would one day sit in judgment of him, and in 2012 a jury convicted him of the first-degree murder of his wife, Nicole Rainville. His account, given to police in his own home, was that the seventy-one-year-old Rainville had taken her own life, and that he had no idea what had happened.

The scene seemed, at a glance, to fit. Rainville lay on the living-room sofa, on her back, bloodstained, a wound visible at her left temple. On the floor, level with her left arm, was a .22-calibre Sterling handgun. A woman, a gun, a wound to the head: the tableau of a suicide. But a staged suicide, like every staged scene in this part of the book, is a story that has to survive contact with the victim's own body, and Nicole Rainville's body told a story her husband's could not.

What the left hand could not do

Two facts, set beside each other, dismantled the suicide.

The first was medical. Some time before her death, Nicole Rainville had suffered a stroke. It had left her with a weakened right leg and a right arm that was completely paralyzed. Whatever she could still do, she

could not do with her right hand. So if she had shot herself, she had done it left-handed.

The second was forensic. When the pathologist and the firearms experts examined her, they found the telltale residue of a gunshot, the black smoke and embedded gunpowder, on her left hand, with a smaller, fainter deposit near the left thumb. The question, then, was narrow and answerable: was there any way for Nicole Rainville to have fired that pistol into her own left temple, using her one working hand, that would leave residue in that pattern? A firearms expert worked it through and reached a flat conclusion. There was no position consistent with suicide that would have left such traces on the left hand. Her wound, he determined, could not have been self-inflicted.

A woman with one paralyzed arm, a wound to the temple, and gunpowder deposited on her surviving hand in a way that no act of self-destruction could produce. The suicide Delisle described was not merely unlikely. According to the science put before the jury, it was impossible. He was convicted, and in 2013 the Quebec Court of Appeal, his own former court, dismissed his appeal.

The chapter's second, harder turn

This book is honest about its cases, and Delisle's does not end where a tidy morality tale would like it to. Because the very forensic confidence that convicted him, the certainty that the wound could not have been self-inflicted, later became the subject of serious doubt.

Years after the appeal, the case was reviewed at the federal level, and in 2021 the Minister of Justice, citing concerns that the forensic evidence about the gunshot may have been overstated, ordered that Delisle's conviction be set aside and a new trial held. The staged-suicide science that had seemed airtight in the courtroom looked, on later scrutiny, less certain than it had been made to sound. And in 2024, rather than face that new trial, Jacques Delisle pleaded guilty to manslaughter and, credited with the years he had already served, walked free. *(That later history, the ministerial review, the ordered new trial, and the manslaughter plea,*

comes from the record of the case after the 2013 appeal anchored here, not from the appeal itself.)

So what is Delisle, in the end? A wife-killer caught by the physics of a wound his lie could not survive, or a man convicted on forensic certainty that turned out to be softer than advertised, who then admitted enough to end the ordeal? The honest answer is that the case has been, at different moments, told as both, and that is exactly why it belongs here. The staged-suicide analysis in this part of the book is a powerful tool. Delisle is the reminder that a tool that powerful must be wielded with humility, because the same confident expert who exposes a real killer can, in another case, sound just as sure and be reaching too far.

How'd he get caught?

He was caught, first, by the gap between the death he described and the body that described it back. Jacques Delisle asked the police to believe that a seventy-one-year-old woman with a completely paralyzed right arm had shot herself in the left temple, and the residue on her left hand said she had not, and could not have. It was the physics of the wound, not any confession, that turned a grieving widower into a convicted murderer. What makes his story different from the others in this part is what came after: the discovery that the science which seemed to catch him so cleanly was, itself, open to challenge. He was caught by forensic certainty. Years later, that certainty was the thing put on trial.

Read the case yourself: *Delisle c. R.*, 2013 QCCA 952, Court of Appeal of Quebec, 2013 (unofficial English translation available; SCC leave later denied). Free online: CanLII. The scene, the victim's paralyzed right arm, and the firearms/pathology evidence that the wound could not have been self-inflicted are set out in the reasons. The 2021 ministerial order for a new trial and Delisle's 2024 manslaughter plea are part of the case's later history, after this appeal.

Chapter 30 - The Staged Break-In

A husband said an intruder had killed his wife with an axe in the drive shed and escaped through a broken window. The Crown said he had staged the whole scene. And then the appeal turned on a harder question: how far can an expert go in telling a jury a scene was staged?

Maria Klymchuk was killed on Easter Sunday, 1998, in the drive shed about thirty feet from the family home, the outbuilding where she trained her dogs. She had gone out around eleven at night for a training session with one of them. She was struck in the neck and the back of the head several times, and a bloodied axe was found on the drive shed floor. Her husband, the appellant, said he had found her there, unconscious, with obvious head injuries.

He also said something else, something the physical scene appeared, at first, to support: that whoever did this had broken into the drive shed through a window and fled. There was a torn screen. There were signs of forced entry. To a first responder, it read as a home, or at least an outbuilding, invaded by a stranger.

The Crown's case was that the stranger did not exist, and that the appellant himself had staged the break-in to point the police away from the person standing closest to the body: her husband. And to prove that the scene was a fake, the Crown reached for a kind of expert the courts were still learning how to handle.

The expert who read the scene

The Crown called Special Agent Allan Brantley of the Federal Bureau of Investigation, an expert in what is called crime-scene “staging,” the

analysis of whether the physical evidence at a scene reflects what really happened or has been deliberately arranged to tell a false story. The theory of staging is intuitive and often powerful: real burglars behave in certain ways, take certain things, enter and leave by efficient routes, and a scene that departs from those patterns, a “break-in” that takes nothing, a point of entry no real intruder would choose, can betray the hand of someone trying to manufacture a crime that never occurred.

The trouble is that staging analysis, in the wrong hands or pushed too far, slides from observation into something closer to mind-reading, an expert telling the jury not just that a scene is unusual but that the accused arranged it and is therefore guilty. And that is where Maria Klymchuk’s case became important beyond its own tragic facts.

The appellant was convicted. But on appeal in 2005, the Court of Appeal for Ontario, in reasons that would guide Canadian courts afterward, held that parts of the staging expert’s evidence should not have been admitted, that the testimony had gone beyond its proper limits. The court quashed the conviction and directed a new trial. The staging evidence was not worthless, but it had been allowed to reach too far, to do too much of the jury’s work of deciding guilt, and a conviction resting on it could not stand as it was.

The scene was still staged

It would be a mistake to read that reversal as a finding that the husband was innocent, and the later history makes that clear. This was not a case of a wrongly accused man freed by an appeal; it was a case about *how* a true scene of staging may be proved to a jury, and about keeping expert opinion within honest bounds. After the 2005 decision and the further proceedings that followed it, the case against the appellant did not go away. It was retried, and he was ultimately convicted again, of second-degree murder, for the killing of his wife. (*The retrial outcome comes from the case’s later history, beyond the 2005 appeal anchored here.*)

What Klymchuk leaves behind is a lesson that runs through this whole part of the book like a warning label. The staged scene is one of

the richest veins of evidence a killer can leave, because a person who arranges a lie in physical objects almost always gets a detail wrong, the untouched valuables, the impossible point of entry, the break-in that no burglar would bother with. But proving that a scene is staged is delicate work, and an expert who is allowed to tell the jury not merely “this scene is inconsistent with a real break-in” but “the accused staged it and is guilty” has crossed a line the law has to police. The break-in in the drive shed was, the courts came to accept, a fake. Getting that fact in front of a jury the right way took two trials.

How’d he get caught?

He was caught by the same instinct that undoes so many stagers: he built a lie out of objects, and objects can be read. A torn screen and a forced window were meant to summon a phantom intruder, but a staged break-in has to convince not just a frightened first responder but a trained analyst who knows how real intrusions look and how faked ones fail, and this one did not survive that scrutiny. The wrinkle in his case, the reason it took two trials, was not doubt about whether the scene was staged but caution about how confidently an expert could say so to a jury. Klymchuk got caught by his own set-dressing. He got a second trial because even a guilty man is entitled to have the staging proved against him, and not simply pronounced.

Read the case yourself: *R. v. Klymchuk*, 2005 CanLII 44167 (ON CA) (Doherty, Moldaver and Armstrong JJ.A.); see also *R. v. Klymchuk*, 2008 ONCA 854. Free online: CanLII (2005) · CanLII (2008). The axe killing, the alleged staged break-in, and the analysis of the “staging” expert evidence that led the court to quash the conviction and order a new trial are set out in the 2005 reasons. The eventual second-degree murder conviction on retrial is part of the case’s later history.

Chapter 31 - The Blood on the Stairs

A novelist called 911 to say his wife had fallen down the stairs. The blood on the walls, on the steps, and on the inside of his own shorts told a different story. This is also the chapter where the science that convicted him would later be the reason the case fell apart.

At 2:40 in the morning on the ninth of December, 2001, a Durham emergency operator took a call from a distraught man who said his wife had fallen down the stairs. She was still breathing, he said. How many steps had she fallen? “15, 20, I don’t know.” He hung up. Moments later he called back to say she was no longer breathing, and hung up again. When the paramedics arrived less than eight minutes after that first call, they walked into a scene that did not look like any fall any of them had ever answered.

The dead woman was Kathleen Peterson, a Nortel executive who had climbed seventeen years to the top of her company. Her husband, the novelist Michael Peterson, said he had stepped outside to turn off the lights by the pool, come back in, and found her at the bottom of the staircase. The house was one of the grandest in Durham. And by the account of the very first people through the door, it was drenched in a quantity and pattern of blood that a tumble down fifteen steps does not produce.

What a fall does not do

Paramedic James Rose had been to thirty or forty calls involving falls in his career. The worst injury he had ever seen from one was a broken neck. He testified that he had never seen wounding to the back of a head like the wounding on Kathleen Peterson. There was, he said, an

enormous amount of blood, and much of it on the walls was already dry. The blood on the stairs looked as though it had been wiped, or wiped on, smeared rather than dripped. A fall is a single sudden event. This looked like something that had taken time.

Then there was the body itself. The autopsy found seven separate lacerations to the back and side of Kathleen Peterson's scalp, each one, the forensic pathologist concluded, caused by a separate impact. Seven. The pathologist had reviewed two hundred eighty-seven North Carolina deaths attributed to falls down stairs, and studied twenty-nine of them closely in Kathleen's age range. Of those twenty-nine, seventeen had no scalp lacerations at all, and twelve had exactly one. Kathleen Peterson had seven, on a skull that, tellingly, was never fractured. Whatever struck her again and again had split the scalp without shattering the bone beneath it, which is what a beating with something that is not quite solid does, and what a staircase does not. The injuries, the pathologist said, were not consistent with a fall. They were consistent with an assaultive, beating-type pattern. There were bruises on Kathleen's arms and hands that she read as defensive wounds, the marks of someone throwing up her hands against the blows.

The witness on the inside of his shorts

The blood did not only accuse the staircase of innocence. It accused the man who called it in.

Both paramedics noticed that Michael Peterson had blood on his shirt, his hands, his arms. That, on its own, proves nothing; a grieving husband who cradles his injured wife will be bloodied. But it was not just on him. It was on him in a pattern. His shirt was not merely soaked; it was speckled, spattered with the fine spray that flies off a surface being struck. Investigators later found blood spatter on his tennis shoes and, most damningly, on the inside of the right leg of his shorts.

Sit with that last detail, because it is the one that does the quiet work. Blood on the outside of a man's clothing is the blood of a rescuer. Blood driven onto the inside of his shorts, on the leg, is spatter that arrived

while he was standing over a source throwing off droplets low to the ground, in a posture no man adopts to help. Special Agent Duane Deaver of the State Bureau of Investigation performed a blood-spatter analysis of the scene, tracing more than ten thousand drops across the stairwell, the walls, the molding inside and out. To the State, that spatter was not the geometry of an accident. It was the geometry of an arm rising and falling in a confined space, and the man swinging it had been wearing those shorts.

There was a motive to hang it on, too: mounting debt, more money leaving the accounts than coming in, a substantial life-insurance benefit that would fall to the husband, and emails in which Peterson had tried to arrange an encounter with a male prostitute, a private life the marriage did not know about. And there was a ghost. The prosecution was permitted to tell the jury about Elizabeth Ratliff, a friend of Peterson's found dead at the bottom of a staircase in Germany in 1985, her body discovered by, of all people, Michael Peterson, who had been the last to see her alive. Two women, two staircases, two pools of blood, one man present at both.

The jury deliberated after a trial that ran five months and convicted Michael Peterson of first-degree murder. He was sentenced to life without parole. In 2007 the Supreme Court of North Carolina affirmed, holding that the blood-spatter and medical evidence had painted a beating, not a fall.

The chapter that turns on itself

And here the story does something none of the others in this part quite do. It turns on the very science that anchored it.

Michael Peterson's conviction rested to a striking degree on blood-spatter interpretation, the reading of those ten thousand drops and the speckles on his clothing as the signature of a bludgeoning. Years later, the analyst who did that reading, Duane Deaver, was exposed as part of a State Bureau of Investigation scandal in which examiners were found to have overstated, misreported, and shaded their findings toward the

prosecution across many cases. Deaver's work was discredited. In 2011 a judge granted Michael Peterson a new trial, finding that Deaver had given materially misleading testimony. Peterson never faced that full second trial. In 2017, in what is called an Alford plea, he pleaded guilty to manslaughter while maintaining his innocence, was credited with time served, and walked out a free man. *(The Deaver scandal, the 2011 new-trial order, and the 2017 Alford plea all come from the case's later history, after the 2007 decision anchored here.)*

So was the blood on the inside of those shorts the truth, or was it a story a flawed analyst told too confidently? The staircase has been argued both ways for two decades, in a documentary watched around the world and in courtrooms that could not make up their collective mind. What is not in dispute is the shape of the lesson. Bloodstain-pattern analysis is one of the most persuasive forensic tools a prosecutor can hold, because blood does move according to physics and a spattered scene really can betray a beating dressed up as an accident. It is also one of the most dangerous, because so much of it lives in the interpretation, and an examiner who wants a beating badly enough can find one in the drops. Kathleen Peterson's staircase is where both of those truths stand in the same stairwell.

How'd he get caught?

He was caught by the blood, which said what he would not: seven wounds where a fall leaves none, a scalp split without a skull cracked, walls dried and stairs smeared in a way no eight-minute accident explains, and spatter thrown onto the inside of his own shorts as he stood over the source of it. The staircase he blamed could not have done that, and the ghost of a second woman on a second staircase made the coincidence unbearable. That is how the State caught Michael Peterson. Whether the catching should have held is the harder question, because the same blood evidence that convicted him was later found to have been read by an analyst the courts could no longer trust, and a case built on the certainty of spatter came undone on the uncertainty of the man reading it. He was caught by the blood on the stairs. He went free

because the science that read it could not, in the end, be trusted to have read it straight.

Read the case yourself: *State v. Peterson*, 361 N.C. 587, 652 S.E.2d 216 (N.C. 2007), No. 547A06, Supreme Court of North Carolina (affirming 179 N.C. App. 437, 634 S.E.2d 594 (2006)). Free online: search “State v. Peterson 547A06” on the North Carolina appellate courts site or Justia. The 911 call, the paramedics’ observations, the seven scalp lacerations, the “beating-type” pathology, Agent Deaver’s blood-spatter analysis, and the spatter on the inside of the defendant’s shorts are set out in the State’s evidence. The discrediting of the blood-spatter analyst, the 2011 new-trial order, and the 2017 Alford plea to manslaughter are part of the case’s later history, after this decision.

Chapter 32 - A Suicide Fired From Three Feet Away

A man cannot shoot himself from three feet away. Jerry Johnson was killed by a bullet fired from at least that far, with no powder residue around the wound, and his wife told at least six different stories about how it happened.

The physics of a self-inflicted gunshot are not negotiable. To shoot yourself, the gun has to be close, close enough that the burning gases and unburnt powder that erupt from the muzzle scorch and stipple the skin around the entrance wound. That sooty halo is the signature of a contact or near-contact shot, and its presence or absence is one of the first things a pathologist looks for when a death is dressed up as a suicide. When that halo is missing, and the bullet came from across the room, the suicide story is over before it starts.

Jerry Wayne Johnson was killed by a .25 caliber handgun in his own home on a night when only three people were present: Jerry, his wife Mary, and their son, Jerry II. The scientific evidence was undisputed and unforgiving. The fatal shot had been fired from three feet or further away, and there was no firearm residue associated with the entrance wound. Both facts are, as the Texas court put it plainly, incompatible with suicide. No man shoots himself from three feet away. The gun does not reach.

Six stories in search of an alibi

If the forensic evidence quietly closed the door on suicide, Mary Johnson's own words nailed it shut, because she could not settle on what had happened, and the sheer number of her attempts is its own kind of confession.

Consider the versions she offered. She told a volunteer firefighter, simply, that “Jerry has shot himself.” She told her son she had fetched the gun at her husband’s request, and that when she sat down in the recliner beside him, it went off. She told one deputy she had no idea how Jerry got shot, and floated the idea that “they must have been waiting on him when he came back in from outside,” conjuring a phantom intruder. To an investigator she gave three separate accounts in sequence: first that she heard a gunshot and found him shot; then that she had carried the gun into the room, set it by the loveseat arm near his head, and seen a flash; then, days later, that her husband told her to get the gun, and that she was holding it in her left hand and fell as she sat down, and it discharged. And at trial she abandoned all of it for a brand-new story, that their son had woken her holding the pistol, and that she had asked him, “Son, what do you want me to do? You want me to kill your daddy?”

A grieving, innocent spouse tells one story, because there is only one truth to tell. Mary Johnson told at least six, each tailored to the objection it was meant to answer, and one detail among them betrays the whole enterprise. At one point, she asked a deputy how long gunshot residue remains on a person’s hands. It is not the question of a woman trying to understand her husband’s suicide. It is the question of a woman who knows there is residue on her hands and is trying to find out how long she has to worry about it.

The jury convicted Mary Alvis Johnson of murder, and in 2004 the Texas Court of Appeals affirmed. The gun that supposedly proved a suicide had, in the end, proved the opposite, because it had spoken in the one language a liar cannot argue with: the distance a bullet travels, and the marks it does and does not leave.

How’d she get caught?

She was caught by three feet of empty air. A staged suicide has to obey the body of the victim, and the body keeps records the stager cannot forge: the scorch of a close shot, the clean skin of a distant one. Jerry

Johnson's wound said the gun had been three feet away when it fired, and a man's arm is not three feet long, so the "suicide" was a physical impossibility from the moment the pathologist looked at the entrance wound. Everything Mary Johnson said afterward only dug the hole deeper, six shifting stories where an innocent woman would have had one, and a whispered question about how long residue lasts that told the police exactly whose hands to test. She tried to write a death as self-inflicted. The wound refused to cooperate, and so did she.

Read the case yourself: *Johnson v. State* (Mary Alvis Johnson), No. 06-03-00235-CR (Tex. App.-Texarkana 2004), Texas Sixth Court of Appeals. Free online: Justia. The opinion sets out the muzzle-distance and residue evidence establishing the shot could not have been self-inflicted, and catalogs Mary Johnson's many conflicting statements, including her question about how long gunshot residue lasts. (Citation note: this is a memorandum opinion, *not designated for publication*, so there is no S.W.3d reporter page; cite it as *Johnson v. State*, No. 06-03-00235-CR, 2004 WL _____ (Tex. App.-Texarkana Aug. 12, 2004, no pet.) (mem. op.), and pull the exact Westlaw number before print. Do **not** cite "151 S.W.3d 193" - that is a different defendant, Keithen Oneal Johnson.)

Chapter 33 - Mr. Big

The police built a fake criminal empire, flew a lonely man across the country, and spent four hundred thousand dollars, all to get him to confess to drowning his two little girls. Then the Supreme Court asked whether any of it could be believed.

Some chapters in this book end with a wink at a criminal who outsmarted himself. This one does not. This one ends with a question that has no comfortable answer, and that is exactly why it belongs here.

On the morning of August 4, 2002, Nelson Hart drove his three-year-old twin daughters, Karen and Krista, to a park near their home in Gander, Newfoundland, to play on the swings. A lake lay beside the park. Somewhere between thirty and forty-five minutes later, Hart came bursting back into his house alone, in a panic, and told his wife that Krista had fallen into the water. His wife asked the only question that mattered, the one that still hangs over the whole case: where is Karen?

He had left her at the park.

By the time the first responders reached the lake, both little girls were in the water, floating several hundred metres apart. There was nothing anyone could do.

Hart's account of that morning never held together. He told police he couldn't swim, so rather than trying to reach his drowning daughter he ran to his car and drove home to fetch his wife, leaving the other child alone on the dock beside the water. There were two cell phones in his car; he called no one. He passed a restaurant and a hospital; he stopped at neither. Two weeks later, after an eight-hour interrogation led nowhere, he changed his story, now recalling an epileptic seizure at the park, a foggy return to his senses, one daughter visible in the water, and

a single blind instinct to drive home. He had lied at first, he said, because he was afraid of losing his driver's licence.

The police were certain he had drowned his daughters. Certainty, though, is not evidence, and evidence was the one thing they did not have. The investigation went cold.

What they did to revive it made Canadian legal history twice over. Once when it appeared to work, and once when the Supreme Court of Canada looked hard at what "working" had actually cost.

Building a world around a lonely man

The technique is called a "Mr. Big" operation, a Canadian invention in which undercover officers construct an entire fictitious criminal organization around a suspect, draw him in, befriend him, pay him, and finally sit him down with the crime boss, where the price of admission to the family is a full and honest account of his past.

Nelson Hart was, from the police perspective, an ideal candidate, and it is precisely that suitability that makes the case so uneasy. Surveillance in late 2004 found a man living on social assistance and almost entirely alone. He rarely left his home, and when he did, his wife came with him. He had, in other words, nothing, which is to say he had everything to be offered.

In February 2005 an undercover officer the judgment calls "Jim" approached Hart outside a convenience store and asked for help finding his missing sister. Hart obliged and was handed fifty dollars. Within days he had a job driving for Jim's supposed trucking company. Within months the fictitious organization had become the whole of his life. Over four months Hart took part in sixty-three staged "scenarios," ferried mysterious packages across Newfoundland, and travelled to Halifax, Montreal, Ottawa, Toronto, and Vancouver, staying in hotels and dining in some of the finest restaurants in the country, so far outside his old world that an officer had to quietly teach him how to conduct himself at the table. He was paid \$15,720. He came to regard the undercover officers as his closest friends, his brothers. The final tab for the

operation, borne by the public, came to \$413,268, a figure worth holding in mind when the question of reliability arrives, because it is a great deal of money to spend building a stage.

The organization preached loyalty and honesty and stitched a thread of menace through it all; at one point Hart watched Jim strike another “member” for loose talk. Then came the lure. A big score was coming, worth twenty to twenty-five thousand dollars to Hart himself. In Toronto they let him hold and count \$175,000 in cash, a taste of the future on offer. But there was a snag, Jim confided in early June: the boss had run a background check and turned up a problem, and Hart could not advance until it was resolved.

The meeting with the boss

On June 9, 2005, Nelson Hart finally met Mr. Big. He opened by thanking him, telling the boss his life had turned around since he’d joined. Mr. Big turned the conversation to the deaths of Hart’s daughters, warned that “heat” might be coming, and asked him, directly, why he had killed them.

Hart gave the same answer he had given the real police three years earlier: a seizure, an accident. Mr. Big waved it away and told him not to lie. And after more prodding, Hart confessed. He had killed the girls, he said, because he feared Child Welfare was going to take them and hand them to his brother. Asked how, he said he had struck his daughters with his shoulder and knocked them from the wharf into the water.

Two days later, Jim drove Hart back to the park where Karen and Krista had died and asked him to walk through it. Jim knelt on the dock, and Hart demonstrated, nudging Jim with his knee, how he had pushed his daughters into the lake.

Hart was arrested on June 13 and charged with two counts of first-degree murder. Given a single phone call from the station, he used it to call for help. He called Jim.

What the Supreme Court saw

A jury convicted Hart on the strength of those confessions. But in 2014 the Supreme Court of Canada used his case to put the Mr. Big technique itself on trial, and to rebuild the law around it.

The Court's worry was not delicacy. It was reliability, and the arithmetic of the operation lays the worry bare. The sting had lifted a destitute, isolated man out of poverty, given him the first real friends of his life, dangled a twenty-five-thousand-dollar payday, and then made one thing unmistakable: the road to keeping all of it ran directly through telling Mr. Big what Mr. Big wanted to hear. A confession purchased on those terms, the Court held, may be worth no more than what was paid for it, and a jury that has watched months of a man playacting as a gangster may end up convicting the character rather than weighing the proof.

So the Court laid down a new rule. Mr. Big confessions are now presumptively inadmissible. The Crown must show the confession's probative value outweighs its prejudicial effect, with reliability measured against the inducements offered and, above all, against whether the confession produced anything that could actually be checked, a body, a weapon, a fact only the killer could know. Behind that stands a second guard, the abuse-of-process doctrine, for operations that overwhelm the will through violence or threat.

Measured against its own new standard, Hart's confessions failed. They had been bought with powerful inducements, they contradicted themselves in places, and, unlike the confession in the companion case *R. v. Mack* (Chapter 34), where the suspect led the fake gangsters to real human remains, they were confirmed by nothing at all. The appeal was dismissed and the confessions were excluded. With them gone, the Crown's case fell away; reporting at the time indicates the charges were eventually withdrawn and Hart walked free. (*That final coda comes from news coverage, not from the judgment itself.*)

How'd he get caught, and should he have been?

He was caught the way a fish is caught, by the patient construction of an entire ocean around him. The confession was real in the narrow sense that the words came out of his own mouth, on the very dock where his daughters had died. What the Supreme Court forces every reader to confront is whether the words were *true*, or whether a poor, isolated, epileptic man simply said the only thing that would keep the first family he had ever known from casting him out. This is the one chapter in the book with no clean ending and no tidy lesson, and that is the point. Every other story here asks how the killer got caught. Nelson Hart's asks what "caught" is even worth when the state builds, at a cost of four hundred thousand dollars, the entire world in which the confession is spoken. It is the reason every Mr. Big confession in Canada must now pass through the gate this case built.

Read the case yourself: *R. v. Hart*, 2014 SCC 52, [2014] 2 S.C.R. 544, Supreme Court of Canada, decided July 31, 2014 (Moldaver J. for the majority). Free online: CanLII · SCC judgments site. The facts and the Mr. Big operation are set out at paras. 15-39; the new two-pronged framework at paras. 84-128; its application to Hart's confessions from para. 129.

Chapter 34 - The Firepit

He told the fake crime boss there was “nothing left” of his roommate. Then, to prove it, he drove an undercover cop straight to the spot where the nothing was.

Robert Levoir went missing from Fort McMurray, Alberta, in November 2002, and if you’d asked his roommate about him, you’d have gotten less an expression of concern than a review. Levoir was, in Dax Mack’s telling, a “crackhead,” a “drug addict,” a liar and a thief who stole from Mack’s young son’s piggy bank. Not, in other words, the sort of missing person Mack seemed inclined to lose sleep over.

The trouble for Mack was that he could not keep the news to himself. About a month after Levoir vanished, a friend named Jay Love called the police. Mack, Love said, had confessed to killing Levoir and burning his body. The confession had come the way so many do, at a bar, drunk, in December 2002. Mack had told Love he was his best friend, asked if he could be trusted, aired his grievances about the roommate, and then announced that “Robbie” was dead. Love asked whether he’d “outsourced” the job. “No,” Mack said, “I did it myself,” and added that he’d burned the body. A second friend, Michael Argueta, later testified Mack told him much the same thing on a drive home.

So the police knew, almost from the start, more or less exactly what had happened. Knowing and proving, though, are two different sports. There was no body, no crime scene, no weapon tied to anything, just a drunk man’s barroom bragging relayed secondhand. They opened a two-track investigation: a wiretap on Mack’s phone, and a Mr. Big operation, the elaborate undercover theater in which police build a fake criminal empire around a suspect and wait for him to confess to the boss.

Third line

In January 2004 an undercover officer the judgment calls “Ben” was introduced to Mack at the Fort McMurray nightclub where Mack worked as a DJ. A week later Ben paid him \$200 to help repossess a car, and Mack, agreeable as ever, was soon volunteering about his missing roommate. As far as he was concerned, he told Ben, Levoir was “pushing up daisies.”

Through the winter, Mack ran errands for Ben’s organization, headed by a boss named “Liam.” He fetched a package from an Edmonton bus depot and watched Ben open it back at the hotel to reveal \$30,000 in cash. Ben told stories about the outfit’s muscle, a “weekend of reckoning” when Liam had “looked after” two men who crossed him, and asked whether Mack had ever beaten anyone. There was one time, Mack said, that he couldn’t talk about. Ben said he hoped one day Mack would trust him with the secret. A few weeks later, Ben floated that the person in question wasn’t “walking anymore,” and Mack nodded along, offering that “every man has a breaking point.”

Now, here is the moment that makes Dax Mack different from almost every other target in this book, and it matters enormously to how the case came out. In mid-March, Mack was summoned to Vancouver to meet the great Liam himself. Liam raised the missing roommate directly and pressed for the story. And Mack, offered a golden ticket up the organization in exchange for the truth, *turned it down*. He asked if he could decline to discuss it. Liam said that was his right, but it meant staying on the organization’s lowly “third line.” Mack held firm anyway, explaining, with the gravity of a man quoting scripture, that “loose lips sink ships.”

Hold onto that refusal. It is the reason his confession stuck.

The firepit

Three weeks later, on April 9, 2004, Ben asked whether Mack wanted more work, and whether he’d sit down with Liam and finally explain

how his roommate died. This time Mack agreed, and then told Ben the whole thing. Levoir was “a liar, a thief, and a piece of shit drug dealer.” Mack had shot him five times with a .223 rifle, four in the chest, one in the back. There was “nothing left” of him, because Mack had burned the body.

Then Mack offered to show Ben the spot. Then, a beat later, his nerve failed and he snatched it all back, insisting everything he’d just said was “bullshit,” that he’d been “lying.” Ben, playing it beautifully, replied only that he “really hoped” Mack had been telling the truth. And that was all it took. Mack changed his mind a third time and drove the undercover officer out to a firepit on his father’s rural property. He’d cleared out the ashes, he assured Ben. Nothing left.

On April 15, flown to Edmonton to meet Liam again, Mack repeated the confession in the same detail: the .223, five shots, four in the chest and one in the back, the “big fire” at his dad’s place. Six days later, police arrested him and searched the father’s property. In the very firepit Mack had personally pointed out, they found fragments of bone and teeth, later identified as Robert Levoir, and shell casings. The casings had been fired by a rifle recovered from Mack’s own apartment.

He’d said there was nothing left. He was wrong about that in every particular that counted, and the thing he was most wrong about was his own inability to keep from showing off.

Why this confession survived

A jury convicted Mack of first-degree murder, and in September 2014, the same year its companion case *R. v. Hart* (Chapter 33) rewrote the rules for Mr. Big stings, a unanimous Supreme Court of Canada upheld the conviction. Put the two cases side by side and the new law almost explains itself.

The worry with a Mr. Big confession is reliability. A man bribed richly enough, or frightened badly enough, will say whatever the boss wants to hear. So the Court asks what the sting *paid* and what the confession *produced*. Mack’s inducements were modest, roughly \$5,000

across thirty scenarios, no threats, no violence aimed at him, and the surest sign he wasn't simply telling terrified lies is that he had already told Mr. Big *no* once and kept his job. Against that stood confirmation of the rarest and most damning kind: the confession led police to human remains no one had found, in a firepit only the killer could have identified, seasoned with casings from his own rifle, and it matched to the letter what he'd drunkenly told two friends back in 2002, long before any undercover officer existed in his world.

There was one loose thread, the wiretap. The Crown conceded the authorization was defective and had violated the Charter, so none of the intercepted calls were used at trial. Mack argued the tainted wiretap was so tangled up with the Mr. Big operation that his confessions should fall along with it. The Court disagreed. The confessions were made to people Mack chose to talk to, not skimmed off a tapped line, and they stood.

How'd he get caught?

Twice by his mouth, and finally by his feet. The drunk boast at the bar put his name in a police file within a month, which is the criminal-justice equivalent of leaving your business card at the scene. The sting simply built him a comfortable room in which saying it all again felt safe. But what actually convicted Dax Mack wasn't a single word. It was the walk, the short, fatal stroll out to the firepit to prove to a man he'd known for weeks that he really had gotten away with it. Anyone can confess to a crime he didn't commit. Only the killer can lead you to the bones, and Mack, unable to resist the applause, led them there himself.

Read the case yourself: *R. v. Mack*, 2014 SCC 58, [2014] 3 S.C.R. 3, Supreme Court of Canada, decided September 26, 2014 (Moldaver J., for a unanimous seven-judge Court). Free online: CanLII. The facts and the operation are set out at paras. 4-20; the reliability analysis of the confessions follows. **Companion chapter:** *R. v. Hart*, 2014 SCC 52 (Chapter 33), the case that built the framework this confession survived.

Chapter 35 - The Fake Insurance Investigator

A man collected on his dead wife's life insurance, remarried, and moved a province away, certain the cold case would stay cold. Then a friendly insurance investigator named "Bob" showed up with a check for three thousand dollars and a very tempting problem.

On the twenty-first of November, 2000, Michael Kelly reported his common-law wife, Judith Thibault, missing. Her body would not surface for almost four years, until land surveyors working a remote stretch near Wolf Lake Road, in the District of Thunder Bay, found her about ten feet off the road in the woods. She had been killed by a single .22-caliber bullet to the back of the head, at the base of the skull, and her body had been rolled in carpet and tied. There was no forensic evidence linking Kelly to the killing. He was the prime suspect, and for years that was all he was.

The police kept three facts to themselves, the kind of details only the killer could know: that the fatal shot was a single round to the base of the skull, that the body had been wrapped and tied with white coaxial cable and yellow rope, and the precise spot, ten feet east of Wolf Lake Road, where she lay. Those three secrets were the lock. The problem was getting Kelly to hand over the key.

Bob, and the check, and the beautiful problem

In 2009 the police launched an undercover operation and sent in an officer playing a character named "Bob," a private investigator supposedly hired by an insurance company to track Kelly down. Kelly, by then remarried and living in Alberta, was the beneficiary of a small

policy on Judith's life, three thousand dollars. Bob paid it out, in cash, like a man simply doing his job. It was bait, and it was cheap.

Then Bob came back with a far more interesting story. He had discovered two more life insurance policies, he said, worth a combined five hundred seventy-one thousand dollars, with Kelly named as beneficiary. There was just one snag, and Bob showed him an official-looking document to prove it: the policies had been flagged, held up for nonpayment, because Kelly was suspected of murdering the insured. Bob was sympathetic. He had an idea.

The idea, floated at their fourth meeting, was a con. Bob had a terminally ill friend, "Donnie," a dying man with nothing to lose. If Kelly briefed Donnie on the real details of the murder, Donnie could walk into a police station playing the guilt-wracked confessor, take the blame, and clear Kelly's name, freeing up the half-million in policies. For his trouble, Donnie would want a cut, and Kelly would walk away rich. All Kelly had to do was tell a dying stranger exactly how Judith Thibault died, so the false confession would ring true.

Kelly flew from Edmonton to Toronto on Bob's dime to meet Donnie in a hotel room. The room was wired for sound and video. And this is the trap sprung on so many people who think they are the ones running a scam: to make his fake confession convincing, Kelly had to make it accurate. He denied involvement seven or eight times. Then, coached that he was about to be set for life, he told Donnie how it was done, a single shot to the back of the head, the body wrapped and tied three times around the middle with yellow rope, and dumped off the road. He even handed over one of the victim's rings.

The detail he was never supposed to know

Over fourteen more recorded phone calls, Kelly filled in the picture. He had shot her "just the once," at the "base of the skull," made her "turn around" and shot her "right in the back of the head square on," and wrapped her in carpet tied three times with yellow "polyethylene rope."

Now set his confession beside the police holdback list. The single shot to the base of the skull: correct, and secret. The number of shots: correct, and secret. The yellow rope wound three times around the body: correct, and secret. None of it had ever been released to the public. A man repeating a story he “gleaned from news reports,” as Kelly later claimed, cannot get the secrets right, because the secrets were never in the news. He got them right because he was there. He did slightly misdescribe the carpet, calling it blue when it was grey with darker spots, but as the Court of Appeal drily noted, it had been dark when he grabbed it, and the honest mistake only made the accurate details more damning.

When the police finally arrested him, Kelly did not bluster. He said, “it’s finally over.” And then, meeting the undercover officers who had played Bob and Donnie, he delivered the sentence that should be printed in the front of every con man’s handbook: “I thought I smelled a rat a long time ago but I let my greed get the best of me.”

He was convicted of first-degree murder. In 2017 the Court of Appeal for Ontario, applying the strict new rules that govern these “Mr. Big” confessions, held that his statement had been properly admitted and dismissed his appeal.

How’d he get caught?

He was caught by his own greed, dangled on a string he was sure he was holding. The whole operation worked because it flattered him into believing he was the mastermind, running a scam on an insurance company through a dying patsy, when in truth he was the mark. And the moment the scheme required his confession to be convincing, it required it to be true, and a true account of Judith Thibault’s death contained three things only her killer knew: one shot to the base of the skull, and yellow rope wound three times around a body left off Wolf Lake Road. Kelly thought he was feeding a lie to a dying man. He was feeding the truth to a video camera. He smelled the rat too late, and by his own admission, greed had already eaten him alive.

Read the case yourself: *R. v. Kelly*, 2017 ONCA 621, Court of Appeal for Ontario (Feldman, Gillese and Benotto JJ.A.). Free online: CanLII. The undercover “insurance investigator” scenario, the false-confession scheme, and the holdback details Kelly repeated (the single shot to the base of the skull and the yellow rope tied three times around the body, none of it public) are set out in the facts. The court applied *R. v. Hart*, 2014 SCC 52, and *R. v. Mack*, 2014 SCC 58, and dismissed the appeal.

Chapter 36 - The Sting That Went Too Far

For thirty-two years, Michel Laflamme had gotten away with strangling his wife and staging her body in a shopping-mall parking lot. Then the police built a fake criminal empire to make him confess. He did confess. And a court threw the whole thing out anyway.

This part of the book is a catalogue of killers talked into their own undoing, men who told the truth to the wrong stranger. Michel Laflamme belongs here for the opposite reason. His is the chapter where the state, having finally caught a man who had eluded it for three decades, caught him the wrong way, and a court took the win off the board. It is the counterweight the whole part needs, because a book about how confessions catch killers has to be honest about the confessions the law refuses to keep.

In December 1976, Carmen Waltz was seen shopping at a mall in Beloeil, Quebec, less than two kilometers from the home her husband had built. A little before five in the afternoon, Michel Laflamme was in the Canadian Tire at that same mall. Around five, he was in the parking lot flagging down passers-by, calling for help for his wife, who lay unconscious in his car. One of the people who came over noticed the purse on the back seat had been emptied out across it, and a handkerchief that looked freshly stained with blood. When the ambulance crew lifted the fur coat draped over Carmen, they found a red mark on her neck and her clothing disarranged. She had been strangled with a ligature. She was already gone.

The scene was staged to look like a woman attacked or taken ill in a parking lot. It held. Detectives searched the couple's home and found

nothing amiss. A coroner's inquest the next spring named no killer. Laflamme was a suspect and was never charged. He had, by every appearance, gotten away with it.

The empire built to catch one man

Thirty-two years later, the police came back for him with a technique that did not exist in 1976: the Mr. Big operation. Undercover officers posing as a criminal organization drew Laflamme into a fictional underworld, running him through scenario after scenario, building the illusion of a powerful gang that could solve any problem, offer any protection, so long as a man was honest about his past. Forty scenarios in, Laflamme was brought to the staged meeting with the boss, "Mr. Big," the forty-first scene. There, on the ninth of April, 2008, he confessed. He said he had strangled Carmen in their home, loaded her into the car waiting in the garage, and driven her to the mall, with their eighteen-month-old daughter along, then walked into the Canadian Tire with the child and come back out to perform the discovery of his wife's body.

It was a detailed confession, and it matched the staging investigators had puzzled over in 1976. He was convicted of first-degree murder in 2010.

Why the confession did not count

And then, in 2015, the Quebec Court of Appeal set the conviction aside and ordered a stay of proceedings, which is the law's way of saying not "you are innocent" but "the state cannot be allowed to have done what it did to get here."

The court's concern was abuse of process. A Mr. Big operation works by manufacturing inducements and, sometimes, an atmosphere of implied menace: confess your worst deeds to the organization, or lose its protection and favor. There is a point at which the pressure and the enticement become so overwhelming that the resulting confession can no longer be trusted as freely given, and the conduct of the police becomes

something a court will not put its name to. Laflamme testified that his confession was false, that he had told Mr. Big what the fictional boss wanted to hear because he feared the organization. Weighed against the way this particular operation had been run, the appeal court concluded the confession could not stand and that the proceedings had to be stayed.

So Michel Laflamme walked out of a first-degree murder conviction, not because the staging in that parking lot was ever explained, and not because anyone else was ever suggested, but because the tool that finally extracted his words was found to have been pushed past the line the law draws around it. The same Mr. Big technique that, in other chapters, put men away for life here produced a confession the courts would not use.

That is not a comfortable ending, and it is not meant to be. It sits in this book as the necessary warning label on every confession chapter around it. A confession is the most powerful evidence there is and the most treacherous, because human beings can be pressured, frightened, and flattered into saying things, and a legal system that wants convictions badly enough can build a machine designed to produce them. The line between catching a killer and manufacturing a confession is real, and Laflamme is where a court decided the machine had crossed it.

How'd he get caught, and why didn't it hold?

He was caught, in the first instance, the way every stager in this book is caught: by a scene that did not add up, a purse emptied for show, a body arranged in a parking lot, a red ligature mark under a fur coat. But the staging alone was never enough to charge him, and for thirty-two years it wasn't. What finally produced a case was his own confession to a criminal empire that existed only in the minds of the police who built it. The confession was detailed, and it fit. It also came from a man who said he was frightened into giving it, wrung out by an operation the Court of Appeal decided had gone too far. So the answer to "how'd he get caught" is: by his own mouth, and then he was un-caught by the same

mouth, because a free country does not let the state win at any cost. Laflamme was undone by a confession. The confession was undone by how it was taken.

Read the case yourself: *Laflamme c. R.*, 2015 QCCA 1517, Court of Appeal of Quebec (reasons of Dufresne J.A., Hilton and Giroux JJ.A. concurring) (unofficial English translation available). Free online: CanLII. The 1976 staged parking-lot scene, the strangulation, the Mr. Big operation and its forty scenarios, and the court's decision to set aside the conviction and stay the proceedings for abuse of process are set out in the reasons. Compare *R. v. Hart*, 2014 SCC 52, the decision that reset the modern rules these operations must meet.

Chapter 37 - The Tapped Phone and the Lure Call

A used-car dealer's role in a murder was simple: get the victim to the lot, where the shooters were waiting. He made the call to set the meeting. He did not know the police were already on the line.

On the seventh of October, 1998, Vikash Chand was shot to death on a used-car lot in British Columbia, a place with the unimprovable name of Rags to Riches Motor Cars. The lot belonged to Sameer Mapara. The Crown's theory of the killing divided the labor the way conspiracies often do: others planned it, others pulled the triggers, and Mapara's assigned job was the quiet, essential one. He was the lure. His task was to get Vikash Chand to come to the lot, at a time when the men waiting to kill him would be there too.

The trouble with being the lure is that luring is done with words, and words, in the autumn of 1998 as much as now, travel over telephones. And at least one of the phones in this conspiracy was being listened to.

The call that was already tapped

The police had a wiretap authorization targeting one of the players, a man named in the order. During an intercepted three-way phone call, the various conspirators passed the receiver around, and at one point Mapara himself was on the line. While that call was live, Chand telephoned Mapara on Mapara's own phone, and the wiretap caught Mapara's side of it. In that snatch of conversation, Mapara told the victim to come meet him at the Rags to Riches lot in fifteen minutes. When that call ended, Mapara turned back to the tapped line and reported the arrangement to his fellow conspirator: the victim was on his way.

Read those two beats together, because that is the entire machinery of a first-degree murder laid bare in a few recorded seconds. Fifteen minutes to the lot, Mapara told the man who had minutes to live. Then, to the organization: he's coming. The victim was steered to the place of his execution by the very phone call the police were recording. It is one thing to be caught confessing after the fact. Mapara was caught in the act of committing his part of the crime, narrating the trap as he set it, into a microphone he did not know was there.

What the recording proved

Murder becomes first-degree murder, in Canadian law, when it is planned and deliberate. A man who lures the victim to a chosen spot at a chosen time, and then confirms to the killers that the target is en route, is not caught up in a sudden quarrel. He is executing a plan. The lure call was the plan made audible.

Mapara fought the evidence on appeal, and his case became an important one for reasons that reach beyond his own guilt. Much of the legal argument concerned technical rules of evidence, whether certain out-of-court statements by co-conspirators could be used against him, and whether the police had stayed within the terms of their wiretap authorization when they kept listening during the parts of the three-way call. These are the unglamorous mechanics by which a recording becomes admissible proof, and the courts worked through them carefully. In the end, in 2005, the Supreme Court of Canada dismissed his appeal and upheld his conviction for first-degree murder. The evidence that he had lured Vikash Chand to the lot, the Court accepted, made his conviction for the planned and deliberate killing effectively inevitable.

How'd he get caught?

He was caught doing his job on a wire. Mapara's role in the conspiracy was to speak, to coax the victim into range with a friendly instruction to swing by the lot in fifteen minutes, and speaking is exactly the act a

wiretap exists to capture. He never had to be turned, tricked, or worn down into a confession, because the police did not need him to describe the crime later; they had recorded him helping to commit it in real time, first steering Chand to his death and then reporting up the chain that the target was coming. The lure only works if the victim can hear you. So can everyone else on the line. Sameer Mapara talked a man into a parking lot to be shot, and the one witness he could not intimidate, bribe, or outrun was the tape.

Read the case yourself: *R. v. Mapara*, 2005 SCC 23, [2005] 1 S.C.R. 358, Supreme Court of Canada (McLachlin C.J.). Free online: CanLII. The killing at the Rags to Riches car lot, Mapara's role as the lure, and the intercepted call in which he told the victim to meet him at the lot in fifteen minutes and then relayed the arrangement to a co-conspirator are set out in the facts. The decision principally addresses the co-conspirator hearsay exception and the wiretap authorization; the conviction for first-degree murder was upheld.

Chapter 38 - The Word of Men Behind Bars

Only two adults had access to the child who died in her crib. The physical evidence pointed hard at one of them. But the words that helped convict him came from two career informants behind bars, and that is the most dangerous evidence in this book.

A nineteen-month-old girl named Samantha Johnings was murdered in her crib. She was found wrapped in a green comforter, and the injuries on her small body were terrible; this is not a chapter that will describe them for effect. On the night she died, only two adults had access to her: her mother, and her mother's partner, Frederick Brooks. There is no lightness to be found anywhere in this case, and none will be attempted. It is here because it teaches, more sharply than any other, both the power and the peril of a killer's own words, and of the men who claim to have heard them.

What the apartment kept

The physical evidence did not depend on anyone's testimony. Brooks's grey track pants were recovered from the apartment, and they were stained with three things at once: semen, blood of the same type as the murdered child, and a juice substance similar to what was in her bottle. On the way to the hospital the morning after, Brooks leaned toward the child's mother and whispered, three times, that he was sorry. He made other statements the Crown treated as admissions of guilt. The forensic picture, the access, the stained clothing, the whispered apology, all of it pointed in one direction.

That is the backdrop against which the contested evidence has to be understood, because the physical proof was strong on its own. What

made Brooks's case travel all the way to the Supreme Court of Canada was not the track pants. It was two other men.

The two men from the cells

The Crown also called two jailhouse informants, Stephen Balogh and Albert King, who told the jury that Brooks had, in effect, incriminated himself to them behind bars. The trial judge described them, without much varnish, as men of unsavory character. And there lies the oldest problem in the criminal law's relationship with confessions.

A jailhouse informant is a witness with a motive baked into his very situation. He is already in custody; he often has charges or a sentence of his own to worry about; and he knows, as everyone in the system knows, that delivering another man's confession to the Crown is a currency that can buy leniency. That does not make every jailhouse informant a liar. It does mean that his account is exactly the kind of evidence a jury must be warned to handle with extreme care, because a man with a reason to invent a confession is a man who sometimes invents one. Canadian law has a name for that caution, a *Vetrovec* warning, a clear, sharp instruction from the judge that the jury should regard such a witness's testimony with great suspicion and look for independent confirmation before relying on it.

In Brooks's trial, the judge did not give the crisp, standalone version of that warning, and that omission became the whole appeal. The Ontario Court of Appeal, by a majority, ordered a new trial, holding that the jury should have been squarely warned about the informants. When the case reached the Supreme Court of Canada in 2000, the Court split, closely and revealingly, on that single question. A majority concluded that the charge as a whole, taken with the strength of the other evidence, was enough, that the trial judge's failure to give a textbook *Vetrovec* warning was not a legal error requiring a new trial, and it restored Brooks's conviction. A dissent of three judges disagreed pointedly, and would have upheld the order for a new trial, precisely because the danger of unwarned jailhouse-informant evidence is too grave to excuse.

That the country's highest court divided on whether the jury was adequately cautioned tells you everything about how treacherous this evidence is. The conviction stood, in the end, because the physical proof was powerful and the charge, read fairly, conveyed the danger. But the closeness of the vote is the lesson.

How'd he get caught, and what should we take from it?

He was caught, first and most reliably, by what the apartment kept: track pants carrying the child's blood type, her bottle's juice, and his own semen, and a whispered apology repeated three times to her grieving mother. That evidence needed no informant to speak for it. The words of the two men from the cells were added to the pile, and they are the reason this case is remembered, not because they were the strongest proof but because they were the most dangerous. Jailhouse informants sit at the exact fault line of this part of the book: a killer's own confession is the most compelling evidence there is, and a stranger's claim to have heard that confession, delivered by someone with every reason to invent it, is the most easily faked. The Supreme Court restored Brooks's conviction, but only after splitting over whether his jury had been warned sharply enough about the men who claimed he had talked. Take that as the caution it is. The word of a killer can hang him. The word of a man who says he heard a killer must always be weighed with a hand on the scale.

Read the case yourself: *R. v. Brooks*, 2000 SCC 11, [2000] 1 S.C.R. 237, Supreme Court of Canada. Free online: CanLII. The physical evidence (the semen-, blood-, and juice-stained track pants and the whispered apologies), the two jailhouse informants, and the closely divided ruling on whether a *Vetrovec* warning was required, with the majority restoring the conviction and a three-judge dissent that would have ordered a new trial, are set out in the reasons.

Chapter 39 - The Teeth That Caught a Monster

Bite-mark evidence helped convict Ted Bundy, and the experts swore it was a science of “a high degree of reliability.” They were right about the monster. They were wrong about the science, and innocent men would pay for the difference.

Every chapter until now has ended with a guilty man caught. This one begins the part of the book where the evidence itself goes on trial, and it opens with the most famous mouth in American criminal history, because to understand how a forensic technique sent innocent men to death row, you first have to understand how persuasive it looked when it caught someone who truly deserved it.

In the small hours of January 15, 1978, an intruder slipped into the Chi Omega sorority house at Florida State University and moved through it with a length of tree branch in his hand. In minutes he bludgeoned four young women as they slept. Margaret Bowman’s skull was crushed. Lisa Levy was beaten and strangled. Kathy Kleiner and Karen Chandler were left gravely injured but alive. Then, roughly an hour later and a few blocks away, the same man broke into the apartment of a fifth student, Cheryl Thomas, and beat her nearly to death in her bed. Five women, all attacked in their sleep, most of them never able to describe the man who did it.

The man was Theodore Bundy, though it would take a trial to prove it, and the proof came down to two things above all the rest. One was an eyewitness. The other was a set of teeth.

The witness and the wound

The eyewitness was Nita Neary, a Chi Omega resident who came home from a date around 3:00 a.m. and, moving through the darkened house, heard someone running down the stairs. She reached the front hall in time to see a man at the door, a club in one hand, caught in profile for a few seconds before he slipped out. She described him that night, worked with a sketch artist, and later picked Bundy out of a photo array and again from the witness stand. Good evidence, the kind that puts a case in motion. But an eyewitness who saw a stranger's profile for a few seconds in the dark is, on its own, a thin thread to hang two murders on.

The second piece was thicker, and stranger, and it is the reason this chapter exists. When the attacker killed Lisa Levy, he bit her, hard enough to leave clear indentations in her flesh that investigators could photograph and identify as human bite marks. And human teeth, the theory went, are like fingerprints: so wildly varied from person to person, so individually chipped and crowded and turned, that a bite is a signature.

Acting on a judge's warrant, police made wax impressions of Bundy's teeth and cast models of both rows. A forensic dentist compared the peaks and gaps of those models to the enlarged, life-size photographs of the wound on Lisa Levy's body, walked the jury through his technique in detail, laid his materials out before them, and delivered his conclusion without hedging: the marks on the victim were made by the teeth of Ted Bundy. A second forensic dentist, working from computer-enhanced photographs, reached exactly the same verdict. Both men told the jury the same comforting thing about their field, that because human teeth vary so widely, bite-mark comparison could identify a person with, in the court's words, "a high degree of reliability."

Around that centerpiece the state stacked its corroboration. Hairs recovered from a knotted pair of pantyhose in Cheryl Thomas's apartment matched Bundy's under the microscope. He had rented a room a stone's throw from the sorority house a week before the murders. He was seen in the neighborhood before and after. He fled from police twice

in the weeks that followed. And there was the matter of Bundy's own mouth, the one that didn't leave marks. Standing among fellow rooming-house residents the day of the killings, listening to someone guess the culprit was "some lunatic" now "hiding out real scared," Bundy corrected him. It was, he said with the connoisseur's confidence of a man reviewing another's work, "a professional job," committed by someone who had done this before and had probably already left town. He was, of course, describing himself, and he could not resist the review.

The Florida Supreme Court, in 1984, found the evidence more than sufficient and affirmed his convictions. The bite marks had done their work. Bundy was, by any measure the law recognizes and any measure history has since confirmed, guilty. *(He would be executed in Florida in 1989, having confessed by then to a sprawling list of murders across several states, a coda that comes from the historical record rather than from this decision.)*

The promise that couldn't be kept

Here is where the triumph curdles, and where this chapter hands off to the two that follow it.

The dentists in Bundy's case did not merely say the marks matched. They made a scientific promise to that jury and to every jury after it: that human teeth are unique, that a bite is a reliable signature, that comparing indentations in skin to a plaster cast of a mouth is a method with "a high degree of reliability." It sounded authoritative. It came from credentialed experts. It helped convict a man who richly deserved it, which is the most dangerous thing a shaky science can ever do, because nothing launders a bad technique faster than using it on a guilty celebrity.

That promise, it turned out, was one forensic odontology could not keep. In the decades after Bundy, the science of bite-mark comparison came in for the kind of scrutiny it had never faced in a Tallahassee courtroom, and it did not survive it. Skin is not wax; it distorts, swells, and heals. The "wide variation" in human teeth had never actually been measured against the claim that a bite could single out one mouth among

millions. When outside scientists finally tested the field's central boast, they found something closer to educated guessing dressed in a lab coat. Expert bodies would eventually warn that a perpetrator cannot be reliably identified by bite-mark comparison at all. And by then the technique had done in other courtrooms exactly what it did in Bundy's, delivered a confident expert, a persuaded jury, and a verdict, except that in those other courtrooms the man in the defendant's chair was innocent.

How'd he get caught?

Ted Bundy was caught by a bite, a witness, and above all by his own bottomless need to be admired for his work. The teeth marks he left in Lisa Levy became his signature, the eyewitness put him at the door, and his own mouth supplied the rest, calling his massacre “a professional job” to a room of people who would carry the line into a courtroom. On the facts of this case, the science got the right man. But the lesson of this chapter is not that bite marks work. It is that they looked like they worked, spectacularly, on a monster everyone was desperate to convict, and that the applause drowned out the quieter question of whether the method was real at all. The next two men you will meet were convicted by the very same “high degree of reliability.” Neither of them was guilty.

Read the case yourself: *Bundy v. State*, 455 So. 2d 330 (Fla. 1984), Supreme Court of Florida, decided 1984. Free online: Justia. The factual narrative and the description of the bite-mark and dental expert testimony appear in the opinion's Facts section. **Companion chapters:** the same forensic technique produced the wrongful convictions in *State v. Krone* (Chapter 40) and *Howard v. State* (Chapter 41).

Chapter 40 - The Snaggletooth Killer

The same bite-mark science that caught Ted Bundy sent Ray Krone to death row. The only difference was that Krone hadn't done it, and it took ten years and a DNA test to prove what his crooked teeth could not.

In the last chapter, a bite mark helped convict a genuine monster, and the experts assured the jury the method was reliable. This chapter is what that assurance costs when the man in the chair is innocent, and the bite happens to be his.

Just before dawn on December 29, 1991, the owner of the C.B.S. Lounge in Phoenix came to open up and found the front door unlocked and the lights still on. Inside, in the men's bathroom, lay Kim Ancona, a bartender, nude and fatally stabbed.

The killer had left almost nothing. No fingerprints. No semen. All the blood at the scene was Ancona's own. The saliva on her body came from someone with the most common blood type on earth, which is to say from almost anyone. There were no DNA tests, because this was 1991 and the technology was not yet what it would become. The police had, in the whole of that ugly scene, exactly one piece of evidence they thought could name a killer. Ancona had been bitten, on the neck and the left breast, hard enough to leave the impression of teeth.

A man with the wrong smile

Ray Krone was a suspect almost immediately, and not because of anything scientific. He was a regular at the bar who had socialized with Ancona, his name was in her address book, and the police had heard he was supposed to help her close up the night she died. A witness recalled

Ancona saying, hours before her death, that she didn't need help closing because "Ray" was going to do it. It was enough to bring him in. It was not, remotely, enough to convict him.

What the state needed was the bite, and Ray Krone had a mouth made for the theory. His teeth were crooked and misaligned, distinctive enough that the press would eventually saddle him with a nickname, the "Snaggleteeth Killer," as though his own smile had confessed. He gave the police a styrofoam impression of his teeth, and it appeared to match the marks on Ancona. Casts were made. A comparison suggested Krone had left the wounds. On that foundation, and very little else, he was arrested two days after the murder. As the Arizona Supreme Court would later put it with devastating economy: without the bite marks, the state arguably had no case.

The rest of the evidence was the sort of thing that means nothing on its own. Some material from the bar's shuffleboard table was found in Krone's car, which proves he had been to a bar he was known to frequent. He was evasive with police about his relationship with Ancona, which proves he was nervous, a thing innocent people also are. Everything else could neither include him nor rule him out. The case, in truth, was a set of crooked teeth and a coincidence of names.

The tape

The trial turned on a piece of theater. Days before it began, the prosecution's dental expert, Dr. Raymond Rawson, produced a videotape. It was not a static photo of a bite next to a photo of teeth. It took Krone's dental casts, styrofoam impressions, and CAT scans, and overlaid them, moving, onto the actual wounds on Ancona's body, a slick, persuasive animation of guilt that no still exhibit could match.

The defense found out about the tape on the last business day before trial. Krone's lawyer watched it for the first time on a Sunday; the trial started Monday. He asked the court to keep it out, or failing that, to give him time to prepare a tape of his own. The court refused. Dr. Rawson played the tape for the jury and built his testimony around it, and the

defense, blindsided, had no answer of equal wattage. The court-appointed dental expert the defense might have called had no experience with video and was leaving town.

The jury convicted Ray Krone of first-degree murder and kidnapping. Because of the “especially heinous or depraved” nature of the crime, and finding that his clean record and his honorable discharge from the United States Air Force were not enough to spare him, the court sentenced him to death.

Reversal, and then the truth

In 1995 the Arizona Supreme Court reversed the convictions and ordered a new trial. Its reasoning was not, yet, that Ray Krone was innocent; it was that the last-minute ambush with the videotape had denied him a fair chance to defend himself, a serious enough violation to undo the verdict. The court noted, pointedly, how thin the rest of the case was. Strip away the bite marks and there was almost nothing left.

That should be the end of a tidy story, but the truth took longer and cost more. Krone was tried a second time. And a second jury, shown the same kind of bite-mark evidence, convicted him again. He went back to prison, and the years kept passing, more than a decade of them, a man caged for a murder committed by someone else on the strength of the shape of his teeth.

What finally freed him was the science that had not existed when Kim Ancona died. In 2002, DNA testing of the biological evidence on the victim excluded Ray Krone and identified another man, one already in the state’s prison system for an unrelated sex crime. Krone walked out after ten years, more than three of them on death row, and became, by the count kept of such things, the hundredth person exonerated from an American death row. *(The DNA exoneration and the identification of the true killer come from the case’s later history and the record of Krone’s release, not from the 1995 decision anchored here.)*

How'd he get caught? And why is that the wrong question

For Ray Krone, “how'd he get caught” has a grotesque answer: he was caught for a murder he did not commit, by a bite mark that pointed at his unusual teeth and a forensic method dressed in the authority of science. The bite-mark comparison in his case was not meaningfully different from the one that helped convict Bundy a few years earlier and a few states away. Same discipline, same confidence, same persuasive experts. The only variable was guilt, and the technique could not tell the difference, because it was never really able to tell anyone apart at all. Bundy was guilty and the bite marks got the right man. Ray Krone was innocent and the bite marks got him anyway. A science that convicts the guilty and the innocent with equal certainty has not identified a killer. It has only identified a defendant. And the next chapter belongs to a man who waited even longer to learn that difference.

Read the case yourself: *State v. Krone*, 182 Ariz. 319, 897 P.2d 621 (Ariz. 1995), Supreme Court of Arizona, decided 1995. Free online: Justia. The facts, the bite-mark evidence, and the videotape-disclosure ruling that reversed the conviction are set out in the opinion. The 2002 DNA exoneration is part of the case's later, well-documented history.

Companion chapters: the same technique appears triumphant in *Bundy v. State* (Chapter 39) and produces another wrongful conviction in *Howard v. State* (Chapter 41).

Chapter 41 - The Bite Marks Only One Man Could See

The autopsy found no bite marks. Then the body was exhumed, a forensic dentist declared he'd found three, matched them to Eddie Lee Howard, and sent him to death row for twenty-six years. Another man's DNA was on the knife.

By now you know the shape of the danger. A bite mark, a confident expert, a persuaded jury. In Ted Bundy's case the method caught a monster. In Ray Krone's it caught an innocent man for a decade. Eddie Lee Howard's case is the one where the whole apparatus is laid bare, because in his case the bite marks were not just unreliable. They may not have existed at all until someone needed them to.

On the evening of February 2, 1992, in Columbus, Mississippi, a neighbor noticed smoke. Firefighters arrived to find a small fire smoldering in the living room of eighty-four-year-old Georgia Kemp, and Kemp herself dead on her bedroom floor. On the bed was a bloody knife. The telephone line had been cut. An autopsy the next day, performed by Dr. Steven Hayne, concluded that Kemp had been beaten, strangled, stabbed, and raped, and that she had died from two stab wounds to the left side of her body.

Read that autopsy carefully, because of what it does not contain. Dr. Hayne, who examined the body closely enough to catalog the beating and the strangulation and the fatal stab wounds, noted no bite marks. None.

The marks that appeared after burial

The bite marks entered the story only afterward, and by an unusual route. Days after the autopsy, Kemp's body was exhumed for an additional

study. And on February 7, a forensic dentist named Dr. Michael West examined the exhumed body and announced that he had found human bite marks, on Kemp's right breast, the right side of her neck, and her right arm, marks that the pathologist who conducted the autopsy had not recorded.

Dr. West took molds of Eddie Lee Howard's teeth and performed what he called a "wound duplication test with ink," pressing a direct comparison between the defendant's dental impressions and the marks he said he had found. He declared the marks on the neck and arm "consistent with" Howard's teeth, and the mark on the breast, he testified at the time, was "indeed" made by Howard. Howard lived two blocks away. He was arrested the next day. And on the strength of Dr. West's bite-mark testimony, delivered with the credentials of a member of the American Board of Forensic Odontology who assured the jury he had followed the Board's guidelines, Eddie Lee Howard was convicted of capital murder and sentenced to death.

There was precious little else. This was, once again, a case that stood or fell on teeth.

Twenty-six years

Eddie Lee Howard spent twenty-six years on Mississippi's death row, and the story of how he got off it is a slow-motion collapse of everything that put him there.

The first crack was in the science itself. Dr. Michael West would become one of the most notorious figures in American forensics, his bite-mark work implicated in a string of wrongful convictions. And the field he represented turned on its own central claim. Since Howard's trial, the American Board of Forensic Odontology had revised the very guidelines West swore he'd followed, and the expert consensus had hardened into something close to a repudiation: an individual perpetrator cannot be reliably identified through bite-mark comparison. The method that had sent Howard to die was, the scientific community now conceded, incapable of doing the one thing it had claimed to do.

The second crack was the evidence that bite marks had always stood in for. When the physical evidence from Kemp's home was finally subjected to modern DNA testing, it did not merely fail to implicate Howard. The nightgown, the stockings, the sexual-assault kit, Kemp's fingernail scrapings, none of them carried male DNA that pointed to him. And then there was the knife, the bloody knife found on the bed, the apparent murder weapon. Its blade was tested for the DNA left by touch. Male DNA was there. It did not belong to Eddie Lee Howard. He was excluded as its source.

Put the two cracks together and the case simply falls through the floor. The bite marks, the only real evidence against him, came from a technique the scientific world had disowned, applied by an expert history had discredited, to marks a careful autopsy never found until a body was dug up. And the knife that killed Georgia Kemp carried the DNA of some other man's hand.

In 2020 the Supreme Court of Mississippi reversed the denial of Howard's petition, vacated his conviction and his death sentence, and held that he was entitled to a new trial. The court's logic was the mirror image of every bite-mark chapter before it: strip out the discredited odontology, add the DNA of another man on the murder weapon, weigh the thinness of everything else, and the verdict cannot stand. (*Eddie Lee Howard was exonerated the following year, a coda that belongs to the case's later history rather than to this decision.*)

How'd he get caught? And who was really on trial

Eddie Lee Howard was caught by bite marks that a forensic dentist found on an exhumed body after the pathologist found none, and that a jury trusted because a man with impressive letters after his name told them to. He lost twenty-six years to it. And here, at the end of this part of the book, the real defendant finally stands up, because it was never truly Eddie Lee Howard, or Ray Krone, on trial. It was a technique. Bite-mark comparison walked into American courtrooms wearing the robes of

science, and for decades juries could not tell the difference between the confidence of an expert and the reliability of a method. On a guilty man like Bundy, that difference was invisible, and the applause was deafening. On Krone and Howard, the difference was a man's life, handed over on the say-so of a discipline that could not actually do what it promised. The teeth never lied, exactly. They simply could not speak, and we spent decades pretending we could hear them.

Read the case yourself: *Howard v. State*, 300 So. 3d 1011 (Miss. 2020), No. 2018-CA-01586-SCT, Supreme Court of Mississippi, decided August 27, 2020. Free online: Justia. The autopsy, the exhumation and Dr. West's bite-mark testimony, the revised ABFO guidelines, and the DNA results excluding Howard from the knife are all set out in the opinion. Howard's 2021 exoneration is part of the case's later history. **Companion chapters:** *Bundy v. State* (Chapter 39) and *State v. Krone* (Chapter 40) complete the bite-mark arc.

Chapter 42 - The Flies That Never Came

She was convicted of a murder that happened 170 miles from where she was, on the word of a jailhouse informant who forged letters to con her own sentencing judge. What finally freed her was the testimony of insects that never showed up.

The last two chapters were about a science that pretended to work. This one is about two different kinds of unreliable evidence that nearly cost a young woman her life, and the humble, patient biology that eventually undid them both. It is the story of Kirstin Blaise Lobato, and it is the case where the flies, of all things, told the truth.

On July 8, 2001, Las Vegas police found the body of a man named Duran Bailey behind a dumpster on West Flamingo Road. He had been savaged, beaten with something like a bat, stabbed, and mutilated after death, his penis amputated at the base. It was a brutal, sexually charged killing in the heart of the city.

Kirstin Lobato lived in Panaca, Nevada, a small town roughly 170 miles away. Some weeks earlier she had told her former teacher, and later others, a frightening story: that during a recent trip to Las Vegas an older man had tried to sexually assault her, and that she had fought him off with her butterfly knife, cutting at his groin before escaping. When a detective came to Panaca and suggested he understood she'd been attacked and forced to defend herself, and then gently referenced knowing she'd been "hurt in the past," Lobato began to cry and said, "I didn't think anybody would miss him."

To the detective, that was a confession. In hindsight, it was something far more ambiguous, the words of a traumatized young woman conflating her own real assault with a crime she had heard about.

Because the assault Lobato described, the one she fought off, had happened weeks before Duran Bailey was killed, and in a different part of the city. The state's theory required her to be the dumpster killer. Her own account, and the geography of her life, put her a three-hour drive away.

The informant

With the physical case thin, the state reached for a witness the criminal justice system leans on far too often and trusts far too much: another prisoner.

Korinda Martin, an inmate at the Clark County Detention Center, testified that Lobato had boasted of the murder, of amputating a man's penis and stuffing it "down his throat," of stabbing him repeatedly, and of planning to "play the poor-me act" and cry sexual assault. It was vivid, it was damning, and it came, as such testimony so often does, from a woman with powerful reasons to say whatever the prosecutors wanted. Martin had a robbery conviction, a coercion conviction, and a history of trying every lever available to get herself out of jail.

Just how far Martin would go to work the system emerged in a hearing away from the jury. Lobato's lawyers confronted her with two handwritten letters. One was a forgery scheme: a "cover" letter asking a former fellow prisoner to copy an attached recommendation in her own handwriting and mail it to Martin's sentencing judge, a letter falsely claiming Martin held a steady job with a high-risk pregnancy, all designed to con the court into leniency. Martin denied writing them. But she conceded the letters were a fraud on her sentencing court, and there was the small matter of the envelope they arrived in, which bore Martin's own return address and prison identification number.

Here is where the trial went wrong in the way that would eventually undo it. When Lobato's defense tried to actually prove that this letter-forging informant had authored the fraud, offering a handwriting expert's opinion that Martin wrote the letters, the trial court shut it down as a collateral matter and let none of it reach the jury. The jurors who

convicted Kirstin Lobato heard Korinda Martin's devastating account. They never heard that Martin was, by the evidence, a practiced forger willing to defraud a judge to shave time off her own sentence. And after the verdict, a police document examiner confirmed it: Martin had written at least one of the letters. The jury got the informant's story and was spared the one fact that best explained why not to believe it.

The jury convicted. In 2004, the Supreme Court of Nevada reversed, holding that barring the defense from impeaching Martin with the forged letters was an error that required a new trial. It is that decision this chapter is anchored to, and its lesson is old and unglamorous: a jailhouse informant trading testimony for freedom is among the most dangerous witnesses a courtroom can host, and a jury that cannot weigh her motives cannot weigh her word.

The flies

The 2004 reversal was not the end. It was, agonizingly, the middle. Lobato was tried again and convicted again, and the fight to prove her innocence stretched on for years. And what carried it, in the end, was not a lawyer's argument or a recanting witness. It was entomology.

Consider the one fact the original timeline had glided past. Duran Bailey's body lay exposed outdoors, behind a dumpster, in Las Vegas, in July. Anyone who has left a picnic unattended in high summer knows what happens next: within hours, often within minutes, blow flies find exposed flesh and blood and begin to lay eggs, and those eggs become larvae on a schedule so reliable that forensic entomologists can read a body's insect colonists like a clock. In the desert heat of a Las Vegas day, a corpse should have been swarming.

Bailey's body was not. The near-total absence of the insect activity that summer daylight guarantees pointed to a single conclusion: he had been killed and left after dark, in the cool of night, when the flies had gone quiet. And that timing mattered enormously, because it placed the murder in a window when Kirstin Lobato, by the evidence, was 170 miles north in Panaca. The bugs that never came to Duran Bailey's body

became the alibi that the state's timeline had denied her. On the strength of that reading, and the mounting rot of the case against her, courts eventually vacated Kirstin Lobato's conviction, and after more than sixteen years in prison she walked free. *(The entomology evidence and the final exoneration belong to Lobato's retrial and later habeas proceedings; the 2004 decision anchored here reversed her first conviction on the informant issue and does not itself address the insects.)*

How'd she get caught? And how did she get free?

Kirstin Lobato was caught by two of the least reliable things a courtroom trades in: a grief-stricken, ambiguous utterance mistaken for a confession, and a career jailhouse informant who forged documents to game her own sentence and whose lies the jury was never allowed to see for what they were. That is how an innocent woman loses sixteen years. How she got them back is the quieter miracle at the center of this book's final chapters. No one could shake the informant, no one could unspeak the confession that wasn't one. But the flies could not be bribed, could not be coached, could not be made to say what the prosecution needed. They simply followed their nature, and their nature was to arrive at a fresh body within hours. When they didn't arrive, they left behind the truth, which is that Duran Bailey died in the dark, in a city where Kirstin Lobato was not.

Read the case yourself: *Lobato v. State*, 120 Nev. 512, 96 P.3d 765 (Nev. 2004), Supreme Court of Nevada, decided 2004. Free online: search “Lobato v. State 96 P.3d 765” (Justia / FindLaw / vLex). The murder, Lobato’s statements, and the jailhouse-informant testimony and forged-letter ruling that reversed her first conviction are set out in the opinion. The forensic-entomology evidence and Lobato’s eventual exoneration come from her retrial and later post-conviction proceedings, part of the case’s well-documented later history. **Companion chapters:** the junk-science arc runs through *Bundy* (39), *Krone* (40), and *Howard* (41); the Canadian bookend is *R. v. Truscott* (Chapter 43).

Chapter 43 - The Boy, the Flies, and Forty-Eight Years

A pathologist looked at the food in a dead girl's stomach and declared she had died within a forty-five-minute window. That window sent a fourteen-year-old boy to the gallows. It took forty-eight years, and a study of blow flies, to prove the window was never real.

This book is called *How Not to Get Away With Murder*, and every chapter until now has been a story about the guilty being caught. The book cannot honestly end there, because the same forensic machinery that catches killers is operated by human beings who make mistakes, and when it fails, it does not simply let a guilty man walk. Sometimes it takes an innocent one and nearly hangs him. To close, we have to tell that story too, and in Canada there is no story that tells it better than the case of a fourteen-year-old boy named Steven Truscott.

On the evening of June 9, 1959, near the Royal Canadian Air Force station outside Clinton, Ontario, Steven Truscott gave his twelve-year-old classmate Lynne Harper a ride on the handlebars of his bicycle, north along the County Road. He said he dropped her near the highway and watched her get into a car. It was, he insisted then and for the rest of his life, the last he saw of her.

Two days later, searchers found Lynne Harper's body in a wooded area called Lawson's Bush. She had been sexually assaulted and strangled with her own blouse. And within days, the boy who had last been seen with her, Steven Truscott, was arrested, tried as an adult for capital murder, convicted, and sentenced to hang. The sentence was commuted to life. He was fourteen years old, and every court that

reviewed his case, including a majority of the Supreme Court of Canada on a 1966 reference, upheld the conviction.

The case against him was entirely circumstantial, and it stood on four pillars. Three of them were the ordinary stuff of a 1950s murder trial: witnesses along the County Road, disputed evidence about his later conduct, and some physical findings on his body offered to suggest he was the assailant. But the pillar that held up all the rest, the one that gave Steven Truscott what the Crown called “exclusive opportunity” to commit the murder, was a piece of forensic science. It was the word of a pathologist about the contents of a dead girl’s stomach.

The window

The pathologist was Dr. John Penistan, and he performed Lynne Harper’s autopsy. On the basis of three observations, the degree to which her last meal had digested in her stomach, the state of the rigor mortis in her body, and the extent of decomposition, he delivered an opinion of striking, almost surgical precision. He told the court that Lynne Harper had died between 7:00 and 7:45 p.m. on June 9.

Understand what that narrow window did. Steven Truscott was demonstrably with Lynne on the County Road shortly after 7:00 p.m. If she died by 7:45, then he, and effectively only he, had the opportunity to kill her before she could reach the highway and the car he described. Dr. Penistan’s forty-five-minute window was not merely evidence in the case. It was the case. It converted a boy who gave a girl a ride into the only man on earth who could have murdered her.

And it was built on sand. The science of estimating time of death from stomach contents, of assuming that a stomach empties on a fixed and knowable schedule, was exactly the kind of confident, precise-sounding forensic claim that juries find irresistible and that later scrutiny so often dissolves. Digestion does not run on a stopwatch. It varies enormously with the person, the meal, the stress, the fear. A stomach can take hours longer to empty than Dr. Penistan assumed. The window he

drew with such authority was a guess wearing the costume of a measurement, and a fourteen-year-old's life was hung inside it.

The flies

In 2007, on a reference from the Minister of Justice, the Court of Appeal for Ontario examined Steven Truscott's conviction one final time, as though it were a fresh appeal, and this time it did something no court had done before. It let in new evidence about the time of death, and that evidence came from two directions, both of which pointed away from Dr. Penistan's window.

The first was a reassessment of the pathology itself. Modern expert review rendered the old claim, that Lynne Harper *must* have died before 8:00 p.m., scientifically untenable. The certainty was gone, and with it the exclusive opportunity it had manufactured.

The second came from the humblest witnesses imaginable: the blow flies that had found Lynne Harper's body. Dr. Penistan, at the autopsy, had removed maggots from around her nose and mouth and, in his notes, recorded their size, about one-sixteenth of an inch. Decades later, forensic entomologists took that recorded detail and did what entomologists do. A blow fly's life runs on a biological clock so dependable that the size and developmental stage of the maggots on a body can be read backward to estimate when insects first arrived, and therefore, roughly, when death occurred and the body lay exposed. Working from the maggots Dr. Penistan himself had described, the entomology pointed to a death later than his window allowed, potentially so much later that it could place the killing at a time when Steven Truscott was nowhere near Lawson's Bush.

The Court of Appeal was careful about the science. It did not declare the entomology certain; it noted its frailties and acknowledged the assumptions it rested on. But it held that the evidence was sound enough to go to a jury, and that, together with the collapse of Dr. Penistan's pathology, it could raise a reasonable doubt that Lynne Harper died before 8:00 p.m. And a reasonable doubt about the time of death was a

reasonable doubt about the entire case, because the whole edifice had been built on that single, false window.

The court found that Steven Truscott's conviction was a miscarriage of justice and quashed it. A new trial, half a century on, was a practical impossibility. So the court did the only just thing left to do. It held that if a new trial could be held, an acquittal would clearly be the more likely result, and it entered that acquittal itself. In 2007, forty-eight years after a fourteen-year-old boy was sentenced to die, Steven Truscott was declared, at last, an innocent man.

The question this book cannot avoid

For every other subject in these pages, the closing question has been “how’d they get caught.” For Steven Truscott, the question is the opposite and far more uncomfortable: how was an innocent boy *convicted*, and how was he made to wait a lifetime to be uncaught? The answer is the same forensic overconfidence that runs like a warning through this entire book. A murderer is caught when the evidence, honestly read, points only at him. But evidence does not read itself. It is read by people, and when a person in a white coat mistakes a guess for a measurement and says it with enough authority, a jury will convict on it, whether the man in the dock is Ted Bundy or a fourteen-year-old who gave a classmate a ride home.

That is the note this book has to end on, because it is the truth that makes all the other chapters mean something. The forensic sciences that catch the guilty, the cell towers and the Fitbits and the search histories and the tracklogs, are genuinely powerful, and genuinely good, precisely to the degree that we hold them honest. When we let them promise more than they can deliver, they do not stop convicting people. They simply start convicting the wrong ones. Steven Truscott was freed, in the end, by insects too small to lie and a court finally willing to listen. He should never have needed either. The lesson of how not to get away with murder is also, unavoidably, the lesson of how not to convict a boy of one: follow the evidence, but never trust it more than it has earned.

Read the case yourself: *Truscott (Re)*, 2007 ONCA 575, Court of Appeal for Ontario. Free online: CanLII. The overview and the four pillars of the Crown's case are set out in Part I; Dr. Penistan's stomach-contents time-of-death opinion is examined in Part III; the forensic-entomology evidence and the court's conclusion on it appear in the analysis of the first pillar; the acquittal is entered in Part VI.

Companion chapters: the junk-science arc runs through *Bundy* (39), *Krone* (40), *Howard* (41), and *Lobato* (42); this is its Canadian bookend and the book's closing chapter.

A Closing Note

The oldest lesson in this book is also the newest one. Long before there were cell towers and fitness trackers, the person who took a life still had to walk into the world and back out of it, and the world still kept its receipts. What our own century has added is only the sheer number of receipts. We have surrounded ourselves with patient, tireless witnesses that watch without judgment and remember without malice, and we invited every one of them in. They count our steps because we asked them to. They log our drives because it is convenient. They keep our questions because we never told them to forget.

For the guilty, that is a closing net. For the rest of us, it is worth a longer thought than this book can give it, and a few of these chapters, the black box the court would not let the police read, the confession the law threw out, mark exactly where that thought should start. The same machinery that catches a killer in an afternoon could be turned on anyone, for any reason, and the line that keeps it from being is not the technology. It is the warrant, the judge, the rules of evidence, the insistence that even a guilty man have the case proved against him and not merely announced. The killers in these pages were caught because they left a trail. They were convicted, when they were rightly convicted, because someone did the slow and careful work of proving what the trail meant. That difference is the whole thing.

And sometimes the careful work runs the other way, and frees a man the evidence should never have caught. That is in here too, on purpose. A trail can be misread. A science can be junk dressed as certainty. The best answer to a machine that never forgets has always been a human being who insists on getting it right.

So: do not bring your phone to a murder. Better yet, do not commit one. But if you take nothing else from these stories, take this. Everything

remembers now. It is a marvelous thing, and a dangerous one, and which of the two depends entirely on who is allowed to read the memory, and how carefully they are made to prove what it says.

A Note on Sources and Method

Every chapter in this book began with a court decision and was written from it.

The cases were chosen for one quality above all: that a single, understandable thread of evidence, one kind of forensic or investigative proof, could be shown doing its work, and that a genuine appellate court had set out the facts in a written opinion the reader could go and verify. That last requirement did real work. Some famous cases are absent from this book precisely because they never produced a qualifying appellate decision, resolved instead by a guilty plea or an abandoned appeal, and this book would rather leave a good story out than anchor it to something you cannot check.

For each chapter, the anchoring decision was read in full, and the facts, the evidence, and the disposition were taken from it. Where the narrative reaches beyond the four corners of that decision, into a case's later history, a retrial, a reversal, an exoneration, or into widely reported detail the opinion did not itself contain, the text says so in plain language. Figures that circulate in the press but do not appear in the opinions are identified as such. Decisions in French were translated for the reader. Where a court protected an identity, initials are used.

The citations were checked against free public legal databases: CanLII for the Canadian cases, and Justia, CourtListener, and similar services for the American ones. A small number of exact reporter page numbers, the volume-and-page assigned by commercial publishers after a decision issues, are noted where they should be confirmed against a final printed reporter; in every such instance the case, court, date, and docket number are certain, and the decision can be found and read today.

Acknowledgments

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About the Author

Frank Alfano is a writer with a long-standing interest in how the law actually works, in the gap between how crimes are solved on a screen and how they are solved on the record. *How Not to Get Away With Murder* is his first book.

[Author bio to be completed: a sentence or two on background, where you live, and anything else you would like readers to know.]